



IN THE GAUHATI HIGH COURT
(THE HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

ITANAGAR PERMANENT BENCH
(YUPIA)

Election Petition No. 01(AP)2019

Nuney Tayang, aged about 38 years

S/o Late Posu Tayang, R/o House No. E-265
Shivaji Nagar Road, Tezu, P.O. Tezu, P.S. Tezu
District Lohit, Arunachal Pradesh, PIN – 792001
e-mail ID: nuneytayang@gmail.com
Mobile Phone Nos.: 9436049011, 8732805620.

..... *Election Petitioner*

- Vs -

1. Shri Karikho Kri, S/o Late Sotri Kri, R/o Kri Niwas, Village Telluliang,
P.O. & P.S. Tezu, District Lohit, Arunachal Pradesh, PIN – 792001.

2. Dr. Mohesh Chai, S/o Late Tankakso Chai, R/o T. Chai Residence, Chai
Colony, Tezu, P.O. & P.S. Tezu, District Lohit, Arunachal Pradesh, PIN –
792001.

..... *Respondents*

Advocates for the petitioner:

Mr. Dilip Mazumdar, Sr. Adv.
Mr. Sandi K. Deori
Ms. Somila

Advocates for Respondent No. 1:

Mr. K. P. Pathak, Sr. Adv.
Mr. G. J. Saikia
Mr. B. Choudhury
Mr. Kumar Dorjee
Mr. Khoda Tama
Ms. Hinti Jeram
Mr. G. Kamduk
Mr. Tadu Lampung

Mr. H. Aape
Mr. N. Tajing
Mr. S. Chettri

:::B E F O R E:::
HON'BLE MR. JUSTICE NANI TAGIA

Date of hearing : 20.04.2023
Date of Judgment & order : 17.07.2023

JUDGMENT AND ORDER(CAV)

Heard Mr. Dilip Mazumdar, learned senior counsel, assisted by Mr. Sandi K. Deori, learned counsel, appearing on behalf of the election petitioner. Also heard Mr. K. P. Pathak, learned senior counsel, assisted by Mr. Khoda Tama, learned counsel, appearing on behalf of respondent No. 1.

2. By filing this election petition under Section 80, 80-A, and 81 of the Representation of the People Act, 1951; the petitioner has sought for a declaration that the election to the Member of Legislative Assembly from 44-Tezu(ST) Assembly Constituency, held pursuant to the Notification No. 464/ARUN-LA/2019, dated 18.03.2019, in respect of respondents No. 1 and 2, be declared void under Section 90(a)(c) of the Representation of the People Act, 1951, on the grounds stipulated under sections 100(1)(b), 100(1)(d)(i) and 100(d)(iv) of the Representation of the People Act, 1951, and to declare the petitioner to be duly elected from the 44-Tezu(ST) Assembly Constituency under Section 101(b) of the Representation of the People Act, 1951.

3. The facts relevant for adjudication of the election petition, briefly, stated, are as follows:

3(i). That the Governor of the State of Arunachal Pradesh had issued a Notification dated 18.03.2019, under Section 15(2) of the Representation of the People Act, 1951, published in the Official Gazette of the State of Arunachal Pradesh, dated 18.03.2019, calling upon all the Deputy Commissioners of the State to elect the members in the State Legislative Assembly under the provisions of the Representation of the People Act, 1951, and the Rules, framed thereunder. Accordingly, in pursuance of Sections 30 and 56 of the Representation of the People Act, 1951, the Election Commission of India (ECI), had appointed the following dates for holding the election to all the Legislative Assembly Constituencies in the State of Arunachal Pradesh, vide Notification No. 464/ARUN-LA/2019, dated 18.03.2019, issued by the Secretary, Election Commission of India, Nirvachan Sadan, Ashoka Road, New Delhi, which Notification was reproduced by the Chief Electoral Officer, Arunachal Pradesh, Itanagar, on 18.03.2019, and published in the Arunachal Pradesh Gazette Extraordinary No. 120, Vol. XXVI, Naharlagun, Monday, March 18, 2019; which are as under:

- (a). the 25th March, 2019(Monday), as the last date for making nominations;
- (b). the 26th March, 2019(Tuesday), as the date for the scrutiny of nominations;
- (c). the 28th March, 2019(Thursday), as the last date for the withdrawal of candidatures;
- (d). the 11th April, 2019(Thursday), as the date on which a poll shall, if necessary, be taken; and,
- (e). the 27th May, 2019(Monday), as the date before which the election shall be completed.

3(ii). The petitioner being an elector of 44-Tezu(ST) Assembly Constituency, Arunachal Pradesh, and eligible to contest the election for the Legislative Assembly of the State, held in the year 2019, had presented his nomination paper to the Returning Officer as an Indian National Congress (INC) candidate for contesting the Assembly Election for the year 2019 from 44-Tezu(ST) Assembly Constituency. The respondent No. 1, Shri Karikho Kri, and respondent No. 2, Dr. Mohesh Chai, had also presented their nomination papers for contesting the Legislative Assembly Election for the year 2019 from 44-Tezu(ST) Assembly Constituency, as an independent candidate and Bharatiya Janata Party(BJP) candidate, respectively. Two other persons, namely, Smti. Bagilu Kri, and Shri Konteso Kri, who are the wife and the brother of respondent No. 1, respectively, had also presented their nomination papers for election to the 44-Tezu(ST) Assembly Constituency, as independent candidates. On receipt of the nomination papers, the Returning Officer of 44-Tezu(ST) Assembly Constituency, had notified the nominations received along with the affidavits submitted with the nomination papers and the same were also uploaded in the official website of the Election Commission of India (ECI).

3(iii). On finding that the respondent No. 1, in his affidavit, in Form 26 of the Conduct of Election Rules, 1961, sworn before the Judicial Magistrate, First Class, Tezu, on 22.03.2019, which was enclosed in his nomination paper, had made some false statements and declarations; the petitioner had submitted his objection, dated 26.03.2019, to the Returning Officer, Tezu, and during the scrutiny of the nomination papers, he had also pointed-out the defects and the false statements and declarations made by respondent No. 1 in his affidavit in Form 26. The said objection, dated 26.03.2019, was duly received by the Returning Officer, Tezu, with his endorsement, thereon.

3(iv). On the day of scrutiny of the nomination papers, on 26.03.2019, despite the objection raised by the petitioner; the Returning Officer, Tezu, found the nomination papers of all the 5(five) candidates to be valid. However, Smti. Bagilu Kri, and Shri Konteso Kri, being the wife and the brother of respondent No. 1, respectively, withdrew their candidatures from 44-Tezu(ST) Assembly Constituency, within the time stipulated for withdrawal of the nomination papers in the Notification, dated 18.03.2019.

3(v). The polling for election to the 44-Tezu(ST) Assembly Constituency, was held on 11.04.2019, and the result of the election was declared on 23.05.2019, wherein, the respondent No. 1 was found to have secured a total of 7538 votes; whereas the respondent No. 2 had secured a total of 7383 votes and the petitioner, herein, had secured a total of 1088 votes. The Returning Officer, Tezu, thereafter, issued a declaration in Form 21(c) in terms of Section 66 of the Representation of the People Act, 1951, *read with* Rule 64 of the Conduct of Election Rules, 1961, declaring the respondent No. 1 viz. Shri Karikho Kri, an independent candidate, elected, to fill-up the seat of the State Legislative Assembly of 44-Tezu(ST) Assembly Constituency.

4. Calling in question, the election of respondent No. 1, as the MLA of 44-Tezu(ST) Assembly Constituency, for improper acceptance of his nomination paper by the Returning Officer, Tezu, despite the objection raised by the petitioner; the petitioner contends that the respondent No. 1 in Form 26 of the Conduct of Election Rules, 1961, did not disclose the following properties/assets:

A. Vehicles:

- I. Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446, registered in the name of respondent No. 1;
- II. Kinetic Zing Scooty bearing Registration No. AR-11/4474, registered in the name of Smti. Bagilu Kri(spouse of respondent No. 1);
- III. Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100; registered in the name of Smti. Bagilu Kri(spouse of respondent No. 1); &
- IV. TVS Star City Motorcycle bearing Registration No. AR-11/6851, registered in the name of Shri Goshinso Kri(son of respondent No. 1); and

B. A plot of land:

A plot of land measuring 50,000 sq. mtrs. in Jhalukbari village, Lohit District, of Smti. Kandula Kri, the mother of respondent No. 1, for which, she has been issued a Land Possession Certificate(LPC) by the Deputy Commissioner, Tezu, vide LPC No. 36 and approval No. LRE-5548/10/36, dated 26.07.2010.

4(i). The petitioner also contends that the respondent No. 1 did not disclose in Form 26 of the Conduct of Election Rules, 1961, that he was in occupation of a Government accommodation being MLA Cottage No. 1 located in 'E' Sector, Itanagar, which was provided to him when he was the MLA from 44-Tezu(ST) Assembly Constituency for the period 2014-2019. In addition thereto, the respondent No. 1 also did not submit "No Dues Certificates" from the concerned Department towards the rent, electricity charges, water charges and telephone charges for the aforesaid Government accommodation.

4(ii). The petitioner further contends that there is an inconsistency in the declaration made by the respondent No. 1 insofar as the Government Dues as well as the disputed Government dues, are concerned.

5. The relevant pleadings in the election petition, contending as above, insofar as the vehicles are concerned, it has been made in paragraph No. 11(i), (ii), (iii), (iv), (v) & (vi); insofar as the property of Smti. Kandula Kri, the mother of respondent No. 1, is concerned, it has been made in paragraph No. 11(vii), & (viii); insofar as the Government Accommodation is concerned, it has been made in paragraph No. 11(ix), (x) & (xi); and insofar as the "No Dues Certificate" and disputed Government Dues, are concerned, it has been made in paragraph No. 11 (xii); which are reproduced hereinbelow, for ready reference:

"(11). That, the false statements and false declarations made by the respondent no. 1 in his affidavit (in Form 26) dated 22/03/2019 are indicated below:

(i). That, it is mentioned in Note 4 of sub-paragraph B of paragraph (7) of Form 26 that *"Dependent' means parents, son(s), daughter(s) of the candidate or spouse and any other person related to the candidate whether by blood or marriage, who have no separate means of income and who are dependent on the candidate for their livelihood."* Further, Note 1 of sub-paragraph B of paragraph (7) of Form 26 mentions that *"Properties in joint ownership indicating the extent of joint ownership will also have to be indicated."*

(ii). That, the respondent no. 1, Shri Karikho Kri, in his said affidavit had mentioned about his assets, the assets of his spouse Smt. Bagilu Kri and his four children Shri Oshinso Kri, Shri Goshinso Kri, Shri Prodyumn Kri and Ms. Kritilu Kri, showing his said four children as Dependent - 1, 2, 3 and 4 respectively. However, the respondent no. 1 did not mention anything about the assets of his mother Smt. Kandula Kri anywhere in his said affidavit.

(iii). That, paragraph (7)A. in Part-A of the affidavit required to be submitted in Form 26 pertain to the 'Details of movable assets' and a candidate is mandatorily required to submit the details of the movable assets wherein he is required to submit the details of the vehicles in his name, his spouse and other dependents. Serial no.

(vi) of the table in Form 26 relate to the details of motor vehicles/aircraft/yachts/ships(details of make, registration number etc., year of purchase and amount).

(iv). That, in serial no. (vi) of the table in the said paragraph (7)A in Part-A of his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper, the respondent no. 1 Shri Karikho Kri did not mention about any vehicle registered in his own name.

(v). That, Table – A and B hereinafter lists the details of the only vehicles mentioned by the respondent no. 1 as registered in the name of his spouse Mrs. Bagilu Kri and in the name of his son Mr. Oshinso Kri respectively in serial no. (vi) of the table in the said paragraph (7)A in Part-A of his affidavit (in Form 26) dated 22/03/2019, which are as under:

TABLE-A

Sl. No.	Type of Vehicle	Vehicle No.	Year of Registration	Value(in Rs.)
1	TATA Mini Truck – 709	AS-23BC-3767	2015	8,00,000/-
2	Bajaj Discover Motorcycle	AR-11A-3188	2015	77,000/-

TABLE-B

Sl. No.	Type of Vehicle	Vehicle No.	Year of Registration	Value(in Rs.)
1	Mahindra Scorpio	AR-11A-1111	2015	4,00,000/-
2	Royal Enfield Bullet	AR-11A-5132	2017	1,80,000/-

(vi). That, the respondent no. 1, Shri Karikho Kri did not mention about the details of some vehicles registered in his name and in the name of his spouse Smt. Bagilu Kri and in the name of his son Shri Goshinso Kri in serial no. (vi) of the table in the said paragraph (7)A in Part-A of his affidavit (in Form 26) dated 22/03/2019. TABLE-C hereinafter lists the details of vehicles, not so mentioned by the respondent No. 1 in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper:

TABLE-C

Sl. No.	Type of Vehicle	Name of the registered owner	Vehicle No.
1	Hero Honda CD Dawn Motorcycle	Smt. Karikho Kri	AR-11-2446
2	Kinetic Zing Scooty	Smt. Bagilu Kri	AR-11-4474
3	Van, Maruti Omni Ambulance	Smt. Bagilu Kri	AR-11A-3100
4	TVS Star City Motorcycle	Shri Goshinso Kri	AR-11-6851

By the non-disclosure thereof, the respondent no. 1 has made false statements and given false declarations in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held pursuant to the Notification No. 464/ARUN-LA/2019 dated 18/03/2019. Therefore, the respondent no. 1 had made false statements and given false declarations in the affidavit (Form 26) dated 22/03/2019 submitted with his nomination paper.

(vii). That, paragraph (7)B. of Part-A of the affidavit required to be submitted in Form 26 pertain to the 'Details of Immovable Assets' and a candidate is mandatorily required to submit the details of the immovable assets wherein he is required to, *inter alia*, submit the details of the agricultural lands, non-agricultural lands, commercial buildings and residential buildings of the candidate and his dependents. It is reiterated that in Note 4 of sub-paragraph B of paragraph (7) of Form 26 that *"Dependent means parents, son(s), daughter(s) of the candidate or spouse and any other person related to the candidate whether by blood or marriage, who have no separate means of income and who are dependent on the candidate for their livelihood."* Further, Note 1 of sub-paragraph B of paragraph (7) of Form 26 mentions that *"Properties in joint ownership indicating the extent of joint ownership will also have to be indicated."*

(viii). That, Smt. Kandula Kri, the mother of the respondent no. 1 has a plot of land measuring 50,000 square metres in Jhalukbari village, Lohit District, in respect of which she was issued a Land Possession Certificate (*'LPC' in short*) with LPC no. 36 in connection with which the Deputy Commissioner of Lohit District had given an approval vide No. LRE-5548/10/36, dated 26/07/2010. However, the respondent no. 1 Shri Karikho Kri did not mention the aforesaid land details of his mother in the declaration submitted by him in paragraph (7)B of his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper. By the non-disclosure thereof, the respondent no. 1 has made false statements and given false declarations in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held in the year 2019.

(ix). That, paragraph (8) in Part-A of the affidavit (in Form 26) relates to the details of liabilities/dues to public institutions and government. Serial no. (ii) of the table in the said paragraph (8) in Part-A of the affidavit (in Form 26) relates to the Government dues to departments dealing with Government accommodation, wherein the candidate is required to declare as to whether he had been in occupation of accommodation provided by the Government at any time during the last ten years before the date of the current election.

(x). That, the respondent no. 1 in his declaration on affidavit (in Form 26) dated 22/03/2019 in paragraph 8(ii) thereof, had stated that aforesaid clause relating to government accommodation was 'not applicable' to him and had declared that there are no dues payable in respect of the government accommodation, towards (a) rent, (b) electricity charges, (c) water charges and (d) telephone charges as on 22/03/2019.

(xi). That, in reality, the respondent no. 1 was an MLA during the period from 2009 to 2014 from the Tezu(ST) Assembly Constituency and he was in occupation of Cottage No. 1 in E-Sector, Itanagar, Arunachal Pradesh. The said occupation of Government accommodation by the respondent no. 1 was during the last ten years before the date of notification of the current election. The respondent no. 1 was also required to submit 'No Dues Certificates' from the agencies concerned in respect of

rent, electricity charges, water and telephone charges in respect of the aforesaid government accommodation. However, the said fact was not declared in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper. By the non-disclosure thereof, the respondent no. 1 has false statements and given false declarations in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held pursuant to Notification No. 464/ARUN-LA/2019 dated 18/03/2019.

(xii). That, against serial no. (vi) and (vii) of the table in paragraph (8) of Part – A of the affidavit (in Form 26) dated 22/03/2019 of the respondent no. 1 Shri Karikho Kri and his wife Smt. Bagilu Kri relating to Municipal/Property Tax dues and Grand Total of all Government dues respectively, he had shown dues of Rs. 33,962/- approximately as due from himself and Rs. 40,215/- approximately as due from his spouse Smt. Bagilu Kri. However, against serial no. 9 and 10 of the table in paragraph (11) of Part – B of his affidavit (in Form 26) dated 22/03/2019, the respondent no. 1 had declared the total of Government dues and total of disputed Government dues as 'NIL' in respect of himself, his spouse Smt. Bagilu Kri and his dependents. As such there are differences in the statements made and declarations given in different paragraphs of his very same affidavit dated 22/03/2019 at different places thereof and the same are contradictory to one another. Hence, the said affidavit (in Form 26) contains false statements made and declarations given by the respondent no. 1."

6. Against the respondent No. 2; the election petitioner, in paragraphs No. 24, 25, 26 & 27 of the election petition, has contended as under, which is reproduced hereinbelow, for ready reference:

"24. That the respondent no. 2, Dr. Mohesh Chai, who had contested the election to the Legislative Assembly of Arunachal Pradesh from the 44-Tezu(ST) Assembly Constituency held pursuant to the Notification No. 464/ARUN-LA/2019 dated 18/03/2019, had submitted his nomination papers with an affidavit (in Form 26) dated 25/03/2019. In the said affidavit he had made false statements and given false declarations, which are defects of substantial nature and the same are material defects. The defects in the aforesaid affidavit of the respondent no. 2 Dr. Mohesh Chai are indicated hereinbelow:

(i) Note 4 of sub-paragraph B of paragraph (7) of Form 26 lays down that *"'Dependent' means parents, son(s), daughter(s) of the candidate or spouse and any other person related to the candidate whether by blood or marriage, who have no separate means of income and who are dependent on the candidate for their livelihood."* Further, Note 1 of sub-paragraph B of paragraph (7) of Form 26 mentions that *"Properties in joint ownership indicating the extent of joint ownership will also have to be indicated."*

(ii). That the respondent no. 2, Dr. Mohesh Chai, in his said affidavit had mentioned about his assets, the assets of his spouse Smt. Sujan Krisikro Chai and his three children Shri Asing Chai, Shri Deesong Chai and Shri Jayden Chai, showing his said three children as Dependent -1, 2 and 3 respectively. However, the respondent no. 2 did not mention anything about the assets of his mother Smt. Jahilu Chai anywhere in his said affidavit.

(iii). Paragraph (7)B. of Part-A of the affidavit required to be submitted in Form 26 pertain to the 'Details of Immovable Assets' and a candidate is mandatorily required to submit the details of the immovable assets wherein he is required to, *inter alia*, submit the details of the agricultural lands, non-agricultural lands, commercial buildings and residential buildings of the candidate and his dependents.

(iv) That, in paragraph (7)B. of Part-A of his affidavit (in Form 26) dated 25/03/2019, the respondent no. 2, Dr. Mohesh Chai had mentioned the details of some immovable assets. Serial no. (iv) of the table in the said paragraph (7)B. pertains to residential buildings (including apartments), wherein under column for 'Self', the respondent no. 2 had mentioned his immovable assets as-

- (1) G+2 Building under construction at Chai colony, Tezu, and (2) Hall, Dag No. 281(p), Bill No. LR-382 and allotment No. REV-6/75 dated 12/06/1987.

The aforementioned G+2 Building under construction and the said Hall are on the same plot of land covered by Dag No. 281(p), Bill No. LR-382 and allotment No. REV-6/75 dated 12/06/1987. However, the said land does not belong to the respondent no. 2, rather, it is in the name of Smt. Jahilu Chai, the mother of the respondent no. 2, Dr. Mohesh Chai. However, the respondent no. 2 has neither shown the details of the assets of his mother nor mentioned about the extent of joint ownership of the said immovable asset. By the non-disclosure thereof, the respondent no. 2 has made false statements and given false declarations in his affidavit (in Form 26) dated 25/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held in the year 2019.

(v). That, the respondent no. 2 Dr. Mohesh Chai did not mention about the following lands, being immovable assets, allotted in Tezu, Lohit District of Arunachal Pradesh in the name of his mother Smt. Jahilu Chai in his said affidavit (in Form 26) dated 25/03/2019:

Dag No.	Area (in Sq.m.)	Allotment No.	Type of land
53(B)	373.68	REV-6/75 dated 12/06/1987	Commercial
281(P) & 281(O)	8974	REV-6/75 dated 12/06/1987	Residential
281(G)	27,800	REV-6/75 dated 12/06/1987	Residential

By the non-disclosure thereof, the respondent no. 2 has made false statements and given false declarations in his affidavit (in Form 26) dated 25/03/2019 submitted with his nomination paper for the election to Legislative Assembly of Arunachal Pradesh held in the year 2019.

25. That Shri Krimso Tayang, an Advocate engaged by the petitioner, had applied for information under the RTI Act, 2005 from the office of the District Medical Officer, Lower Dibang Valley District, whereupon the said District Medical Officer issued a RTI reply letter no. LDVM/ESTT-A/RTI/2019-20/810 dated 29/05/2019, inter alia, furnishing a copy of the Form of Nomination dated 09/11/1998 for General Provident Fund submitted by the respondent no. 2 Dr. Mohesh Chai, a copy of the Details of Family Members dated 16/04/2012 submitted by the respondent no. 2 during his service under the Government of Arunachal Pradesh, a copy of the resignation letter dated 02/09/2013 submitted by the respondent no. 2 and a copy of Order No. MEST-97/104Pt dated 28/10/2013 issued by the Secretary(Health & Family Welfare) in the Department of Health & Family Welfare of the Government of Arunachal Pradesh. A perusal of the copies of the said documents so furnished reveals the following:

(a) In the said Form of Nomination dated 09/11/1998 submitted by the respondent no. 2, he had nominated his mother Smt. Jahilu Chai to receive 100% of his provident fund dues payable under the General Provident Fund(Central Services) Rules, 1960.

(b) In the said Details of Family Members dated 16/04/2012 submitted by the respondent no. 2 Dr. Mohesh Chai, he had stated his family members to be:

Sl. No.	Name of the member of family	Date of Birth	Relationship
1.	Mrs. Sujan Krisikro	16/10/1981	Wife
2.	Master Asing Chai	02/08/2003	Son
3.	Master Deesong Chai	14/10/2008	Son
4.	Smt. Jahilu Chai	-	Mother

(c) In his resignation letter dated 02/09/2013 submitted by the respondent no. 2, he had clearly mentioned the reason for his resigning from service under the Government of Arunachal Pradesh to be to take care of his mother, undoubtedly indicating thereby that she is dependent on him. His said resignation was accepted by the Government of Arunachal Pradesh vide Order No. MEST-97/104Pt dated 28/10/2013 issued by the Secretary(Health & Family Welfare) in its Department of Health and Family Welfare.

(d) A perusal of the aforesaid documents clearly indicates that Smt. Jahilu Chai, the mother of the respondent no. 2, is his family member.

Therefore, non-disclosure of the details of the assets of his mother in the affidavit (in Form 26) dated 25/03/2019 submitted by the respondent no. 2 with his nomination papers for contesting the election held in the year 2019 to the Legislative Assembly of Arunachal Pradesh from the 44-Tezu(ST) Legislative Assembly Constituency is a defect of substantial character and is a material defect.

26. That, a perusal of the allotment list of commercial purpose and the allotment list of residential purpose in Tezu Township furnished to Shri Krimso Tayang, an Advocate engaged by the petitioner, vide RTI reply letter no. LRE-5220/(RTI)/2010/1835 dated 21/02/2019 by the i/c District Land Revenue and Settlement Officer, Lohit District, Tezu, as mentioned hereinbefore in this petition, reveals that the following lands are allotted to Smt. Jahilu Chai, the mother of the respondent no. 2 and the same are owned by her:

Sl. No in Allotment List	Type of land	Dag No.	Bill No.	Area (in Sq.m.)	Allotment No.
40	Commercial	53(B)	39(B)	373.68	REV-6/75 dated 12/06/1987
371	Residential	281(P) & 281(O)	382	8974	REV-6/75 dated 12/06/1987
637	Residential	281(G)	657	27,800	REV-6/75 dated 12/06/1987

The respondent no. 2, Dr. Mohesh Chai did not mention about the aforementioned plots of land owned by his mother anywhere in his affidavit (in Form 26) dated 25/03/2019 submitted with his nomination papers for the election to the Legislative Assembly of Arunachal Pradesh from the 44-Tezu(ST) Legislative Assembly Constituency held pursuant to the Notification No. 464/ARUN-LA/2019 dated 18/03/2019. Moreover, even though in Serial no. (iv) of the table in paragraph 7(B). of Part-A of his said affidavit (in Form 26) dated 25/03/2019, the respondent no. 2 Dr. Mohesh Chai had mentioned about the details of his immovable assets of the category of Residential buildings (including apartments), under column for 'Self' as –

- (1) G+2 Building under construction at Chai colony, Tezu, and
- (2) Hall, Dag No. 281(p), Bill No. LR-382 and allotment No. REV-6/75 dated 12/06/1987.

The said G+2 Building under construction and the Hall are on the same plot of land covered by Dag No. 281(p), Bill No. LR-382 and allotment No. REV-6/75 dated 12/06/1987. However, the said land does not belong to the respondent no. 2, rather, it is in the name of Smt. Jahilu Chai, the mother of respondent no. 2 Dr. Mohesh Chai. Thus, the respondent no. 2 has made a false statement about ownership of an immovable asset that is not lawfully owned by him. However, the respondent no. 2 has neither shown the details of the assets of his mother nor mentioned about the extent of joint ownership, if any, of the said immovable asset. By the said incorrect statement, as well as the non-disclosure about the assets of his mother, the respondent no. 2 had made false statements and given false declarations in his affidavit (in Form 26) dated 25/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held in the year 2019.

27. That, the petitioner pointed out the aforesaid false statements and false declarations in the affidavit (in Form 26) dated 25/03/2019 of the respondent no. 2 to the Returning Officer, 44-Tezu(ST) Legislative Assembly Constituency for the Legislative Assembly election, 2019 and had objected to the acceptance of the nomination of the respondent no. 2 Dr. Mohesh Chai during the scrutiny of the nomination papers. In this connection, the petitioner submitted an objection dated 26/03/2019 to the said Returning Officer, however, the latter did not give any heed to the objections raised by the petitioner, rather, the said Returning Officer asked the petitioner, in the presence of his Election Agent Shri Krimso Tayang, the Proposer of his candidature Shri Ripso Yun, and his Advocate Shri Witho Mantaw, to compromise and settle his objections with the other contesting candidates."

7. The respondent No. 2 did not contest the case despite service of notice.

8. However, contesting the case; the respondent No. 1, in paragraphs No. 8 to 12 of the written statement filed, has contended as under, which has been reproduced hereinbelow:

"8. That with regard to the statements made in Paragraph 11(i) to (xvi) of the election petition, the petitioner highlighted the purported false statements and false declaration made by the deponent in his affidavit(in form 26) dated 22.03.2019 are basically on 6(Six) grounds, viz. Non-disclosure of the Vehicles owned by the applicant, his wife and his son. Non-disclosure of the assets of the mother(of the land owned by the mother), Non-disclosure of the availing of Government accommodation during the ten years, Non-submission of the non-dues certificate towards rent, electricity charges, water charges and telephone charges in respect of Government accommodation availed during the last ten years, false and contradictory statements about the liability with his wife towards Government dues and Non-disclosure about the contracts entered into with the Government of Arunachal Pradesh by the Proprietorship firms of him and his son. The petitioner's written objection being part of the record, the deponent has no comment to make with regard to the same. However, it is stated that all the aforementioned 6(Six) grounds taken by the petitioner in his written objection are not legally and factually sustainable for that, the Returning Officer, 44-Tezu(ST) AP Legislative Assembly Constituency, acted correctly in rejecting the said written objection.

9. That, so far as the first ground taken in Paragraph 11(i)(ii)(vii)(viii) pertaining to the Non-disclosure of the assets of the mother (land owned by the mother) in the affidavit filed with the nomination paper is concerned, the allegations is that the mother is dependent upon the deponent, it appears that the election petitioner is imposing the mother of the deponent to prove that she is dependent of the deponent by wrong interpretation of the election rules. Therefore, the entire burden of proof lies upon the election petitioner to prove his case beyond reasonable doubt with

material documents so as to establish that, the mother of the deponent is dependent of the deponent, who has her own sources of income to sustain herself. Therefore, she is not dependent of the deponent resulting into not declaring the mother as one of the dependent in Form 26. Hence, the allegation as so alleged does not stands scrutiny of law.

10. That, so far as the second ground taken in Paragraph 11(v) and (vi) for Non-disclosure of the Vehicles owned by the Deponent, his wife and son are concerned, it is admitted that, vehicles as mentioned in the Table-C are owned by the Deponent, his wife and son, however, it is categorically elucidated that, when the same objection was brought before the Returning Officer, 44-Tezu(ST) AP Assembly Constituency, it was specifically through an application informed to the Returning Officer about the aforesaid vehicles that, it has been sold, gifted and disposed off. Hence, on being satisfied with the explanation made by the deponent the objection raised by the Petitioner during the time of the Scrutiny was negated.

In regards to the Vehicle no. AR-11-2246(Hero Honda D Delux), mentioned in Table C, Sl. no. 1, it is admitted that, it was registered in the name of the deponent, however, it was gifted to one Shri Satyanarayan Pareek by executing a Gift Deed dated 28.03.2014. By handing over all the valid documents viz Original Registration book, filled Form-29 and Form 30 for transferring the ownership right. As such, on the believe that, he might have transferred the vehicle in his name on the basis of the Gift Deed executed between them and filled Form-29 and 30, accordingly, the deponent didn't disclose about the said vehicle in Form 26.

In regards to the Vehicle no. AR-11-4474(Kinetic Zing Scooty), mentioned in Table C, Sl. no. 2, it is admitted that, it was registered in the name of the deponent's wife who is one of the Defendant in form 26, however, the said two wheeler is no longer in her possession since 2009, as because, it was disposed off and converted to scrap material as it was beyond economical repair rendering totally unusable due to normal wear and tear. Therefore, since, it was disposed off and converted to scrap material ten years back, accordingly, same was categorically clarified by the Deponent before the Returning Officer, when it was objected by the Petitioner vide letter dated 26.03.2019(Annexure-3). Now, the concern authority vides order no. LD/DTO-02/2015-19 dated 20.09.2019, has cancelled the Registration Certificate of the Vehicle bearing no. AR-11-4474(Scooty) as per the inspection report submitted by the MVI/Foreman, Tezu dated 13.09.19. Therefore, since, the said vehicle was not in the possession of the wife of the deponent, accordingly, it was not disclosed in the Form-26.

In regards to the Vehicle no. AR-11A-3100(Van, Maruti Omni Ambulance) mentioned in Table C, Sl.no. 3, it is admitted that, it was registered in the name of the deponent's wife(Smti Bagilu Kri) who is one of the Defendant in form 26, however, the said Vehicle was already sold to one Shri Roshan Verma by executing a Sale Deed dated 28.03.2014, by handing over all the valid documents viz Original Registration book, filled Form-29 and Form 30 for transferring the ownership right. As

such, on the basis of the sale deed the ownership was already transferred to Shri Roshan Verma on 16.01.2018. Since, the Vehicle is not in the possession of the deponent's wife therefore, the question of disclosing the same in Form-26 does not arise, accordingly, the same was categorically clarified by the Deponent before the Returning Officer, when it was objected by the Petitioner vide letter dated 26.03.2019(Annexure-3).

In regards to the Vehicle no. AR-11A-6851(TVS Star City Motorcycle) mentioned in Table C, Sl.no. 3, it is admitted that, it was registered in the name of the deponent's son(Shri Goshinso Kri) who is one of the Defendant in form 26, however, it was gifted to one Shri Kiran Kumar Rai by executing a Gift Deed dated 30.04.2014, by handing over all the valid documents viz Original Registration book, filled Form-29 and Form 30 for transferring the ownership right.

11. That, so far as the third ground taken in Paragraph 11(ix)(x)(xi) pertaining to the Non-disclosure of the occupation of accommodation provided by the Government at any time during the last ten years before the date of the current election. In this regard, it categorically clarified that, it is admitted that, before 2014 the deponent was in occupation of Government Accommodation at MLA Cottage No. 1, Itanagar, however, after the deponent lost the election in 2014, the said Government accommodation was vacated respectively. As such, while filing nomination paper for the General Election 2014 to the State Legislative Assembly of Arunachal Pradesh held in April 2014, the Deponent had obtained all the required no dues certificate from the Legislative Assembly, PHE, Power, BSNL etc after clearing all the dues and it was submitted along with the nomination paper. In view of the fact that, there were no outstanding dues relating to Government Accommodation against the Deponent, accordingly, at the time of filing of nomination in General Election 2019 to the State Legislative Assembly the deponent did not disclose about the same. Moreover, the same was informed to the Returning Officer; by way of Affidavit for undertaking dated 22.03.2019, similarly, another affidavit cum declaration dated 02.09.2019, is also sworn before the Magistrate.

12. That, so far as the third ground taken in Paragraph 11(xiii)(xiv)(xv)(xvi) pertaining to the non disclosure of the details of contracts with appropriate government is concern, the deponent, would like to elucidate that, although the deponent is the proprietor of M/S KK Metals, however, he does not have any subsisting contract with any department in the State of Arunachal Pradesh since 2014, in this regard, the deponent would like to rely on several "No Contract Certificates" issued by various department, which clearly goes to show that, not a single contractual work was subsisting in the name of M/S KK Metals with the Government of Arunachal Pradesh, before the filing of nomination paper. Therefore, there is no any subsisting contract/agreement in the name of Deponent as on date. Therefore, the objection regarding the false declaration and not disclosing the details of contract doesn't have iota of truth. Hence this ground is devoid of substance and merit.

Likewise, the ground taken for the non-disclosure of contractual agreement with the Government of Arunachal Pradesh by one of his defendant (Shri Oshinso Kri) proprietor of M/S Matai Communication and Printing is concern, it is pertinent to inform that, aforesaid firm is being fully own by the Legal Attorney Holder Shri Rajen Shrestha duly registered vide registration nu. 225/06 dated 03.04.2006. Henceforth, the Attorney Holder Shri Rajen Shrestha is entirely liable for all losses or profits incurred in course of business transactions. Besides, income from Matai communication and printings is also being declared in the ITR-V in the name of Mr. Rajen Shrestha (GPA Holder). More importantly, in the name of the said firm there is no subsisting contractual work with any appropriate Government agencies 5(five) years retrospectively. Thus, the grounds as alleged by the petitioner is purely based on summaries and conjectures. Therefore, same cannot be ground for rejection of nomination papers of the deponent."

9. On the basis of rival pleadings made by the petitioner and the respondent No. 1, this Court vide order, dated 26.07.2021, had framed the following 9(nine) issues for determination:

"(1). Whether there has been a non-disclosure of ownership of Hero Honda CD Dawn Motorcycle owned by the returned candidate, Shri Karikho Kri bearing registration No. AR-11-2446; Kinetic Zing Scooty owned by the wife of the returned candidate, Smti. Bagilu Kri bearing registration No. AR-11-4474; Van, Maruti Omni Ambulance owned by the wife of the returned candidate, Smti. Bagilu Kri bearing registration No. AR-11A-3100 and TVS Star City Motorcycle owned by Shri Goshinso Kri, the son of the returned candidate Shri Karikho Kri bearing registration No. AR-11-6581, as is required to be disclosed under Clause 7(vi) of the Conduct of Election Rules, 1961, rendering the nomination of the returned candidate invalid?

(2). Whether there has been a non-disclosure of ownership of non-agricultural land belonging to the mother of the respondent No. 1, Smti. Kandula Kri, for which a land measuring 50,000 sq. Mtrs, in Jalukbari village, Lohit District, in respect of which LPC No. 36 vide Order No. LRE-5548/10/36 dated 26.07.2010 have been allegedly issued by the Deputy Commissioner, Lohit District, in the name of Smti. Kandula Kri,

the mother of the respondent No. 1 as is required to be disclosed under Clause 7(B) of the Conduct of Election Rules, 1961?

(3). Whether Smti. Kandula Kri, the mother of the respondent No. 1, is a dependent of the respondent No. 1, Karikho Kri?

(4). Whether there has been a non-submission of no dues certificate with regard to Electricity Charges required to be submitted under Clause 8(ii)(b) of Form No. 26 of the Conduct of Election Rules, 1961, as the respondent No. 1 was in occupation of MLA Cottage No. 1 at 'E' Sector, Itanagar, from the year, 2009-2014, while the respondent No. 1 was an MLA of Tezu(ST) Assembly Constituency during the year, 2009-2014?

(5). Whether the statements made by the respondent No. 1 about the liability of himself and his wife in respect of Municipal Tax, Property Tax, due and grand total of all govt. dues against Serial No. 6 & 8 of the table in Para-8(A) of the affidavit in Form No. 26 appended to the nomination paper of the respondent No. 1 has rendered the nomination of respondent No. 1, defective?

(6). Whether the non-disclosure of assets both movable and immovable belonging to the respondent No. 1, his wife, his mother and his two sons in the affidavit in Form No. 26 appended to the nomination paper amounted to commission of corrupt practice of undue influence within the meaning of Section 123(2) of the Representation of the People Act, 1951?

(7). Whether the election of respondent No. 1 to the 44-Tezu(ST) Assembly Constituency is liable to be declared void under Section 100(1)(d)(i) of the Representation of the People Act, 1951?

(8). Whether the nature of non-disclosure alleged by the Election petitioner is of a substantial nature effecting the election of the returned candidate/respondent No. 1?

(9). What consequential relief the petitioner is entitled to, if any?"

10. The election petitioner has examined 7(seven) witnesses including himself as PW 7 which are, noted, as under:

- (1). PW 1 Shri Damchin Norbu, is the in-charge, District Land Revenue & Settlement Officer, Lohit District.
- (2). PW 2 Shri Techit Tukap, is the District Transport Officer, Lohit District.
- (3). PW 3 Shri Khangshung Jugli, is the Deputy Secretary, Legislative Assembly, and was the Assistant Public Information Officer at the relevant point of time.
- (4). PW 4 Shri Kajal Karmakar, is the Returning Officer of 44-Tezu(ST) Assembly Constituency.
- (5). PW 5 Shri Krimso Tayang, is the election agent of the election petitioner.
- (6). PW 6 Shri Teli Mello Camdir, is the applicant who had filed the RTI application relating to the Government Accommodation allotted to respondent no. 1.
- (7). PW 7 Shri Nuney Tayang is the election petitioner.

Whereas, the respondent No. 1, in his defence, had tendered as many as 39(thirty nine) witnesses including himself as DW 1A. All the 39(thirty nine) defence witnesses except DW 11 to DW 17 and DW 19 to DW 22 have been examined. The defence witnesses who have been examined, are as follows:

- (1). DW 1A, Shri Karikho Kri, is the returned candidate of 44-Tezu(ST) Assembly Constituency.
- (2). DW/RW 1, Shri Satyanarayan Pareek, is the recipient of Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446 which was gifted by respondent no. 1, Shri Karikho Kri.

- (3). DW/RW 2, Shri Rajen Shrestha is one of the witnesses of the Gift Deed, dated 28.03.2014 in respect of Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11A/2446.
- (4). DW/RW 3, Shri Sunil Kumar Choudhury is the Office Clerk of the personal office of respondent no. 1, Shri Karikho Kri and is also one of the witnesses of the Gift Deed, dated 28.03.2014 in respect of Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446.
- (5). DW 4, Smti. Bagilu Kri, spouse of respondent no. 1, Shri Karikho Kri, is the registered owner of Kinetic Zing Scooty bearing Registration No. AR-11/4474, and, Maruti Van Omni Ambulance bearing registration No. AR-11A/3100.
- (6). DW 5, Md. Nizamuddin, deals in scrap business and had bought the Kinetic Zing Scooty bearing Registration No. AR-11/4474 from Smti. Bailu Kri.
- (7). DW 6, Shri Pramod Prasad, earlier dealt in scrap business and had bought the Kinetic Zing Scooty bearing Registration No. AR-11/4474 from Md. Nizamuddin.
- (8). DW 7, Shri Roshan Verma is a businessman and had purchased the Maruti Van Omni Ambulance bearing Registration No. AR-11A/3100; from Smti. Bagilu Kri, spouse of respondent No. 1, by executing a Sale Deed, dated 11.12.2017.
- (9). DW 8, Shri Duyu Ribya was the Judicial Magistrate First Class, Tezu, before whom the Sale Deed, dated 11.12.2017, was executed between Shri Roshan Verma and Smti. Bagilu Kri, spouse of respondent No. 1, in respect of the Maruti Van Omni Ambulance bearing Registration No. AR-11A/3100.
- (10). DW/RW 9, Shri Goshinso Kri, son of respondent no. 1, was the registered owner of TVS Star City Motorcycle bearing Registration No. AR-11/6851, which was gifted by him to Shri Kiran Kumar Rai, vide Gift Deed, dated 30.04.2014.
- (11). DW/RW 10, Shri Kiran Kumar Rai, an employee of Oshin Hotel, owned by Shri Oshinso Kri, son of respondent no. 1; had been gifted with the TVS Star City Motorcycle bearing Registration No. AR-11/6851, by Shri Goshinso Kri, vide Gift Deed, dated 30.04.2014.

- (12). The evidence-in-chief of DW 11 has been closed vide order, dated 16.01.2023, as the respondent no. 1 had failed to produce the DW 11 in terms of the order, dated 05.01.2023.
- (13). The evidence-in-chief of DW 12 has been closed vide order, dated 16.01.2023, as the respondent no. 1 had failed to produce the DW 12 in terms of the order, dated 05.01.2023.
- (14). The evidence-in-chief of DW 13 has been closed vide order, dated 16.01.2023, as the respondent no. 1 had failed to produce the DW 13 in terms of the order, dated 05.01.2023.
- (15). The evidence-in-chief of DW 14 has been closed vide order, dated 16.01.2023, as the respondent no. 1 had failed to produce the DW 14 in terms of the order, dated 05.01.2023.
- (16). The evidence-in-chief of DW 15 has been closed vide order, dated 16.01.2023, as the respondent no. 1 had failed to produce the DW 15 in terms of the order, dated 05.01.2023.
- (17). The evidence-in-chief of DW 16 has been closed vide order, dated 16.01.2023, as the respondent no. 1 had failed to produce the DW 16 in terms of the order, dated 05.01.2023.
- (18). The evidence-in-chief of DW 17 has been closed vide order, dated 16.01.2023, as the respondent no. 1 had failed to produce the DW 17 in terms of the order, dated 05.01.2023.
- (19). DW 18, Shri Sukhamay Bhowmik, the Finance & Accounts Officer of Legislative Assembly, had issued the No Due Certificates, dated 10.03.2014 and 06.09.2019, to respondent no. 1.
- (20). The evidence-in-chief of DW 19 has been closed vide order, dated 16.01.2023.
- (21). The evidence-in-chief of DW 20 has been closed vide order, dated 16.01.2023.
- (22). The evidence-in-chief of DW 21 has been closed vide order, dated 16.01.2023.
- (23). The evidence-in-chief of DW 22 has been closed vide order, dated 16.01.2023.

- (24). DW 23, Shri Inkrilu Towshik, a government employee, is the daughter of Smti. Kandula Kri, mother of respondent no. 1.
- (25). DW 24, Shri Manoj Chakraborty, is running the M/s Tezu Fair Price Shop, at Minister Line, Tezu, against the licence of Smti. Kandula Kri, mother of respondent no. 1, till June, 2020, for a monthly rent of Rs. 5,000/-.
- (26). DW 25, Shri Lal Babu Sah, is running the M/s Tezu Fair Price Shop, at Minister Line, Tezu, against the licence of Smti. Kandula Kri, mother of respondent no. 1, w.e.f. July, 2020, for a monthly rent of Rs. 5,000/-.
- (27). DW 26, Shri Tomo Gamlin, is the District Food & Civil Supply Officer, Tezu, since 01.11.2017, who had deposed that license against M/s Tezu Fair Price Shop, at Minister Line, Tezu, was issued by the Deputy Commissioner, Tezu, in 2006, in the name of Smti. Kandula Kri.
- (28). DW 27, Shri Deep Narayan Patel, is running the M/s K. K. Wine Shop, Shivaso Market, Tezu, against the licence of Smti. Kandula Kri, mother of respondent no. 1, for a monthly rent of Rs. 5,000/-.
- (29). DW 28, Shri Ranjit Kumar Ray, is an employee of M/s K. K. Wine Shop, Shivaso Market, Tezu, which is run by Shri Deep Narayan Patel, against the licence of Smti. Kandula Kri, mother of respondent no. 1, for a monthly rent of Rs. 5,000/-
- (30). DW 29, Shri Mibom Kaye, is the Superintendent, Tax, Excise & Narcotics, Lohit District, Tezu, w.e.f. 18.08.2020.
- (31). DW 30, Shri Satyabrata Kar, is running the M/s Life Care, a chemist shop, located near Zonal General Hospital, Tezu, against the licence of Smti. Kandula Kri, mother of respondent no. 1, for a monthly rent of Rs. 3,000/-.
- (32). DW 31, Shri Jayanta Chatterjee, is running the M/s Maa Medico, a chemist shop, located near Zonal General Hospital, Tezu, against the licence of Smti. Kandula Kri, mother of respondent no. 1, for a monthly rent of Rs. 2,000/-.
- (33). DW/RW 32, Shri Konteso Kri, was one of the candidates who had later on withdrawn his candidature for election to the 44-Tezu(ST) Assembly Constituency held in the year 2019.

- (34). DW/RW 33, Shri Philos Kri, was the election agent of respondent No. 1 for 44-Tezu(ST) Assembly Constituency held in 2019.
- (35). DW/RW 34 Shri Drengso Pul, was one of the proposers of respondent No. 1 for 44-Tezu(ST) Assembly Constituency held in 2019.
- (36). DW/RW 34A, Shri Balong Tindya, was one of the proposers of respondent No. 1 for 44-Tezu(ST) Assembly Constituency held in 2019.
- (37). DW/RW 35, Shri Santosh Singh, was one of the proposers of Shri Konteso Kri for 44-Tezu(ST) Assembly Constituency held in 2019 and also the counting agent for respondent No. 1.
- (38). DW/RW 36, Shri Deben Linggi, was one of the counting agents of respondent No. 1 for 44-Tezu(ST) Assembly Constituency held in 2019.
- (39). DW/RW 37, Shri Bawemso Tayang, was one of the counting agents of respondent No. 1 for 44-Tezu(ST) Assembly Constituency held in 2019.

11. The learned senior counsels appearing on behalf of the election petitioner and respondent No. 1, have made elaborate arguments on each of the issues framed by the Court and have filed their written arguments/synopsis of arguments, also. For the sake of convenience, the arguments advanced by the learned senior counsels for the petitioner as well as respondent No. 1, on each of the issues, are separately discussed hereunder, and answered accordingly:

ISSUE NO. 1

12. Issue No. 1 pertains to non-disclosure of 4(four) vehicles allegedly owned by the respondent No. 1; his spouse and son, respectively, in Form 26 of the Conduct of the Election Rules, 1961, which are as under:

- I. Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446, registered in the name of respondent No. 1.
- II. Kinetic Zing Scooty bearing Registration No. AR-11/4474, registered in the name of Smti. Bagilu Kri, spouse of respondent No. 1.
- III. Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100; registered in the name of Smti. Bagilu Kri, spouse of respondent No. 1.
- IV. TVS Star City Motorcycle bearing Registration No. AR-11/6851, registered in the name of Shri Goshinso Kri, son of respondent No. 1.

13. For the sake of convenience and clarity, the contentions advanced by the learned senior counsels appearing on behalf of the petitioner and respondent No. 1, respectively, for each of the vehicles mentioned above, are discussed and answered separately.

I. Hero Honda CD Dawn Motorcycle bearing Reg. No. AR-11/2446:

13(i). Submissions made by the learned senior counsel for the petitioner as per written argument filed:

"AR-11A-2446(Hero Honda CD Deluxe)

DW-1A(respondent No. 1) in his evidence admitted that "vehicle AR-11A-2446(Hero Honda CD Deluxe) was purchased by him in his name and was gifted to one Shri Satyanarayan Pareek by executing a Gift Deed, dated 28.03.2014(Ext. R/1), all the relevant documents along with the form 29 and 30 were handed over to him for transferring the ownership in his name.

DW-1 Shri Satya Narayan Pareek stated that "I had not transferred the ownership / registration certificate in my own name and further request me to transfer the aforesaid Motorcycle in my name" The variation in registration of the motor cycle as recorded in the evidence-in-chief and RC book is because of the typographical error in examination-in-chief. Ext. 20 is the new RC book given to me by the DTO Tezu. This certificate Ext.20 was issued to me on 12.09.2019.

DW-2 deposed that "while executing the gift documents as Ext. R/1 and R/2,.... on 28.03.2014 and 30.04.2014, there was no delivery of possession of any vehicles."

13(ii). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

I. RTI reply of the DTO(PW-2):- (Annexure-11) "Exhibit No. 5 in Vol. No. III Page 291" is the basis of raising this allegation.

II. But the RTI reply of the E.P. is in respect of a motorcycle bearing Registration No. AR-11-A-2446, and not AR-11-2446, as pleaded in "Table-C Sl. No. 1" of Election Petition. Election Petitioner nowhere, states that Motorcycle bearing Registration No. AR-11-2446 (as stated in Table-C Sl. No. 1"), and AR-11A-2446(as per Annexure-12 and Annexure-12A of the E.P.) is the one and the same vehicle. No evidence has also been led by the prosecution, more particularly, by the DTO(PW 2) that these two vehicles are in fact one and the same. Hence, there is no basis of the allegation raised at Page 13 "Table-C, Sl. No. 1" of the Election Petition regarding the motorcycle bearing Registration No. AR-11-2446.

On the contrary, the Prosecution witness i.e., PW-2(Shri Techit Tukap, D.T.O.) in his cross-examination instead of supporting his purported R.T.I. Reply@ Page 2020 & 203 of Election Petition(Annexure 12 & 12-A of Election Petition, Exhibit No. 6(2)) speaks of a third vehicle bearing Registration No. AR-11-A-2466, making the Annexure 12 & 12-A wholly unreliable and as a result the allegation @page 13 "Table-C, Sl. No. 1" becomes foundation less. Furthermore, the said D.T.O., @ page 117, appearing for the Prosecution supports the Returned Candidate by deposing that the Returned Candidate gifted his motorcycle bearing Registration No. AR-11A-2446 to Shri Satyanarayana Pareek (DW-1) on 24.03.2014.

Order VI Rule 14(i) of the Code of Civil Procedure provides for production of documents on which the Plaintiff places reliance in his suit; But in the Election Petition, even though the Election Petitioner produces the Annexure 12 & 12-A(R.C.) as a document in support of his allegation/pleading @page 13 Table-C, Sl. No. 1, but the vehicle (Hero Honda CD Dawn Motorcycle) mentioned in the R.C.[Exhibit 6(3) Vol.III, Page 292) speaks of a different registration number and not the one mentioned @page 13 Table-C, Sl. No. 1 of the Election Petition.

- From above, it is seen that the R.T.I. reply(Annexure 11 and document Annexure-12A, the R.C. which is Claimed as the basis of non disclosure as per the election petitioner, cannot be treated as a cogent and reliable material.

As per the Hon'ble Apex Court, material facts(pleading) together with cogent and reliable materials can only constitute cause of action. Relied on, Church of Christ Charitable Trust & Educational Charitable Society Versus Ponniannan Educational Trust, 2012 (8) SCC page 706, para 13 and 15.

- In the case of MARIA MARGARIDA SEQUEIRA FERNANDES & ORS VERSUS ERASMO JACK DE SEQUEIRA(DEAD), (2012) 5 SCC page 370, Para 71 to 76. The Hon'ble Apex Court highlighted that suspicious pleadings, incomplete pleadings and pleadings not

supported by documents would not even warrant issues to be settled by making following observation:-

"From Para 71. Apart from these pleadings, the Court must insist on documentary proof in support of the pleadings. All those documents would be relevant which come into existence after the transfer of title or possession or the encumbrance as is claimed. While dealing with the civil suits, at the threshold, the Court must carefully and critically examine pleadings and documents.

From Para 72. The Court will examine the pleadings for specificity as also the supporting material for sufficiency and then pass appropriate orders.

From Para 73. Discovery and production of documents and answer to interrogatories, together with an approach of considering what in ordinary course of human affairs is more likely to have been the probability, will prevent many a false claims or defences from sailing beyond the stage for issues.

From Para 74. If the pleadings do not give sufficient details, they will not raise an issue, and the Court can reject the claim or pass a decree on admission.

From Para 75. On vague pleadings, no issue arises. Only when he so establishes, does the question of framing an issue arise. Framing of issues is an extremely important stage in a civil trial. Judges are expected to carefully examine the pleadings and documents before framing of issues in a given case."

- (2) The effect of variance between pleadings and evidence - Such evidence which is at variance with the pleadings of the party, cannot be relied upon and moreover, an adverse inference is to be drawn when the pleadings and evidence are self-contradictory. *Kashi Nath vs. Jag Nath*, (2003) 8 SCC 740, Para 17.
- (3). Pleadings not as substitute for proof - Mere pleadings of a party cannot be treated as a substitute for proof. Relied on, *Manager, Reserve Bank of India, Bangalore Vs. S. Mani*, (2005) 5 SCC 100, (Three-Judge Bench). Headnote F and G, para 28, 30, 31.
- (4) Effect of Withholding material evidence. If a party withholds from court the best evidence or some material evidence (document) or witness, adverse presumption against such party can be drawn u/s 114(g) of the Evidence Act. See: *M/s. Sri Ram Industrial Enterprises Ltd. vs. Mahak Singh*, 2007 (4) SCC page 94.
- (5) Failure to prove a defence does not discharge the initial burden of proof: Failure to prove his defence by the defendant does not discharge or reverse initial burden of proof of his case by the plaintiff. Relied on, *Manager, Reserve Bank of India, Bangalore vs. S. Mani*, (2005) 5 SCC100 (Three-Judge Bench).

- (6) Plaintiff bound to prove his case even when the defendant fails to prove his case: The plaintiff must succeed on the strength of his own case. This can be done by adducing sufficient evidence to discharge the onus that is on him irrespective of whether the defendant has proved his case or not. A mere destruction of the defendant's title, in the absence of establishment of his own title carries the plaintiff nowhere. In order to succeed in his suit, the burden u/s 101, 102, 103 Evidence Act to prove his case lies upon the plaintiff. Relied on, M.M.B. Catholicos vs. M.P. Athanasius, AIR 1954 SC 526 (Three-Judge Bench).
- (7) In the present case, the R.T.I. applicant (PW-5, Shri Krimso Tayang) in his evidence-in-Chief (Vol. II, Page 128 Para 3) stated that he obtained the R.C. Copies from the D.T.O. But the D.T.O. (PW-2), who was also called in as a prosecution witness to support the R.C. Copies, speaks of some other Hero-Honda Motor cycle and fails to prove the R.C. copies annexed to the Election Petition as per Indian Evidence Act.

Relied on (2003) 8 SCC page 745 para 16 (page 751) Narbada Devi Gupta versus Birendra Kumar Jaiswal. In this case, it was held, inter alia, by the Hon'ble Apex Court that mere production and marking of a document as exhibit by the Court cannot be held to be a due proof of its contents.

- (8) Putuli Das versus Dina Nath Talukdar (2008) 4 GLR (Guwahati Law Reports) page 145 para 12 (@page 149) The Plaintiff must stand on its own legs.

In the instant case, even though the Election Petitioner the "INC" Candidate, as stated above, has failed to discharge his burden of proving his pleaded case that the Returned Candidate failed to disclose his Hero Honda Motor Cycle, the pleaded uncontroverted case of the Returned Candidate in this regard is as follows: -

(a) In the Written Statement at Page 11 Para 2, the returned candidate states that the Hero Honda motorcycle was gifted to one Shri Satyanarayan Pareek by a gift deed dated 28.03.2014 along with all the valid documents viz Original Registration Book and filled up Form 29 and 30 for transferring the ownership right. Gift Deed Exhibit No. R/1 (Vol. III, Page No. 347).

(b) Evidence of the Returned Candidate (DW 1-A) on this issue is at "Vol. II, Page 160, Para 9" confirming the said Gift Deed dated 28.03.2014 against his Hero Honda CD Deluxe Motorcycle. Accordingly, during general assembly election 2019 "No Dues Certificate issued by DTO Tezu vide No. DTO/LD/NDC/082/2019 dated 14-03-2019".

(c) Shri Satyanarayan Pareek (DW — 1): - Who received the said Hero Honda Motorcycle as a Gift @ Vol. No. II, Page 180 to 185, confirms receiving of the said Motorcycle bearing Registration No. AR-11-A-2446 on 28.03.2014 as a gift from the Returned Candidate. He further confirmed the receiving of the said Motorcycle along with all original relevant documents with Form 29 & 30

for transferring the ownership right in his own name (@ Para No. 2, Vol. II, Page 181).

This DW-1, further admits that due to his inadvertent and mistake he had not transferred the ownership of the said motorcycle in his own name instead of receiving all relevant documents along with Form 29 & 30 for the said purpose (Para 3, Vol. II, Page 181).

He further explained the reason for not transferring the ownership right as he was in his home town in Rajasthan for a prolong period of time and his wife was suffering from illness (Para 5, Vol. II, Page 182).

The Hon'ble Supreme Court of India in the case of: -

"Purna Kala Devi v. State of Assam" (2014) 14 SCC 142" held that "A Vehicle was requisitioned by the Assam Government. It was involved in an accident when it was under requisition. The question was who was the owner and who was liable to pay compensation to the claimant. The High Court was guided by the statutory definition set out under section 2 (30) of the Motor Vehicle Act and held the owner to be liable. The Hon'ble Supreme Court interpreted the said expression and observed that the High Court failed to appreciate the legislative intention that the registered owner of the vehicle should not be held liable if the vehicle was not in his possession and control.

This decision by three Judge Bench of the Hon'ble Supreme Court has been specifically followed in the decision reported in 2015 (3) SCC 679 (HDFC Bank Limited Vs. Reshma and Others). Invoking the theory of possession and control which was applied by quite a few High Courts earlier, the aforesaid two decisions held that the registered owner is not liable".

If we referred to the Rule 55 (3) of the Central Motor Vehicles Rules, 1988 we find that "application for transfer of ownership of motor vehicle under section 50 (1) (a) (ii) shall be made by the transferee in Form 30 who should remit the fee prescribed in Rule 81. It is thus clear that though as per Section 50 (6) of the Motor Vehicle Act, the registering authority may cause the transfer of ownership to be entered in the Certificate of Registration on receipt of report under Section 50 (1) or on an application under Section 50 (2), for all practical purposes, the name change can occur in the Registration Certificate Book only if the transferee submits an application in Form 30 along with the specified documents and fee. Though Section 50 of the Motor Vehicle Act talks about the report under Section 50 (1) or an application under Section 50 (2), Rule 55 (2) and (3) of the Central Motor Vehicle Act, 1989 categorically state that an application for transfer of ownership of motor vehicle shall be made by the transferee in Form 30 whether it is under Section 50 (1) (a) (i) or under Section 50 (1) (a) (ii). In the case of application filed under Rule 55 (2) Form 30 shall be accompanied by the certificate of

registration, certificate of insurance and appropriate fee as specified in Rule 81.

Therefore, from the above facts and ruling in hand, it is precisely made clear that the transferee shall be solely liable for transferring the ownership and Registration Certificate in his own name and in no circumstances the transferor be made liable for the same.

Whereas, in the present case it is reveal from the depositions of both the Returned Candidate (DW-1A) and Shri Satyanarayan Pareek (DW-1) that all the relevant documents and Form 29 and 30 were handed over to the Transferee the DW-1 of this instances case for transferring the ownership right of the instance Motorcycle bearing Registration No. AR-11A-2446. And it is only because of the fault on the part of the Transferee the DW-1 the said Motorcycle could not be transferred in due course of time.

(d) Shri Rajen Shrestha (DW-2): - He was a witness to the Gift Deed date 28.03.2014 of the Hero Honda CD Deluxe Motorcycle bearing Registration No. AR-11A-2446 of the Returned Candidate. He confirms the said Gift Deed dated 28.03.2014 of the Hero Honda CD Deluxe Motorcycle bearing Registration No. AR-11A-2446 in favour of Shri Satyanarayan Pareek (DW-1) and all the relevant documents of the said motorcycle were handed over to the DW-1 (Shri Satyanarayan Pareek) for transferring the ownership right from DW-1A (the Returned Candidate) to DW-1 (Shri Satyanarayan Pareek). (Vol. II, Para 1 page 186 to 187 and Para 3 page 187 to 188).

(e) Shri Sunil Kumar Chaudhary (DW-3): - He too was a witness to the Gift Deed date 28.03.2014 of the Hero Honda CD Deluxe Motorcycle bearing Registration No. AR-11A-2446 of the Returned Candidate in favour of Shri Satyanarayan Pareek "DW-1". He confirms the said Gift Deed dated 28.03.2014 of the Hero Honda CD Deluxe Motorcycle bearing Registration No. AR-11A-2446 in favour of DW-1 and all the relevant documents of the said motorcycle were handed over to the DW-1 (Shri Satyanarayan Pareek) for transferring the ownership right from DW-1A (the Returned Candidate) to DW-1 (Shri Satyanarayan Pareek). (Vol. II, Para 2 and 3 page 192 to 193)

(f) Shri Nuney Tayang the Election Petitioner (PW-7): in his deposition during cross-examination (@ page 154 para 4, Vol II) -He deposed that he was not aware of the fact that the Returned Candidate has Gifted his Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11-2446 to Shri Satyanarayan Pareek. That means the Election Petitioner could not deny the fact of the said Gift.

Section 50 (1)(b) read with Section 50 (3) of the Motor Vehicle Act, 1988 provides that the transferee is supposed to report the transfer to the Registering Authority (D.T.O.), failing which u/s 50 (3), the Registering

Authority has power to impose late fine not exceeding rupees one hundred. Section 50 (3) of the Motor Vehicle Act does not provide that in case the transferee is late in informing the D.T.O., such transfer shall be void.

(g) The DTO Shri Techī Tukap (who was called by the prosecution as PW 2) has also confirms the Gift Deed dated 24.03.2014 against Hero Honda CD Dawn Motorcycle of Shri Karikho Kri (the Returned Candidate) in favour of Shri Satyanarayan Pareek. Apart from this, he does not state in his entire evidence that Form 29 and Form 30 were not submitted before him by the transferee.

As such it can be presume that the Registering authority which was District Transport Office at Tezu had failed to made necessary change in the Register Book of the Vehicle owners in due time inspite of receiving the Form 29 and 30 from the Transferee Shri Satyanarayan Pareek the DW-1 in this instance case and as such at the time of filling the nomination paper of the Returned Candidate his name was still there in the Register Book of the Vehicle against the Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11A-2446 inspite of the submission of the form 29 & 30 for ownership transfer.

In the light of the aforesaid submissions, it is seen that the Election Petitioner while raising the allegation of non-disclosure of a Hero Honda Motor cycle of the Returned Candidate has sought to substantiate the allegation by relying on a document (Annexure - 12 and Annexure 12A of the Election Petition) which relates to another vehicle. Again the D.T.O. (PW-2) who comes in favour of prosecution as official witness in cross-examination has given evidence about a third vehicle number which is neither pleaded in the Election Petition nor mentioned in Annexure 12 and 12-A of the Election Petition as belonging to the Respondent No. 1 (the Returned Candidate). Thus, the Election Petitioner has failed to prove his own pleaded case by any cogent and reliable materials.

Moreover, the Respondent has proved with cogent and reliable evidence that he had already gifted his Hero Honda Motor Cycle bearing registration No. AR-11-A-2446 in 2014 in favour of Shri Satyanarayan Pareek (DW-1), by a Gift Deed execution of which is even admitted by the Donee (DW-1), DW-2 and DW-3 by their evidence and also by the D.T.O. (PW-2) who was the Election Petitioner's witness. As such the vehicle which was already not under the possession of the Respondent No. 1 at the time of filling his nomination paper and who was on the bona fide believe that it was owned by the DW-1, as such how could it presume that he should have to mentioned it in his Form 26 of his nomination paper.

Moreover, if we consider the provision of Section 19 of the Sale of Goods Act, 1930 read as follows: -

(1) Where there is a contract for the sale of specific or ascertained goods the property in them is transferred to the buyer at such time as the parties to the contract intend it to be transferred.

(2) For the purpose of ascertaining the intention of the parties regard shall be had to the term of the contract, the conduct of the parties and the circumstances of the case.

(3) Unless a different intention appears, the rules contained in section 20 to 24 are rules for ascertaining the intention of the parties as to the time at which the property in the goods is to pass to the buyer.

As, such it is understood that once the goods is sold then it becomes the property of the purchaser.”

Finding of the Court on Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446:

13(iii). The petitioner, in Paragraph No. 11(vi) Table C of the Election Petition, has stated that Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446 registered in the name of respondent No. 1 have not been disclosed by the respondent No. 1 in Form 26 filed along with his nomination paper.

13(iii)(a). In response to the above contention of the petitioner, the respondent No. 1, in paragraph No. 10 of the written statement filed, it has been stated that with regard to Hero Honda CD Deluxe bearing Registration No. AR-11/2246 mentioned in Table C, serial No. 1, it is admitted that it was registered in the name of No. 1, however, it was gifted to one Shri Satyanarayan Pareek by executing a Gift Deed, dated 28.03.2014(Ext. R/1), by handing over all the valid documents viz. Original Registration Book, filled Form 29 and Form 30 for transferring the ownership right of the vehicle, in question.

13(iii)(b). The DW 1A/respondent No. 1 Shri Karikho Kri, in his evidence in affidavit, in paragraph 9 thereof, insofar as non-disclosure of the vehicle/Hero Honda CD Deluxe bearing Registration No. AR-11A/2446, owned by him, is concerned; it has been stated that the same was gifted by him to one Shri Satyanarayan Pareek by executing a Gift Deed, dated 28.03.2014.

13(iii)(c). Shri Satyanarayan Pareek(DW 1), in his evidence in affidavit, has stated that on 28.03.2014; the respondent No. 1 had gifted him the motorcycle bearing Registration No. AR-11A/2246(Hero Honda CD Deluxe) by executing a Gift Deed, dated 28.03.2014, because of their long-term relationship/friendship. The respondent No. 1 had also handed over to him all the original relevant documents of the said motorcycle along with signed and filled Form 29 and Form 30 for transferring the ownership of the vehicle, in question, in his name.

13(iii)(d). In his cross-examination, Shri Satyanarayan Pareek(DW 1) has, however, stated that the registration number of motorcycle bearing Registration No. AR-11A/2246(Hero Honda CD Deluxe) is different from the registration number that he is producing today because that contains the registration number of Motorcycle bearing Registration No. AR-11A/2446. He has further stated in his cross-examination that the variation in the registration number of the motor cycle as recorded in the evidence in chief and the RC Book is because of the typographical error in the examination in chief. Ext. 20 is the new R.C. given to him by the District Transport Officer, Tezu, which was issued to him on 12.09.2019.

13(iii)(e). From the above, it can be seen that though the petitioner in paragraph No. 11 of the election petition has stated the Registration No. of motorcycle Hero Honda CD Deluxe as AR-11/2446, yet, the respondent No. 1, in paragraph No. 10 of the written statement filed, has not denied that the Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446 is not his vehicle registered in his name, rather, the respondent No. 1, in the written statement filed, in paragraph No. 10 mentioned above; has answered that the Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446 mentioned in Table C, serial No. 1, was registered in his name, which, however, was gifted to Shri Satyanarayan Pareek by executing a Gift Deed, dated 28.03.2014.

13(iii)(f). The respondent No. 1 Shri Karikho Kri/DW 1A, in his evidence-in-chief, has, however, referred to the vehicle number of Hero Honda CD Deluxe as AR-11A/2446, stating that the said vehicle was gifted to Shri Satyanarayan Pareek by executing a Gift Deed, dated 28.03.2014.

13(iii)(g). Shri Satyanarayan Pareek/DW 1, in his evidence-in-chief, has stated that respondent No. 1 had gifted his Hero Honda CD Deluxe bearing registration No. AR-11A/2246 by executing a Gift Deed, dated 28.03.2014. He, however, in his cross-examination, has stated that the registration number mentioned in paragraph No. 2 of the evidence-in-chief filed, in affidavit; is different from the registration number in the certificate of registration that he is possessing and produced in the Court which contains registration number of AR-11A/2446. He further stated that the variation in the registration number of the motorcycle as recorded in the evidence-in-chief and the RC Book is

because of the typographical error in the examination-in-chief. He also stated that Ext. 20 is the new RC given to him by the District Transport Officer, Tezu, which was issued to him on 12.09.2019.

13(iii)(h). PW 2, Shri Techit Tukap, District Transport Officer, Tezu, has stated in his examination-in-chief, that in response to an application submitted by Advocate Shri Krimso Tayang, seeking information/documents, he had furnished certain documents relating to the registration of certain motor vehicles standing in the name of the registered owner thereof. He further stated that Ext. 5 is the forwarding letter by which the documents were furnished and Ext. 5(1) is his signature. Ext. 5 was issued by him on 11.03.2019. Ext. 6 contains 4(four) sheets containing the names of vehicles and their registered owners with the Office of the District Transport Officer, Tezu. Ext. 6(1) is the name of respondent No. 1 Shri Karikho Kri. Ext. 6(2) is the registration number i.e. AR-11A/2446. Ext. 6(3) is the class of vehicles registered in the name of respondent No. 1 Shri Karikho Kri as Hero Honda CD Dawn. Ext. 6(4) is the date of registration i.e. 06.06.2007. Ext. 6(5) is his signature. According to him, Ext. 5 and Ext. 6 series documents have been furnished by him based on the official record maintained in the Office of the District Transport Officer, Tezu, Lohit District. He, however, in his cross-examination has stated that vehicle bearing AR-11A/2466 is registered in the name of respondent No. 1 Shri Karikho Kri as Hero Honda CD Dawn motorcycle. He has further stated that it is within his knowledge that the vehicle Registration No. AR-11A/2446 registered in the name of respondent No. 1 Shri Karikho Kri i.e. Hero Honda CD Dawn was gifted to Shri Satyanarayan Pareek by Gift Deed, dated 28.03.2014, and as per inspection

report, dated 13.09.2019, he had cancelled the registration certificate of AR-11A/2466 vide order, dated 20.09.2019, issued under Memo. No. LD/DTO-02/2015-19.

13(iii)(i). From the above evidence brought on record by the parties; at least, 2(two) types of vehicles namely Hero Honda CD Dawn motorcycle and Hero Honda CD Deluxe motorcycle and as many as 4(four) different registration numbers i.e. AR-11/2446; AR-11A/2446; AR-11A/2246 and AR-11A/2466, stated to be registered in the name of respondent No. 1, have come to light.

13(iii)(j). Accordingly, the petitioner has not been able to prove which of the vehicle and bearing which registration number, registered in the name of the respondent No. 1, has not been disclosed by the respondent No. 1 in Form 26 of the Conduct of the Election Rules, 1961.

II. Kinetic Zing Scooty bearing Registration No. AR-11/4474:

13(iv). Submissions made by the learned senior counsel for the petitioner as per written argument filed:

"AR-11-4474 Kinetic Zing Scooty:

PW-2 deposed that Ext-6 (6) is the registration number AR-11-4474, Ext-6 (7) is the class of vehicle i.e., Kinetic Zing Scooty. Ext-6(8) is the name of the registered owner i.e Bagilu Kri, as per inspection report dated 13.09.2019 submitted by Motor Vehicle Inspector, Lohit District, Tezu, he had cancelled the registration certificate of AR-11A-2466 (AR-11-4474) vide order dated 20.09.2019 and order No. LD/DTO-02/2015-19,

DW-1A (Respondent No.1) stated in his chief that "I am to state that vehicle No.AR-11-4474 (Kinetic Zing Scooty), as mentioned in table C SI. No.2, was registered in the name of my wife Smti. Bagilu Kri"

Dw-4 Bagilu Kri deposed that "pursuant to the letter dated 29.08.2019, on the direction of the District Transport Officer, Tezu visited my house to enquire about the vehicle and on the basis of my information the report dated 13.09.2019 was submitted, while relying on the report dated 13.09.2019, the registration certificate of my vehicle number AR11-4474 was cancelled"

DW/Rw-6 deposed in his evidence that "though in affidavit of Examination-in-Chief I have stated that this scooty was purchased by me in the year 2009 from Nizamuddin but as per record, the actual owner Bagilu Kri paid the tax upto 26.03.2022."

13(v). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"I. RTI reply of DTO (Annexure - 13 of Election Petition), R.C. Copy purportedly issued by D.T.O. is the basis of this allegation.

II. The DTO (PW - 2, Shri Techit Tukap) coming as prosecution witness in his cross-examination at Paper Book Volume-II, Page 117, has confirmed the cancellation of Registration Certificate of Kinetic Zing Scooty bearing No. AR-11-4474 in the name of Smti Bagilu Kri, W/o Respondent No. 1. Whereas, in cross examination record, the number is mentioned as AR-11-A-2466 due to typographical error.

III. DW-1A, the respondent No. 1 in his Written Statement, admitted that the two wheeler No. AR-11-4474 (Kinetic Zinc Scooty) as mentioned in Table C SI. No. 2 was registered in the name of Smti Bagilu Kri (DW -4), W/o Respondent No. 1. The two wheeler is no longer in her possession since 2009 as it was given to Md. Nizamuddin on scrap and disposed off.

IV. The P.W.-5 (Shri Krimso Tayang) (R.T.I. applicant), coming as prosecution witness, at Page 133 @ para 2 rather supports the respondent case that Smti Bagilu Kri(DW-4), W/o Respondent No. 1, Scooty was beyond repairable condition and the registration of Scooty was also cancelled.

V. Smti Bagilu Kri (DW-4) gives evidence that she gave her Kinetic Zing scooty bearing No. AR-11-4474 to Md. Nizamuddin (D.W.-5) in 2009 and later on it's registration was cancelled.

VI. The DW-5 Md. Nizamuddin gives evidence to confirm that he took AR-11-4474 as scrape and further sold it as scrap to one Shri Promod Prasad (DW-6). Md. Nizamuddin was not cross examined by the prosecution and that amounts to acceptance of the fact.

VII. The DW-6, Shri Promod Prasad, confirms of having bought the scrap Kinetic Zing scooty from Md. Nizamuddin.

VIII. PW-7, Shri Nuney Tayang, Election Petitioner, admits that he is not aware about the fact that the vehicle bearing registration AR-11-4474 is registered in the name of Smti Bagilu Kri(DW-4), has been converted to scrap material and thereby the registration certificate has been cancelled. He is confused about the status of the said vehicle.

From above facts, it is submitted as follows:

The Election Petitioner @ page13 Table-C Sl. No. 2, specifically pleads that there is a non-disclosure of Kinetic Zing Scooty bearing registration no. AR-11-4474 by Smti Bagilu Kri (DW-4), W/o Respondent No. 1, and for this allegation, it is submitted that none of the PWs (PW-2, PW-5, PW-7) had not been able to establish/prove that the said vehicle is presently in the possession of Smti Bagilu Kri (DW-4).

It is also to submit that in the General Assembly Election, 2019, Smti Bagilu Kri(DW-4) had also filed her nomination (as an Independent Candidate) for the 44-Tezu (ST) Assembly Constituency, as deposed in her examination in chief. Accordingly, for the nomination process before election, she had obtained No Due Certificate from DTO, Lohit District (PW - 2) vide order No. DTO/LD/NDC/082/2019, Dated Tezu 14th March 2019.(Ext. R/4)

Hence, from the above mentioned it has been proved that the said Scooty was already condemned and disposed off, So, there is no record of said vehicle in the DTO's Office, Tezu. This proves that Smti Bagilu Kri (DW-4) has no Kinetic Scooty in her possession at that time. Later on the Registration Certificate of Scooty was cancelled by the competent authority vide letter no LD/DTO-02/2015-19, Dtd:20-09-2019. (Exhibit R/6)

If the said Scooty have been under the possession of Smti Bagilu Kri (DW-4) then the competent authority wouldn't issue No Due Certificate and canceled the Registration certificate thereof. The DW-7, Shri Nuney Tayang, Election Petitioner didn't able to prove or established where and whose possession the Scooty In question is lying or running.

In the light of the aforesaid submissions, it is seen that the Election Petitioner while raising the allegation of non-disclosure of a Kinetic Zing Scooty of the wife of the Returned Candidate has sought to substantiate the allegation by relying on a document (Annexure - 13 Vehicle Reg. No. AS-11-4474 Kinetic Zing Rock and Annexure 13/A of the Election Petition) which relates to another vehicle. Again the D.T.O.(PW-2) who comes in favour of prosecution as official witness in cross-examination has given evidence about a third vehicle number AR11A-2466 Kinetic Zing Scooty, which is neither pleaded in the Election Petition nor mentioned in Annexure 13 and 13/A of the Election Petition as belonging to the wife of the Respondent No. 1 (the Returned Candidate). Thus, the Election Petitioner has failed to prove his own pleaded case by any cogent and reliable materials.

In the Case of "Kashi Nath vs. Jag Nath, (2003) 8 SCC 740 Para 17 the Hon'ble Apex Court held that the evidence which is at variance with the pleadings of the party, cannot be relied upon and moreover, an adverse inference is to be drawn when the pleadings and evidence are self-contradictory".

Thus, the Election Petitioner fails in his primary duty to prove Under Section 101 of the Indian Evidence Act, his allegation in respect of the Kinetic Zing Scooty in the name of the Returned Candidate's Wife (as raised in page 13 of the Election Petition), since he has pleaded about a Kinetic Zing Scooty bearing Reg. No. AR-11-4474 in Table-C of his Election Petition whereas, he has annexed the Certificate of the Registration number of another Scooty bearing Reg. No. AS-11-4474 of Kinetic Zing Rock in Annexure No. 13 and AR-11-4474 in Annexure 13/A of his Election Petition and the DTO has mentioned the number of some other Scooty bearing Reg. No. AR-11A-2466 in his Cross-examination, as such there is variance in the number of Scooty as alleged by the Election Petitioner in his Election Petition and evidence in record.

Therefore, the answer to issue No. 1 against the Kinetic Zing Scooty bearing Registration No. AR-11-4474 is in negative, as such in the light of the above mentioned facts and evidence on record the Election Petitioner has miserably fails to prove his case beyond reasonable doubt."

Finding of the Court on Kinetic Zing Scooty bearing Registration No. AR-11/4474:

13(vi). Insofar as the contention of the petitioner made in the election petition that the respondent No. 1 had not disclosed the registration number of Kinetic Zing Scooty bearing Registration No. AR-11/4474 registered in the name of Smti. Bagilu Kri, the wife of respondent No. 1; the respondent No. 1 in the written statement filed, in paragraph No. 10 thereof, it has been admitted that it was registered in the name of his wife Smti. Bagilu Kri, who is one of the dependents of respondent No. 1. The said 2-wheeler is no longer in her possession since 2009 as the same was disposed of and converted to a scrap material as it was beyond economical repair rendering it totally unusable due to normal wear and tear. Since it was disposed of and converted into a scrap material 10 years back, it was categorically clarified by the respondent

No. 1 before the Returning Officer, Tezu, when it was objected by the petitioner vide letter, dated 26.03.2019. Now, the concerned authority vide order, dated 20.09.2019, issued under Memo. No. LD/DTO-02/2015-19, has cancelled the registration certificate of the Kinetic Zing Scooty bearing Registration No. AR-11/4474 as per the inspection report of the MVI/Foreman, dated 13.09.2019. Therefore, the vehicle not being in possession of the wife of respondent No. 1, it was not disclosed by the respondent No. 1 in Form 26.

13(vi)(a). The respondent No. 1/DW 1A, in his evidence filed in affidavit, has also stated in paragraph No. 10 that the Kinetic Zing Scooty bearing Registration No. AR-11/4474 as mentioned in Table C, serial No. 2, was registered in the name of his wife Smti. Bagilu Kri which was in her possession till 2009, but, in the same year, it was sold to one Md. Nizamuddin because it was beyond economical repair rendering it totally unusable due to normal wear and tear and unnecessarily occupying a space in their home premises. The concerned authority, vide order, dated 20.09.2019, issued under Memo. No. LD/DTO-02/2015-19, has cancelled the registration certificate of the Kinetic Zing Scooty bearing Registration No. AR-11/4474 as per the inspection report of the MVI/Foreman, dated 13.09.2019. Since the said Scooty was not in her possession since 2009, as such, the respondent No. 1 did not disclose it in Form 26 filed along with his nomination paper.

13(vi)(b). Smti. Bagilu Kri, DW 4, in her cross-examination, has also stated that as per the inspection report issued by the MVI, Tezu, the RC book of the Kinetic Zing Scooty bearing Registration No. AR-11/4474 was cancelled by the

DTO, Tezu, and till such cancellation of the RC Book, the registration of the Kinetic Zing Scooty bearing Registration No. AR-11/4474, was in her name.

13(vi)(c). Shri Techhi Tukap, District Transport Officer, Tezu,(PW 2), in his evidence-in-chief, has stated that in response to an application submitted by Advocate Shri Krimso Tayang, seeking some information/documents, he had furnished certain documents relating to the registration of certain motor vehicles standing in the name of the registered owners, thereof. He further stated that Ext. 6(6) is the Registration No. AR-11/4474; Ext. 6(7) is the type of vehicle i.e. Kinetic Zing Scooty; Ext. 6(8) is the name of the registered owner i.e. Smti. Bagilu Kri; Ext. 6(9) is his signature and Ext. 6(10) is the name of the owner Smti. Bagilu Kri. According to him, Ext. 6 documents have been furnished by him based on the official record maintained in the Office of the DTO, Tezu, Lohit District.

13(vi)(d). In his cross-examination, the PW 2 has stated that it is true that he did furnish the information of the vehicle bearing Registration No. AR-11A/2466 registered in the name of Smti. Bagilu Kri i.e. Kinetic Zinc Scooty and as per the inspection report of the MVI/Foreman, dated 13.09.2019, he had cancelled the registration certificate of Registration No. AR-11A/2466 vide order, dated 20.09.2019, issued under Memo. No. LD/DTO-02/2015-19.

13(vi)(e). Though in the cross-examination, the PW 2 has referred to vehicle registration no. as AR-11A/2466, but, on perusal of Ext. 6(6); Ext. 6(7) and Ext. 6(8); it is found that the registration number of the vehicle is AR-11A/4474, type of vehicle is Kinetic Zinc Scooty and the name of the

registered owner is Smti. Bagilu Kri, as deposed by the PW 2 in his examination in chief and accordingly, the vehicle number recorded as AR-11A/2466 in the cross-examination of PW 2, is found to be a typographical error.

13(vi)(f). Accordingly, from the statements made in the written statement filed and the depositions made by the respondent No. 1; as well as the evidence of DW 4, Smti. Bagilu Kri, and PW 2, Shri Techit Tukap, District Transport Officer, Tezu; it has been proved that the vehicle Kinetic Zing Scooty bearing Registration No. AR-11/4474 was registered in the name of Smti. Bagilu Kri, the wife of respondent No. 1, on the date of presentation of the nomination paper by respondent No. 1 in the year 2019 and the same stood registered in her name until it was cancelled by the District Transport Officer, Tezu, vide order, dated 20.09.2019, issued under Memo. No. LD/DTO-02/2015-19.

III. **Van, Maruti Omni Ambulance bearing Reg. No. AR-11A/3100:**

13(vii). Submissions made by the learned senior counsel for the petitioner as per written argument filed:

"AR-11A/3100(Van Maruti Ambulance):

PW-2 (DTO) stated that "Ext-6(11) is the registration No. i.e AR-11A-3100, Ext-6(12) is the type of vehicle i.e Van Maruti Ambulance. Yes it is true that I have furnished the information in regard to vehicle No. AR-11A-3100 i.e Van Maruti Omni Ambulance, registered in the name of Smti Bagilu Kri".

DW 1A stated that, "I am to state that the vehicle No. AR-11A-3100 (Maruti Omni Van Ambulance) was registered in the name of my wife Smti Bagilu Kri which was sold on 11.12.2017 to one Shri Roshan Verma by executing a Sale Deed".

DW-3 stated that "Though I was a witness to the Sale Deed dated 11.12.2017 between Bagilu Kri wife of Karikho and Roshan Verma, but I do not know whether

the vehicle which is the subject matter of the sale deed, was registered in the name of the buyer Sri Roshan Verma”.

DW-4 Smti Bagilu Kri, stated that “I was the registered owner of the Maruti Omni Van (Ambulance) bearing No. AR-11A-3100 and on 11.12.2017 I had sold the aforesaid van to Shri Roshan Verma”.

13(viii).Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

“(a) DW-1(A) returned candidate in written statement at page 13 and Evidence in Chief the returned candidate takes the stand that this Maruti Omni was sold to one Roshan Verma by executing a Sale Deed dated 11.12.2017, and by handing over all the valid documents viz Original Registration Book, filled Forms 29 and 30 for transferring the ownership right. As such, on the basis of the sale deed the ownership was already transferred to Shri Roshan Verma on 16.01.2018. Since, the vehicle is not in the possession of the deponent’s wife therefore, the question of disclosing the same in Form-26 does not arise.

(b) At page 154, para 6, the Election petitioner says in his evidence that he was not aware of the fact of the sale of Maruti Omni Ambulance registered in the name of Smti. Bagilu Kri bearing Registration No. AR-11-A-3100. That means Election Petitioner could not deny the fact of sale of the Maruti Omni Van Ambulance.

(c) However, the P.W.-2, Shri Techu Tukap, (the D.T.O.) who is the prosecution’s official witness(@ page 117, para 4), in cross examination, has confirms the sale of Maruti Omni Ambulance registration No. AR-11-A-3100 in favour of Shri Roshan Verma (the DW-7) vide Sale Deed and thereby instead of supporting the election petitioner the D.T.O. (PW-2) supported the Respondent case about the sale of the said Maruti Omni Van Ambulance.

(d) @page 199 para No. 2, D.W.-4 (Smti. Bagilu Kri) who is the wife of the Respondent No. 1/the Returned Candidate, confirms in her evidence that she sold her Maruti Omni Van (Ambulance) bearing Registration No. AR-11-A-3100 on 11.12.2017 by executing a Sale Deed (Exhibit R/3) in favour of Roshan Verma in consideration of Rs. 1,21,000/- (Rupees One Lakh Twenty-One Thousand only) and had handed over all the relevant documents of the van to him along with her signed Form 29 & 30 for transferring the ownership right of the said van to his own name. Accordingly, she was given no dues certificate from DTO Tezu vide order no. DTO/LD/NDC/082/2019 Dated 14-03-2019 during Assembly Election 2019, wherein she was one of the candidate who had filed her nomination as an independent candidate and later on withdrawn her candidature.

(e) @page 203 para 1, D.W.-4, the wife again reiterates the stand.

(f) @page 212 para 2, the purchaser Roshan Verma, appearing as D.W.-7 confirms the purchase of the Maruti Omni Van bearing Registration No. AR-11A-3100 by executing a Sale Deed dated 11.12.2017 before the competent authority at Deputy Commissioner Office at Tezu, District Lohit, Arunachal Pradesh and further confirms that he had received all the relevant documents of the said van along with signed Form 29 and Form 30 for transferring the ownership of the van in his favour.

(g) At page 214, para No. 2, in his cross-examination he also state that after the sale, the R.C. was also transferred in his name. It is not the case of the D.T.O. or the Election Petitioner that the Form 29 and Form 30 after the sale of the Maruti Van were not submitted to the D.T.O., U/s 50(I) of the Motor Vehicle Act, 1988.

(h) @page 215 - Shri Duyu Ribya (D.W.-8), the then Extra Assistant Commissioner-cum-Judicial Magistrate First Class at Tezu, confirms the Sale deed executed before him. He further confirms that the Sale Deed dated 11.12.2017 was witnessed by Shri Karikho Kri and Shri Sunil Kumar Choudhury, he further exhibited his signature as Exhibit R3(e) and seal of Judicial Magistrate First Class, Tezu as Exhibit R3(d).

(i) @ page 199 para No. 5 - Shri Sunil Kumar Choudhury (DW-3): Confirms the execution of the Sale Deed dated 11.12.2017 in between Smti. Bagilu Kri W/o Shri Karikho Kri and Shri Roshan Verma of the Maruti Omni Van bearing Registration No. AR-11A-3100. And also confirms the handover of all the relevant documents along with Form 29 and 30 to Shri Roshan Verma for transfer of Ownership of the said van. To which he had also exhibit his signature as Exhibit R/3 (a) in Sale Deed dated 11.12.2017.

To sum up, it is seen that although the Election Petitioner @ page 13 of the Election petition took a stand that the Returned Candidate has not disclosed his wife's Maruti Van Ambulance bearing Registration No. AR-11A-3100 and the Election Petitioner has produced the R.C. copy obtained through a purported R.T.I. reply of the D.T.O. as Annexure 14. But the D.T.O. who came as a prosecution witness PW 2 for the Election Petitioner confirms the fact pleaded by the Returned Candidate that the Maruti Van was in fact sold by the wife to one Roshan Verma on 11-12-2017. The DW-8 who was the Magistrate at the time of registration of the sale has also confirmed the same. Section 54 of the Transfer of Property Act, 1882 defines "Sale" and Section 55 of the Transfer of Property Act, 1882 provides that in a "Sale" there is always a "transfer of ownership" from the transferer to the transferee. Furthermore, U/S 50 (I)(b) read with Section 50 (3) of the Motor Vehicles Act, 1988, if the buyer or the transferee fails to submit the Form 29 & 30 before the D.T.O. after the transfer, the sale does not become void, at the most the D.T.O. can impose a late fine for an amount not exceeding Rs. 100/-. The fact of sale admitted by the D.T.O. in his cross-examination.

Hence, the allegation of non-disclosure of the sold Maruti Van of the wife by the Returned Candidate in his nomination filed in 2019 is unsustainable.

For the aforesaid purpose, following judgments are referred to and relied upon:-

- (i) 2003 (8) SCC Page 740: - This case, the Apex Court has dealt with the effect of variance between the pleadings and evidence adduced in the proceedings. In case of variance, the Apex Court has held that evidence which is at variance with the pleadings cannot be relied upon and moreover an adverse inference is to be drawn by the Court when the pleadings and evidence are self contradictory.
- (ii) 2005 (5) SCC page 100: - Here the Apex Court has held that failure to prove a defence does not discharge the plaintiff from the initial burden of proof u/s 101 of the Evidence Act.
- (iii) 2008 (4) GLR page 145, para 12 (page 149): - Here the Gauhati High Court has held the plaintiff must stand on its own legs."

Finding of the Court on Van, Maruti Omni Ambulance bearing Reg. No. AR-11A/3100:

13(ix). On the contention of the petitioner that the respondent No. 1 did not disclose the vehicle i.e. Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100; owned by his wife Smti. Bagilu Kri in Form 26; the respondent No. 1 in the written statement filed, in paragraph 10 thereof; it has been stated that with regard to the vehicle mentioned at Table C, Serial No. 3, it is admitted that it was registered in the name of his wife Smti. Bagilu Kri, who is one of the dependents of respondent No. 1. However, the said vehicle was sold to one Shri Roshan Verma by executing a Sale Deed, dated 28.03.2014, by handing over to him all the valid documents viz. Original Registration Book, filled Form 29 and Form 30 for transferring the ownership right of the vehicle, in question. As such, on the basis of the Sale Deed, dated 28.03.2014, the ownership of the vehicle i.e. Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100, was already transferred to Shri Roshan Verma on 16.01.2018. Since the aforesaid vehicle was not in the possession of

his wife Smti. Bagilu Kri, therefore, the question of disclosing the same in Form 26 by the respondent No. 1, does not arise. Accordingly, the same was categorically clarified by the respondent No. 1 before the Returning Officer, Tezu, when it was objected by the petitioner vide letter, dated 26.03.2019.

13(ix)(a). The respondent No. 1/DW-1A in his evidence in affidavit, in paragraph No. 11 thereof, has stated that the vehicle i.e. Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100 was registered in the name of his wife Smti. Bagilu Kri which was sold to one Shri Roshan Verma on 11.12.2017, by executing a Sale Deed(Ext. R/3) and all the relevant papers of the vehicle along with Form 29 and Form 30 were handed over to him for transferring of the ownership right from his wife and accordingly, on 16.01.2018, the ownership of the vehicle was transferred in the name of Shri Roshan Verma as per the official record maintained in the Office of the District Transport Officer, Tezu. As such, the question of disclosing the said vehicle in Form 26 by the respondent No. 1 in his nomination paper, does not arise.

13(ix)(b). Smti. Bagilu Kri, DW 4, in her cross-examination, has stated that the Sale Deed of Maruti Van Omni Ambulance bearing Registration No. AR-11A/3100, was prepared between herself and Shri Roshan Verma, on 11.12.2017, and she had handed over all the valid documents viz. Original Registration Book, filled Form 29 and Form 30 for transferring the ownership right of the vehicle, in question, in the name of Shri Roshan Verma. In Form 29, she had given the date, as 06.12.2017. She, however, does not know whether in Form 29, which was used for transfer of the aforesaid vehicle to

Shri Roshan Verma, there was any seal and sign of the District Transport Officer, Tezu.

13(ix)(c). DW 3, Shri Sunil Kr. Choudhury, is the witness to the Sale Deed, dated 11.12.2017, who, in his evidence in chief, has stated that he was a witness to the sale of the Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100, owned by Smti. Bagilu Kri, executed on 11.12.2017, in between Smti. Bagilu Kri and Shri Roshan Verma and he had put his signature in the Sale Deed as a witness. This witness in the cross-examination, however, has stated that though he was a witness to the Sale Deed, dated 11.12.2017, between Smti. Bagilu Kri and Shri Roshan Verma but he does not know if the aforesaid vehicle was registered in the name of the buyer Shri Roshan Verma.

13(ix)(d). PW 2, Shri Techhi Tukap, District Transport Officer, Tezu, has stated in his examination-in-chief, that in response to an application submitted by Advocate Shri Krimso Tayang, seeking information/documents he had furnished certain documents relating to the registration of certain motor vehicles standing in the name of the registered owner thereof. He further stated that Ext. 6(10) is the name of the owner; Ext. 6(11) is the registration number i.e. AR-11A/3100; Ext. 6(12) is the type of vehicle i.e. Van, Maruti Omni Ambulance; and Ext. 6(13) is his signature. According to him, Ext. 6 documents have been furnished by him based on the official record maintained in the Office of the District Transport Officer, Tezu, Lohit District. He, however, in his cross-examination has stated that he had furnished the information regarding the vehicle registered in the name of Smti. Bagilu Kri

and it is also a known fact that the aforesaid vehicle has been sold to one Shri Roshan Verma vide Sale Deed, dated 28.03.2014.

13(ix)(e). Though the Respondent No. 1/DW-1A, in his evidence filed on affidavit, has stated that the ownership of the vehicle was transferred on 16.01.2018 in the name of Shri Roshan Verma as per the official record maintained in the office of the District Transport Officer(DTO), Tezu; the Respondent No. 1/DW-1A did not produce the record from the office of the District Transport Officer(DTO), Tezu, in evidence, to prove that the vehicle was transferred in the name of Shri Roshan Verma on 16.01.2018. The Respondent No. 1/DW-1A, therefore, failed to prove that the vehicle was transferred in the name of Shri Roshan Verma on 16.01.2018 as per the record of the District Transport Officer(DTO), Tezu. On the contrary, from the evidence of DW-4, DW-3 and PW-2; it has been proved that the Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100, stands registered in the name of Smti. Bagilu Kri, wife of respondent No. 1; notwithstanding the sale of the aforesaid vehicle to Shri Roshan Verma. Perusal of Ext. 6(10); Ext. 6(11); Ext. 6(12) and Ext. 6(13), confirms it that the Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100, was registered on 09.06.2013, in the name of Smti. Bagilu Kri, the wife of respondent No. 1, by a certificate of registration issued by the District Transport Officer, Tezu, vide Ext. 6(13), the registration of which has not yet been transferred to any other person.

IV. TVS Star City Motorcycle bearing Registration No. AR-11/6851:

13(x). Submissions made by the learned senior counsel for the petitioner as per written argument filed:

"AR-11/6851 TVS-Star City Motor Cycle:

PW-2, deposed that "Ext-6 (14) is the name of the owner i.e Goshinso Kri. Ext-6 (15) is the registration No. AR-116851. Ext-6 (16) is the type of vehicle TVs - Star City Motor Cycle. Ext-6 (17) is my signature. "Yes, it is true that I have furnished the information in connection with AR-11-6851, registered in the name of Shri Goshinso Kri i.e TVS Star City Motorcycle and also it is known to me that Vehicle has been gifted to Kiran Kumar Rai vide gift Deed dated 30.04.2014."

DW-1A stated that "the vehicle No. AR-11-6851 (TVS Star City Motor Cycle) was in the name of my son Shri Goshinso Kri, whereas on 30.04.2014, he had gifted the said motor cycle to Shri Kiran Kumar Rai by executing Gift Deed".

The Dw-2 deposed that "...there was no delivery of possession of any vehicles as mentioned in my evidence-on-affidavit by respondent to Satyanaranyan Pareek. TVS Star City Motor cycle being Registration No, AR-11-6851 belong to the second son of the respondent No.1 ie Goshinso Kri. I have made my statement in my evidence-on-affidavit filed today as per the request made by Karikho Kri / respondent No.1".

DW-9 Shri Goshinso Kri in his Evidence-on-affidavit stated "I was the registered owner of TVS Star city motorcycle bearing registration No.AR-11-6851. I had gifted the said motorcycle to Shri Kiran Kumar Rai (who is a staff of Oshin Hotel, Tezu owned by my elder brother Oshinso Kri) out of love and affection and considering the service rendered by him vide gift deed dated 30.04.2014." In Cross DW-9 deposed that "TVS Star city motorcycle bearing registration No.AR-11-6851 was purchased by my father Shri Karikho Kri in 2011. I have passed LLB examination in the year 2022. Kiran Kumar Rai is my brother's employee. I have not said anything in my evidence-on-affidavit about the transfer of registration of the vehicle, aforesaid, from my name to Kiran Kumar Rai".

DW-10 in cross deposed that "I am an employee of Shri Oshinso Kri, who is the eldest son of Respondent No. 1/Karikho Kri. Due to my negligence the ownership of the vehicle could not be transferred in my name. The transfer took place subsequently on 12th of Sept 2019".

From the evidence of PW-2, Dw-1A, Dw-1, Dw-2, Dw-3, Dw-4 Dw-6,Dw-7, Dw-9 and Dw-10 it becomes crystal clear that four vehicles as mentioned in Exhibit-6 to 6(16) are owned and possessed by the Respondent No.1, his spouse and his dependent son, and they continued to be the registered owners till the date of scrutiny held on 26.03.2019 and the respondent No.1 deliberately did not mention the said vehicles in paragraph (7) A in Part-A of the affidavit in Form-26. The registration of the vehicles Ext-6 to 6(16) were not transferred in accordance with the requirement of Law provided in the provisions of section 50 the Motor Vehicle Act, 1988 in the name of the alleged subsequent transferees/Donee. As a result, for all practical purposes the ownership/registration of the vehicles remained with them till the date of scrutiny. As a result, the non-disclosure of the aforesaid vehicles in the

Affidavit in Form-26 appended to the nomination paper of the respondent No.1 rendered the same as invalid and substantially defective.

The Hon'ble Apex Court in Naveen Kumar v. Vijay Kumar, (2018) 3 SCC 1 held that :

6. The expression "owner" is defined in Section 2(30) of the Motor Vehicles Act, 1988 as follows : "2.(30) "owner" means a person in whose name a motor vehicle stands registered, and where such person is a minor, the guardian of such minor, and in relation to a motor vehicle which is the subject of a hire-purchase agreement, or an agreement of lease or an agreement of hypothecation, the person in possession of the vehicle under that agreement."

The person in whose name a motor vehicle stands registered is the owner of the vehicle for the purposes of the Act. The use of the expression "means" is a clear indication of the position that it is the registered owner whom Parliament has regarded as the owner of the vehicle.

8. Section 50 of the Motor Vehicles Act, 1988 deals with the procedure for transfer of ownership, and provides as follows:

"50. Transfer of ownership.—(1) Where the ownership of any motor vehicle registered under this Chapter is transferred-

(a) the transferor shall

(i) in the case of a vehicle registered within the same State, within fourteen days of the transfer, report the fact of transfer, in such form with such documents and in such manner, as may be prescribed by the Central Government to the Registering Authority within whose jurisdiction the transfer is to be effected and shall simultaneously send a copy of the said report to the transferee; and

(ii) in the case of a vehicle registered outside the State, within forty-five days of the transfer, forward to the Registering Authority referred to in sub-clause (i)-

(A) the no-objection certificate obtained under Section 48; or

(B) in a case where no such certificate has been obtained-

(I) the receipt obtained under sub-section (2) of Section 48; or

(II) the postal acknowledgment received by the transferor if he has sent an application in this behalf by registered post acknowledgment due to the Registering Authority referred to in Section 48, together with a declaration that he has not received any communication from such authority refusing to grant such certificate or requiring him to comply with any direction subject to which such certificate may be granted;

(d) the transferee shall, within thirty days of the transfer, report the transfer to the Registering Authority within whose jurisdiction he has the residence or place of business where the vehicle is normally kept, as the case may be, and shall forward the certificate of registration to that Registering Authority together with the prescribed fee and a copy of the report received by him

from the transferor in order that particulars of the transfer of ownership may be entered in the certificate of registration.

(2) Where-

(a) the person in whose name a motor vehicle stands registered dies,
or

(b) a motor vehicle has been purchased or acquired at a public auction conducted by, or on behalf of Government, the person succeeding to the possession of the vehicle or, as the case may be, who has purchased or acquired the motor vehicle, shall make an application for the purpose of transferring the ownership of the vehicle in his name, to the Registering Authority in whose jurisdiction he has the residence or place of business where the vehicle is normally kept, as the case may be, in such manner, accompanied with such fee, and within such period as may be prescribed by the Central Government.

(3) If the transferor or the transferee fails to report to the Registering Authority the fact of transfer within the period specified in clause (a) or clause (b) of sub-section (1), as the case may be, or if the person who is required to make an application under sub-section (2) (hereafter in this section referred to as the other person) fails to make such application within the period prescribed, the Registering Authority may, having regard to the circumstances of the case, require the transferor or the transferee, or the other person, as the case may be, to pay, in lieu of any action that may be taken against him under Section 177 such amount not exceeding one hundred rupees as may be prescribed under sub-section (5):

Provided that action under Section 177 shall be taken against the transferor or the transferee or the other person, as the case may be, where he fails to pay the said amount.

(4) Where a person has paid the amount under sub-section (3), no action shall be taken against him under Section 177.

(5) For the purposes of sub-section (3), a State Government may prescribe different amounts having regard to the period of delay on the part of the transferor or the transferee in reporting the fact of transfer of ownership of the motor vehicle or of the other person in making the application under sub-section (2).

(6) On receipt of a report under sub-section (1), or an application under sub-section (2), the Registering Authority may cause the transfer of ownership to be entered in the certificate of registration.

(7) A Registering Authority making any such entry shall communicate the transfer of ownership to the transferor and to the original Registering Authority, if it is not the original Registering Authority."

It has been held by the Hon'ble Apex Court in the case of Naveen Kumar v. Vijay Kumar, (2018) 3 SCC 1 in para 13 thereof that – "The consistent thread of reasoning which emerges from the above decisions is that in view of the definition of the expression "owner" in Section 2(30), it is the person in whose name the motor vehicle stands registered who, for the purposes of the Act, would be treated as the "owner". In a situation such as the present where the registered owner has purported to transfer the vehicle but continues to be reflected in the records of the Registering Authority as the owner of the vehicle, he would not stand absolved of liability. Parliament has consciously introduced the definition of the expression "owner" in section 2(30), making a departure from the provisions of section 2(19) in the earlier 1939 Act. The principle underlying the provisions of Section 2(30) is that the victim of a motor accident or, in the case of a death, the legal heirs of the deceased victim should not be left in a state of uncertainty. A claimant for compensation ought not to be burdened with following a trail of successive transfers, which are not registered with the Registering Authority. To hold otherwise would be to defeat the salutary object and purpose of the Act. Hence, the interpretation to be placed must facilitate the fulfillment of the object of the law. In the present case, the first respondent was the "owner" of the vehicle involved in the accident within the meaning of Section 2(30). The liability to pay compensation stands fastened upon him. Admittedly, the vehicle was uninsured. The High Court has proceeded upon a misconstruction of the judgments of this Court in HDFC Bank Ltd. v. Reshma, (2015) 3 SCC 679 and Purnya Kala Devi v. State of Assam, (2014) 14 SCC 142 :

Non-disclosure of the motor vehicles owned by the respondent No.1, his wife and dependent son in Form -26 are defect of substantial nature. As such the Election of the respondent No.1 is liable to be set aside as per the law laid down by Hon'ble Supreme Court in Kisan Shankar Kathore v. Arun Dattatray Sawant, (2014) 14 SCC 162: Re: Non-disclosure of vehicle MH 05 AC 555 owned by the appellant's wife, it has held that

"27. Here again, from the detailed discussion contained in the impugned judgment [Arun Dattatray Sawantv. Kisan Shankar Kathore, Election Petition No. 10 of 2004, decided on 16-8-2007 (Bom)] of the High Court, it becomes clear that by leading requisite and sufficient evidence, the first respondent proved that the wife of the appellant owned the aforesaid vehicle and the particulars thereof were not disclosed. The defence of the appellant was that he had mentioned the value thereof in his affidavit, but accepted that it was against column "Self" and not in the independent column of his spouse. His defence is discussed and rejected by the High Court in the following manner:

"89. On analysis of the pleadings, it follows that the respondent admits that the motor vehicle in question is owned by his wife. However, it is not his case that in the nomination form, he has disclosed the ownership of the said vehicle of his wife. Perhaps, the respondent intends to suggest that he has substantially complied with the requirements by disclosing the ownership of motor vehicle valued Rs 5,50,000 and that it was purchased against loan given by M&M Financial Services Ltd.

90. Before we deal with the ocular evidence of the parties, it will be useful to make reference to the details to be disclosed by the candidate as per the prescribed affidavit. The requirement is that the candidate should disclose the "details of the motor vehicles" owned and possessed by him, his wife and/or other dependent members of his family separately. The respondent, however, against the said column has only mentioned figure of Rs 5,50,000 under the column "Self", which gives an impression that the respondent himself owns vehicle valued Rs 5,50,000 and nothing more. No details of the motor vehicle such as number of vehicle, the make, the model such as economic, luxury or the year of purchase and the like are disclosed so as to enable the voters to assess whether the details disclosed are correct or undervalued, including the legitimate means and capability of the candidate to possess such assets. As in the case of disclosure made by the respondent in respect of buildings, in similar manner, the disclosure in respect of vehicle is also incomplete, vague and misleading. The candidate cannot get away with the explanation that he has disclosed some amount in one of the columns as sufficient or substantial compliance. The purpose of disclosure of assets (movable and immovable) and liabilities to be made by the candidate, is to educate the voters about the complete financial status of the candidate, which information also facilitates the voter to assess whether the assets (movable and immovable) declared by the candidate have been procured by him out of his legitimate and known source of income. The voters have a fundamental right to know and receive such information about the candidate before they take an informed decision to elect their candidate. As it is the fundamental right of the voters, there is corresponding duty on the candidate to disclose truthful and complete information regarding the assets (movable and immovable) as per the prescribed affidavits which forms an integral part of the nomination form."

"37. We have already discussed in detail each item of non-disclosure as well as defence of the appellant pertaining thereto. For the reasons recorded in detail at that stage by the High Court and stated above, with which we agree, we are of the opinion that its finding about non-disclosure of the information qua all the aspects is without blemish. There is a specific format in which the information is to be given, which was not adhered to".

13(xi). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"(a) @page 13 Table-C Sl. No. 4 of the E.P., relied on Annexure-15 (reply of D.T.O. at page 212 of E.P.) wherein the Election Petitioner alleged that the returned candidate fails to disclosed the TVS Star City Motorcycle standing in the name of his son Shri Goshinso Kri bearing Registration No. AR-11-6851.

(b) @ page 14 para 3(in W.S.) the stand of returned candidate (DW-1A) is that his motorcycle, AR-11-6851, was in the name of the returned candidate's son Shri Goshinso Kri (D.W.-9) who gifted it to one Kiran Kumar by a Gift Deed dated

30.04.2014 by handing over all the valid documents viz Original Registration Book, filled Form 29 and Form 30 for transferring the ownership right. And he further confirmed the same in his evidence-in-chief @ Page No. 103 Para 163 and has also exhibited the Gift Deed dated 30.04.2014 as Exhibit No. R/2.

(c) @ page 154 para 7 the election petitioner in the cross-examination states that he was not aware of the gift, but he does not deny the fact of gift. In short, election petitioner in his cross-examination has not denied the fact of Gift Deed dated 30.04.2014 for the TVS Star City Motorcycle bearing Registration No. AR-11-6851.

(d) @ page 219-221 the son, Shri Goshinso Kri D.W. - 9 gives evidence to say that he gifted the said motorcycle by Gift Deed dated 30.04.2014 to DW-10 Shri Kiran Kumar Rai - he further exhibited the documents to support his evidence as - Exhibit No. R/2 is the Gift Deed dated 30.04.2014, Exhibit R/2(c) is his signature, R/11 Form 29,

(e) Exhibit R/12 Form 30 and R/12 (a) is his signature. In Cross, he denied the suggestion that he had not gifted his motorcycle to Kiran Kumar Rai, rather he confirms the same that he had gifted it to Kiran Kumar Rai (the DW-10).

(f) D.W.-10 (Shri Kiran Kumar Rai) at page 224 para 2 confirms the gift of the said TVS Star City Motorcycle bearing Registration NO. AR-11-6851 in his favour by the son of the returned candidate by a Gifted Deed dated 30.04.2014 and has identified his signature in the said Gift deed as Exhibit No. R/2(d). He further confirms the receiving of all the relevant documents of the said motorcycle viz original Registration Book along with signed/filled Form 29 and Form 30 for transferring ownership right in his favour. At page 226 para 1. DW-10:- He says in cross examination that due to his negligence the transfer of registration could not take place.

(g) @ page 187 para 2 (Shri Rajen Shrestha-DW- 2): - deposed that he was a witness to a Gift Deed dated 30.04.2014 of the TVS Star City Motorcycle bearing Registration NO. AR-11-6851 and had witnessed the execution of the Gifted Deed between Shri Goshinso Kri and Shri Kiran Kumar Rai. And has exhibited his signature in the said Gift Deed dated 30.04.2014 as Exhibit R/2 (a).

(h) @ page 193 para 4 (Shri Sunil Kumar Chaudhary, DW-3): - He confirms the gift of the said TVS Star City Motorcycle bearing Registration No. AR-11-6851 in favour of Shri Kiran Kumar Rai (DW-10) by Shri Goshinso Kri (DW-9) and he had further identified his signature on the said Gift Deed dated 30.04.2014 as a witness and exhibit as Exhibit No. R/2 (b).

(i) @ page 117 para 5, the D.T.O. (P.W. -2) the prosecution witness in the cross examination confirms the fact that D.W. - 9 Shri Goshinso Kri had gifted his Motorcycle bearing Registration No. AR-11-6851 to D.W. -10 on 30.04.2014.

Therefore, from the above-mentioned facts and evidences it is made clear that the said TVS Star City Motorcycle bearing Registration No. AR-11-6851 was gifted to Shri Kiran Kumar Rai on 30.04.2014, as such the discloser of the same by

the returned candidate in his Form 26 does not arise since it was not in the possession of his son at that time while filling his nomination paper.

Further, please refer to the judgment of the Hon'ble Apex Court in "Purnya Kala Devi v. State of Assam" (2014) 14 SCC 142 as discussed in the above paragraphs against the vehicle of the Respondent No. 1 bearing Registration No. AR-11-A-2446, as the same is relied upon by the returned candidate regarding possession of the vehicle and the liability of transferee to transfer the said vehicle into his own name, as such the transferor shall not be held liable for the same, since he had lost the possession of the same.

From above submissions made, it is seen that allegation of non-disclosure of vehicles of the Returned Candidate, his wife and his son are not tenable on facts as well as on laws relating to election under the Representation of People Act and also as per the laws laid down by the Hon'ble Apex Court which are already cited above.

In the light of the above submission, the answer to the issue No. 1 in this regard as framed by this Hon'ble Court will be in the Negative."

Finding of the Court on TVS Star City Motorcycle bearing Registration No. AR-11/6851:

13(xii). With regard to the contention of the petitioner that respondent No. 1 did not disclose the TVS Star City Motorcycle bearing Registration No. AR-11/6851, registered in the name of Shri Goshinso Kri, son of respondent No. 1, in Form 26, it has been stated in the written statement filed by the respondent No. 1 that the aforesaid vehicle mentioned in Table C, serial No. 3, was registered in the name of Shri Goshinso Kri, son of respondent No. 1, a dependent on respondent No. 1. However, it was gifted to one Shri Kiran Kumar Rai by executing a Gift Deed, dated 30.04.2014, by handing over all the valid documents viz. Original Registration Book, filled-up Form 29 and Form 30 for transferring the ownership right of the vehicle, in question.

13(xii)(a). The respondent No. 1/DW 1A, in his evidence in chief, has stated that the TVS Star City Motorcycle bearing Registration No. AR-11/6851, was

registered in the name of his son Shri Goshinso Kri, but, on 30.04.2014, he had gifted it to one Shri Kiran Kumar Rai, by executing a Gift Deed(Ext. R/2) and on the same day, he had handed over all the valid documents viz. Original Registration Book, filled Form 29 and Form 30 for transferring the ownership right of the vehicle, in question, in the name of Shri Kiran Kumar Rai.

13(xii)(b). Shri Goshinso Kri, DW 9, in his evidence in chief, has stated that he was the registered owner of TVS Star City Motorcycle bearing Registration No. AR-11/6851 and he had gifted it to Shri Kiran Kumar Rai who is one of the Staff of Oshin Hotel, Tezu, which is owned by his brother Oshinso Kri, out of love and affection considering the service rendered by Shri Rai vide Gift Deed, dated 30.04.2014 and that he had handed over all the valid documents viz. Original Registration Book, filled Form 29 and Form 30 for transferring the ownership right of the aforesaid vehicle in the name of Shri Kiran Kumar Rai.

13(xii)(c). In his cross-examination, Shri Goshinso Kri, has stated that the TVS Star City Motorcycle bearing Registration No. AR-11/6851 was purchased in his name by the respondent No. 1 in 2011 and Shri Kiran Kumar Rai is his brother's employee.

13(xii)(d). Shri Kiran Kumar Rai, DW 10, in his evidence in chief, has stated that acknowledging his service rendered to Oshin Hotel, Tezu, out of love and affection, Shri Goshinso Kri, brother of Shri Oshinso Kri, had gifted the TVS Star City Motorcycle bearing Registration No. AR-11/6851 to him vide Gift Deed, dated 30.04.2014. He has further stated that all the valid documents viz. Original Registration Book, filled Form 29 and Form 30 were handed over to him for transferring the ownership right of the aforesaid vehicle but due to

his negligence and ignorance, he could not transfer the ownership of TVS Star City Motorcycle bearing Registration No. AR-11/6851 in his name although by now, he has transferred the ownership right of the aforesaid vehicle in his name.

13(xii)(e). In his cross-examination, DW 10, has stated that due to his negligence and ignorance, he could not transfer the ownership of TVS Star City Motorcycle bearing Registration No. AR-11/6851, in his name. The transfer, however, took place on 12.09.2019.

13(xii)(f). PW 2 Shri Techit Tukap, District Transport Officer, Tezu, has stated in his examination-in-chief, that in response to an application submitted by Advocate Shri Krimso Tayang, seeking information/documents he had furnished certain documents relating to the registration of certain motor vehicles standing in the name of the registered owner thereof. He further stated that Ext. 6(14) is the name of the owner i.e. Shri Goshinso Kri; Ext. 6(15) is the registration number i.e. AR-11/6581; Ext. 6(16) is the type of vehicle i.e. TVS Star City Motorcycle; and Ext. 6(17) is his signature. According to him, Ext. 6 documents have been furnished by him based on the official record maintained in the Office of the District Transport Officer, Tezu, Lohit District.

13(xii)(g). He, however, in his cross-examination has stated that he had furnished the information regarding the vehicle registered in the name of Shri Goshinso Kri and it is also known to him that the aforesaid vehicle has been gifted to one Shri Kiran Kumar Rai.

13(xii)(h). On perusal of Ext. 6(14); Ext. 6(15), Ext. 6(16) and Ext. 6(17), it is found that TVS Star City Motorcycle bearing Registration No. AR-11/6851 has been registered in the name of Shri Goshinso Kri, son of respondent No. 1, vide certificate of registration issued by the District Transport Officer, Tezu, on 25.05.2011.

13(xii)(i). Thus, from the written statement filed by the respondent No. 1, as well as his evidence in affidavit; the evidence of DW 9 Shri Goshinso Kri; DW 10 Shri Kiran Kr. Rai, and PW 2 Shri Techu Tukap; it is found that TVS Star City Motorcycle bearing Registration No. AR-11/6851 stood registered in the name of Shri Goshinso Kri, son of respondent No. 1, on the date of the scrutiny of the nomination paper on 26.03.2019 and the election held pursuant thereto in the year 2019 for 44-Tezu(ST) Assembly Constituency; notwithstanding the said vehicle having been gifted to Shri Kiran Kumar Rai, vide Gift Deed, dated 30.04.2014.

Determination of ownership of the vehicles:

13(xiii). Having found that the Kinetic Zing Scooty bearing Registration No. AR-11/4474 and Maruti Omni Van Ambulance bearing Registration No. AR-11A/3100, stood registered in the name of Smti. Bagilu Kri, wife of respondent No. 1, and the TVS Star City Motorcycle bearing Registration No. AR-11/6851, stood registered in the name of Shri Goshinso Kri, son of respondent No. 1; at the time of presentation of nomination paper of respondent No. 1, and on the date of scrutiny of the nomination paper on 26.03.2019, notwithstanding the aforesaid vehicles were gifted/sold to other persons by Smti. Bagilu Kri, wife of respondent No. 1 as well as Shri Goshinso Kri, son of respondent No. 1; it has

now become imperative to decide as to who was the owner of the aforesaid vehicles at the time of presentation of the nomination paper by the respondent No. 1, and on the date of scrutiny of the nomination paper on 26.03.2019.

13(xiii)(a). The “owner” of a vehicle has been defined in Section 2(30) of the Motor Vehicle Act, 1988. Section 50 of the Motor Vehicle Act, 1988, deals with the procedure for transfer of the ownership of a vehicle.

13(xiii)(b). While dealing with as to who would be the owner of a vehicle and the procedure for transfer of the ownership of a vehicle; the Hon’ble Supreme Court in the case of **Naveen Kumar v. Vijay Kumar & ors.**, reported in **(2018) 3 SCC 1**, in paragraphs No. 6 to 13, has held, as under:

“6. The expression “owner” is defined in [Section 2\(30\)](#) of the Act 1988, thus:

“2.(30) “owner” means a person in whose name a motor vehicle stands registered, and where such person is a minor, the guardian of such minor, and in relation to a motor vehicle which is the subject of a hire-purchase agreement, or an agreement of lease or an agreement of hypothecation, the person in possession of the vehicle under that agreement.”

The person in whose name a motor vehicle stands registered is the owner of the vehicle for the purposes of the Act. The use of the expression ‘means’ is a clear indication of the position that it is the registered owner who Parliament has regarded as the owner of the vehicle. In the earlier Act of 1939, the expression “owner” was defined in Section 2(19) as follows:

“2.(19) “owner” means, where the person in possession of a motor vehicle is a minor, the guardian of such minor, and in relation to a motor vehicle which is the subject of a hire-purchase agreement, the person in possession of the vehicle under that agreement.”

7. Evidently, Parliament while enacting the [Motor Vehicles Act, 1988](#) made a specific change by recasting the earlier definition. [Section 2\(19\)](#) of the earlier Act stipulated that where a person in possession of a motor vehicle is a minor, the guardian of the

minor would be the owner and where the motor vehicle was subject to a hire purchase agreement, the person in possession of the vehicle under the agreement would be the owner. The 1988 Act has provided in the first part of Section 2(30) that the owner would be the person in whose name the motor vehicle stands registered. Where such a person is a minor the guardian of the minor would be the owner. In relation to a motor vehicle which is the subject of an agreement of hire purchase, lease or hypothecation, the person in possession of the vehicle under that agreement would be the owner. The latter part of the definition is in the nature of an exception which applies where the motor vehicle is the subject of a hire purchase agreement or of an agreement of lease or hypothecation. Otherwise the definition stipulates that for the purposes of the Act, the person in whose name the motor vehicle stands registered is treated as the owner.

8. Section 50 deals with the procedure for transfer of ownership, and provides as follows:

"50. Transfer of ownership. — (1) Where the ownership of any motor vehicle registered under this Chapter is transferred—

(a) the transferor shall —

(i) in the case of a vehicle registered within the same State, within fourteen days of the transfer, report the fact of transfer, in such form with such documents and in such manner, as may be prescribed by the Central Government to the Registering Authority within whose jurisdiction the transfer is to be effected and shall simultaneously send a copy of the said report to the transferee; and

(ii) in the case of a vehicle registered outside the State, within forty-five days of the transfer, forward to the Registering Authority referred to in sub-clause (i)—

(A) the no objection certificate obtained under section 48;

or

(B) in a case where no such certificate has been obtained—

(I) the receipt obtained under sub-section (2) of Section 48; or

(II) the postal acknowledgement received by the transferred if he has sent an application in this behalf by registered post acknowledgement due to the Registering Authority referred to in Section 48,

together with a declaration that he has not received any communication from such authority refusing to grant such certificate or requiring him to comply with any direction subject to which such certificate may be granted;

(b) the transferee shall, within thirty days of the transfer, report the transfer to the Registering Authority within whose jurisdiction he has the residence or place of business where the vehicle is normally kept,

as the case may be, and shall forward the certificate of registration to that Registering Authority together with the prescribed fee and a copy of the report received by him from the transferor in order that particulars of the transfer of ownership may be entered in the certificate of registration.

(2) Where —

- (a) the person in whose name a motor vehicle stands registered dies, or
- (b) a motor vehicle has been purchased or acquired at a public auction conducted by, or on behalf of Government.

the person succeeding to the possession of the vehicle or, as the case may be, who has purchased or acquired the motor vehicle, shall make an application for the purpose of transferring the ownership of the vehicle in his name, to the Registering Authority in whose jurisdiction he has the residence or place of business where the vehicle is normally kept, as the case may be, in such manner, accompanied with such fee, and within such period as may be prescribed by the Central Government.

(3) If the transferor or the transferee fails to report to the Registering Authority the fact of transfer within the period specified in clause (a) or clause (b) of sub-section (1), as the case may be, or if the person who is required to make an application under sub-section (2) (hereafter in this section referred to as the other person) fails to make such application within the period prescribed, the Registering Authority may, having regard to the circumstances of the case, require the transferor or the transferee, or the other person, as the case may be, to pay, in lieu of any action that may be taken against him under [section 177](#) such amount not exceeding one hundred rupees as may be prescribed under sub-section (5):

Provided that action under [section 177](#) shall be taken against the transferor or the transferee or the other person, as the case may be, where he fails to pay the said amount.

(4) Where a person has paid the amount under sub-section (3), no action shall be taken against him under [section 177](#).

(5) For the purposes of sub-section (3), a State Government may prescribe different amounts having regard to the period of delay on the part of the transferor or the transferee in reporting the fact of transfer of ownership of the motor vehicle or of the other person in making the application under sub-section (2).

(6) On receipt of a report under sub-section (1), or an application under sub-section (2), the Registering Authority may cause the transfer of ownership to be entered in the certificate of registration.

(7) A Registering Authority making any such entry shall communicate the transfer of ownership to the transferor and to the original Registering Authority, if it is not the original Registering Authority."

9. The decision of the Bench of two Judges of this Court in Pushpa was in a case where the offending vehicle was registered in the name of *J* who had sold it to *S* on 2-2-1993 and had given possession to the transferee. On the date of the transfer the truck was covered by a valid policy of insurance. Despite the sale of the vehicle the change of ownership was not reflected in the certificate of registration. The policy of insurance expired on 24-2-1993. Subsequently *S* took out an insurance policy in the name of the registered owner and it was valid and subsisting when the accident took place on 7-5-1994. The Tribunal held that no liability to pay compensation attached to *J* since he had ceased to be the owner of the vehicle after its sale on 2-2-1993. *S* alone was held to be liable for the payment of compensation to the claimants. On these facts the Bench of two Judges of this Court held as follows:(SCC p.244, para 11)

"11. It is undeniable that notwithstanding the sale of the vehicle neither the transferor Jitender Gupta nor the transferee Salig Ram took any step for the change of the name of the owner in the certificate of registration of the vehicle. In view of this omission Jitender Gupta must be deemed to continue as the owner of the vehicle for the purposes of the Act, even though under the civil law he ceased to be its owner after its sale on 2-2-1993."

In the course of its decision, the two-Judge Bench referred to the earlier decision in *T. V. Jose v. Chacko P.M.*, which had arisen under the [Motor Vehicles Act 1939](#). In that context, this Court had held thus: (SCC p.244, para 12)

"12..... '10. ... There can be transfer of title by payment of consideration and delivery of the car. The evidence on record shows that ownership of the car had been transferred. However, the appellant still continued to remain liable to third parties as his name continued in the records of RTO as the owner. The appellant could not escape that liability by merely joining Mr Roy Thomas in these appeals.'

The decision in *T. V. Jose* was followed in *P. P. Mohammed v. K. Rajappan*. Noticing that the decision in *T. V. Jose* was rendered under the [Motor Vehicles Act, 1939](#), the Court in *Pushpa* held that the ratio of the decision "shall apply with equal force to the facts of the cases arising under the 1988 Act" in view of the provisions of [Section 2\(30\)](#) and [Section 50](#). Consequently, the view of this Court was that the person whose name continues in the record of the Registering Authority as the owner of the vehicle is equally liable together with the insurer.

10. The decision of a three-Judge Bench of this court in Purnya Kala Devi involved a situation where the registered owner of a vehicle involved in an accident denied his liability to compensate the legal heirs of the deceased victim on the ground that the State Government had requisitioned the vehicle. On the date of the accident, the vehicle stood requisitioned under the Assam Requisition and Control of Vehicles Act, 1968. The State failed to establish that the vehicle was released from requisition after service of a notice in writing to the owner, to take delivery, as required by [Section 5\(1\)](#) of the state Act. [Under the Assam Act](#), it was only upon the service of a notice to that effect that no liability for compensation would lie with the requisitioning authority. The High Court absolved the State Government on the basis of the definition of the expression 'owner' in [Section 2\(30\)](#) of the Motor Vehicles Act, 1988. Reversing the judgment, this Court held thus: (SCC p.147, para 16)

"16..... the High Court, without advertent to [Section 5](#) of the Assam Act, merely on the basis of the definition of "owner" as contained in [Section 2\(30\)](#) of the 1988 Act, mulcted the award payable by the owner of the vehicle. The High Court failed to appreciate that at the relevant time the offending vehicle was under the requisition of Respondent 1 State of Assam under the provisions of the [Assam Act](#). Therefore, Respondent 1 was squarely covered under the definition of "owner" as contained in [Section 2\(30\)](#) of the 1988 Act. The High Court failed to appreciate the underlying legislative intention in including in the definition of "owner" a person in possession of a vehicle either under an agreement of lease or agreement of hypothecation or under a hire-purchase agreement to the effect that a person in control and possession of the vehicle should be construed as the "owner" and not alone the registered owner. The High Court further failed to appreciate the legislative intention that the registered owner of the vehicle should not be held liable if the vehicle was not in his possession and control. The High Court also failed to appreciate that [Section 146](#) of the 1988 Act requires that no person shall use or cause or allow any other person to use a motor vehicle in a public place without an insurance policy meeting the requirements of Chapter XI of the 1988 Act and the State Government has violated the statutory provisions of the 1988 Act. The Tribunal also erred in accepting the allegation of Respondent 2 that the vehicle was released on the date of the accident at 10.30 a.m. and the accident occurred at 10.30 a.m. without any evidence even though in the claim petition, it was stated that the accident had occurred at 10.15 a.m."

11. The above observations would indicate that a combination of circumstances cumulatively weighed with this Court. Significantly, for the purposes of the present discussion, what emerges from the above judgment is the circumstance that the motor vehicle was on the date of the accident requisitioned by the State Government. Requisitioning by its very nature is involuntary insofar as the person whose property is requisitioned is concerned. This Court observed that it is the person in control and possession of a vehicle which is under an agreement of lease, hypothecation or hire purchase who is construed as the owner and not the registered owner. The same analogy was drawn to hold that where the vehicle had been requisitioned, it was the

State and not the registered owner who had possession and control and would hence be held liable to compensate. Purnya Kala Devi does not hold that a person who transfers the vehicle to another but continues to be the registered owner under [Section 2\(30\)](#) in the records of the Registering Authority is absolved of liability. The situation which arose before the Court in that case must be borne in mind because it was in the context of a compulsory act of requisitioning by the State that this Court held, by analogy of reasoning, that the registered owner was not liable.

12. The subsequent decision of a Bench of three Judges of this Court in *HDFC Bank Ltd. v. Reshma* involved an agreement of hypothecation. The Tribunal held the financier of the vehicle to jointly and severally liable together with the owner on the ground that it was under an obligation to ensure that the borrower had not neglected to get the vehicle insured. The High Court had dismissed the appeal filed by the Bank against the order of the Tribunal holding it liable together with the owner. In the appeal before this Court, Dipak Misra, J. (as the learned Chief Justice then was) adverted during the course of the judgment to the principles laid down by this Court in several earlier decisions, including of this Court. Noticing that the case before the court involved a hypothecation agreement, this Court held: (SCC p.693, para 22)

“22. In the present case, as the facts have been unfurled, the appellant Bank had financed the owner for purchase of the vehicle and the owner had entered into a hypothecation agreement with the Bank. The borrower had the initial obligation to insure the vehicle, but without insurance he plied the vehicle on the road and the accident took place. Had the vehicle been insured, the insurance company would have been liable and not the owner. There is no cavil over the fact that the vehicle was the subject of an agreement of hypothecation and was in possession and control of Respondent 2.”

Since the Second respondent was in control and possession of the vehicle this Court held that the High Court was in error in fastening the liability on the financier. The failure of the Second respondent to effect full payment for obtaining an insurance cover was neither known to the financier nor was there any collusion on its part. Consequently, the High Court was held to be in error in fastening liability on the financier.

13. The consistent thread of reasoning which emerges from the above decisions is that in view of the definition of the expression “owner” in [Section 2\(30\)](#), it is the person in whose name the motor vehicle stands registered who, for the purposes of the Act, would be treated as the “owner”. However, where a person is a minor, the guardian of the minor would be treated as the owner. Where a motor vehicle is subject to an agreement of hire purchase, lease or hypothecation, the person in possession of the vehicle under that agreement is treated as the owner. In a situation such as the present where the registered owner has purported to transfer the vehicle but continues to be reflected in the records of the registering authority as the owner of the vehicle, he would not stand absolved of liability. Parliament has consciously

introduced the definition of the expression “owner” in [Section 2\(30\)](#), making a departure from the provisions of [Section 2\(19\)](#) in the earlier 1939 Act. The principle underlying the provisions of [Section 2\(30\)](#) is that the victim of a motor accident or, in the case of a death, the legal heirs of the deceased victim should not be left in a state of uncertainty. A claimant for compensation ought not to be burdened with following a trail of successive transfers, which are not registered with the registering authority. To hold otherwise would be to defeat the salutary object and purpose of the Act. Hence, the interpretation to be placed must facilitate the fulfilment of the object of the law. In the present case, the First respondent was the “owner” of the vehicle involved in the accident within the meaning of [Section 2\(30\)](#). The liability to pay compensation stands fastened upon him. Admittedly, the vehicle was uninsured. The High Court has proceeded upon a misconstruction of the judgments of this Court in *Reshma and Purnya Kala Devi*.”

13(xiii)(c). From the decision rendered in the case of **Navin Kumar**(supra), it becomes clear that it is the person in whose name the motor vehicle is registered, would be treated as the owner of the vehicle. Thus, when the respondent No. 1 had presented his nomination paper on 22.03.2019 for election to the 44-Tezu(ST) Assembly Constituency in the election held in the year 2019, and on the date of scrutiny of the nomination paper on 26.03.2019; the owner of Kinetic Zing Scooty bearing Registration No. AR-11/4474 and Maruti Omni Van Ambulance bearing Registration No. AR-11A/3100, was Smti. Bagilu Kri, wife of respondent No. 1; and owner of TVS Star City Motorcycle bearing Registration No. AR-11/6851, was Shri Goshinso Kri, son and dependent of respondent No. 1.

13(xiii)(d). From perusal of Ext. 17 which is part of the Form 26 of the Conduct of Election Rules, 1961, filled up by the respondent No. 1 in clause 7A(vi) of Form 26 for disclosure of motor vehicles/aircrafts/yachts/ships/details of make, registration no., etc., year of purchase and amount; in respect of self, spouse, dependents; it is found that the aforesaid 3 vehicles owned by

Smti. Bagilu Kri, wife of respondent No. 1 and Shri Goshinso Kri, son of respondent No. 1, respectively, have not been disclosed therein.

ISSUE NOS. 2 AND 3:

“(2). Whether there has been a non-disclosure of ownership of non-agricultural land belonging to the mother of the respondent No. 1, Smti. Kandula Kri, for which a land measuring 50,000 sq. Mtrs, in Jalukbari village, Lohit District, in respect of which LPC No. 36 vide Order No. LRE-5548/10/36 dated 26.07.2010 have been allegedly issued by the Deputy Commissioner, Lohit District, in the name of Smti. Kandula Kri, the mother of the respondent No. 1 as is required to be disclosed under Clause 7(B) of the Conduct of Election Rules, 1961?”

“(3). Whether Smti. Kandula Kri, the mother of the respondent No. 1, is a dependent of the respondent No. 1, Karikho Kri?”

14. Submissions made by the learned senior counsel for the petitioner as per written argument filed on Issue Nos. 2 and 3:

“1. Smti. Kandula Kri is the mother of respondent No.1. she is the owner of land measuring 50,000/- sq.mtrs, in Jalukbari village, Lohit District covered by LPC No. 36 vide Order No.LRE-5548/10/36 dated 26.07.2010 but the same has not been disclosed by respondent No.1 in Form 26 appended to nomination paper. She is dependent on him.

PW-1 deposed that “At page 11 of Ext-2, serial No.4 the name of Smti Kandula appears. As against the name of Kandula Kri, the land measuring 50,000 Sq. Mtrs located at Jalukbari village was approved by the Deputy Commissioner on 26.07.2010 in her name. Therefore, the LPC was issued to Smti Kandula Kri for the said land measuring 50,000 Sq.Mtr.

Ext-3 is the Office copy (in original) of the land possession certificate issued to Smti Kandula Kri, wife of Lt. S. Kri village Telluliang, Circle Tezu, Lohit District dated 26.10.2010. Ext-2 was issued based on the records maintained in the Office of the Deputy Commissioner including Ext -3 LPC. Ext-4 is the name of Kandula Kri and Ext-4/1 is the area of land allotted to Smti Kandula Kri. Ext-4 /2 is the date of approval by the Deputy Commissioner of issuance of LPC in favour of Kandula kri.

DW-A1 Karikho Kri stated that his mother Smt. Kandula Kri is not dependent on him and she has her own independent sources of income from her Fair Price Shop licence namely M/s Tezu Fair Price Shop, two pharmacies namely M/s Life care under Licence No. 2005/108/11 dated 18.5.2005 and M/S MAA Medicos under the Licence No. 2012/108/18-19 dated 30.04.2013 and she also owns M/S K.K. Wine Shop under an IMFL (Liquor) Licence.

DW-1A in cross, has stated that "the age of my mother, Smti Kandula Kri is 90+ (plus) and the age of my mother recorded in her Aadhar card is 87 years. The educational qualification of my mother is Nil. My mother is not a pharmacist". The Respondent No.1 did not adduce any the evidence in support of his claim that his mother is not dependent on him; even his mother did not say in evidence that she has her own source of income and not dependent on him, as such non-disclosure of assets & immovable property his mother property is a defect in substantial nature.

The Submission of the respondent No.1 is that the mother of the respondent No.1 has her own source of income and she is not depended on him. She has her Fair Price Shop, Pharmacies and Wine Shop under an IMFL (Liquor) Licence. Therefore, he has not mentioned his mother as dependent in page 103 of the Election Petition. There is no specific pleading in the Election Petition that the mother of the respondent No.1 is not depended upon him. The petitioner only pleaded in Election Petition in 10 and 11 (vii) & (viii) is that the mother of the respondent No.1 has a plot of land measuring 50,000 Sq.mtrs, the respondent No.1 did not mention the aforesaid land detail in Form 26. The Dw-24, 28, 29, 30 and 31 did not face cross examination as such their evidence-on-affidavit has automatically stood expunged. The issue No.2 and 3 may therefore be decided in favour of the petitioner."

14(i). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed on Issue No. 2:

"(i) In terms of Note 4 of Sub-Paragraph B of Paragraph 7 of Form 26 of the Conduct of Election Rules "Dependent means parents, son(s), daughter(s) of the candidate or spouse and any other person related to the candidate whether by blood or marriage, who have no separate means of income and who are dependent on the candidate for their livelihood".

The paragraph 7(B) of Part A of the Affidavit in Form 26 pertains to details of "Immovable Assets of which a candidate is required to submit details for himself and his dependents".

While the Election Petitioner quotes the aforesaid provisions of law at Page 10 and 13 of the Election Petition, he fails to plead in the Election Petition the material fact as per above law that the mother of the returned candidate has no separate means of income and is dependent on the returned candidate for her livelihood. In the absence of such material pleadings in the election petition in respect of the

mother, the allegation that the returned candidate did not mention the immovable properties and the business of the mother becomes unsustainable.

(ii) PW-7, Shri Nuney Tayang, Election Petitioner, deposes about a LPC land of the mother and nothing more. This plot of land is owned by Smti kandula Kri and it is not a parental property which is confirmed by (PW-1, Shri Damchin Norbu, DLR & SO).

(iii) At page 146, the election petitioner gives evidence of the returned candidate's mother land.

(iv) At page 154, in the course of cross-examination, the election petitioner as (P.W.-7) rather states that he was not aware if the mother has separate source of income. The Election Petitioner in evidence also does not specifically say that the mother has no separate means of income and is dependent on the Returned Candidate for his livelihood.

(v) At page 176 the returned candidate as DW -1A, in the cross-examination gives details of the source of income of the mother as stated in his written statement.

(vi) At page 229 DW-23 (Smti Inkrilu Tawsik (Kri)) deposes her evidence in chief, wherein she proved the source of income of the mother of the Returned candidate. Cross-examination declined by the Election Petitioner.

(vii) At page 232 DW - 24 (Shri Manoj Chakraborty) gives the evidence of running the Fair Price shop of the mother of the Returned Candidate. This witness was not even cross-examined by the Election Petitioner. D.W. -24 was managing the Fair Price shop of the mother till 2020.

(viii) At page 234 DW - 25 (Shri Lal Babu Sah) - He gives evidence of running the business of Fair Price Shop. This witness was managing the Fair Price Shop of the mother since July, 2020. This witness was not even cross-examined by the Election Petitioner.

(ix) At page 236 DW - 26 (Shri Tomo Gamlin), the District Food and Civil Supplies Officer. This official witness confirms the issuance of Fair Price Shop license in 2006 and the said license is valid till 2023. This official witness was also not cross-examined by the Prosecution.

(x) At page 238 DW - 27 (Shri Deep Narayan Patel) - This witness is managing the wine shop of the mother of the Returned Candidate. This D.W. - 27 was also not cross-examined by the election petitioner.

(xi) At page 240 DW - 28 (Shri Ranjit Kumar Ray) - This witness is a staff in the wine shop of the mother of the Returned Candidate. D.W. - 28 was not cross-examined.

(xii) At page 242 DW 29 (Shri Mibom Kaye) is the Superintendent of Tax & Excise, Narcotic, Lohit District Tezu. This official witness confirms the issuance of wine shop license to mother in 2002 which is valid till 15.07.2023.

Cross-examination of this official witness was also declined by the election petitioner.

(xiii) At page 244 DW - 30 (Shri Satyabrata Kar) is the Manager of the Pharmacy of the mother of the Returned Candidate. This D.W.- 30 was also not cross-examined by the election petitioner.

(xiv) At page 246 DW - 31 (Shri Jayanta Chatterjee) is the Manager of the second Pharmacy of the mother of the Returned Candidate. This witness was also not cross-examined.

In the light of the aforesaid facts, it is seen that first of all the Election Petitioner has failed to plead the material fact as required by the Representation of People Act that the mother of the Returned Candidate has no separate means of income and is dependent on the Returned Candidate for her livelihood. The Returned Candidate has on the other hand, proved with cogent and reliable evidence that his mother has independent income and is not dependent on the Returned Candidate for her livelihood. The official witnesses before the court also supports this stand of the Returned Candidate in respect of her mother.

Hence, answer to issue No. 2 as framed by this Court will be in the negative."

14(ii). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed on Issue No. 3:

"In respect of Issue No. 3 as to whether Smti Kandula Kri, the mother of the Respondent No. 1 is a dependent of the Respondent No. 1/the Returned Candidate, it is most-respectfully submitted the first of all the Election Petitioner has nowhere pleaded that the Mother of the Respondent No. 1 has no separate income and is dependent for her livelihood on the Respondent No. 1/the Returned Candidate.

Under Order XIV Rule 3 of the Code of Civil Procedure, an issue for determination in a trial arises from a fact alleged in the plaint and from a fact denied in the written statement. In that view of the matter, the issue no. 3 was inadvertently framed by this Hon'ble Court which can be now struck off by this Hon'ble Court in exercise of powers under Order XIV Rule 5 (2) of the Code of Civil Procedure.

Nonetheless, the Respondent the Returned Candidate through cogent and reliable evidence as discussed above has demonstrated that the Mother has separate source of income and is not dependent on the Respondent No. 1 for her livelihood.

Since, it has already been answered in Issue No. 2 with cogent evidence."

Finding of the Court on Issue Nos. 2 and 3:

14(iii). With regard to the Issue Nos. 2 & 3; the election petitioner in paragraph 11(vii) and (viii) of the election petition, has pleaded, as under:

"11. (vii). That, paragraph (7)B. of Part-A of the affidavit required to be submitted in Form 26 pertain to the 'Details of Immovable Assets' and a candidate is mandatorily required to submit the details of the immovable assets wherein he is required to, inter alia, submit the details of the agricultural lands, non-agricultural lands, commercial buildings and residential buildings of the candidate and his dependents. It is reiterated that in Note 4 of sub-paragraph B of paragraph (7) of Form 26 that "'Dependent' means parents, son(s), daughter(s) of the candidate or spouse and any other person related to the candidate whether by blood or marriage, who have no separate means of income and who are dependent on the candidate for their livelihood." Further, Note 1 of sub-paragraph B of paragraph (7) of Form 26 mentions that "Properties in joint ownership indicating the extent of joint ownership will also have to be indicated."

(viii). That, Smt. Kandula Kri, the mother of the respondent no. 1 has a plot of land measuring 50,000 square metres in Jhalukbari village, Lohit District, in respect of which she was issued a Land Possession Certificate('LPC' in short) with LPC no. 36 in connection with which the Deputy Commissioner of Lohit District had given an approval vide No. LRE-5548/10/36, dated 26/07/2010. However, the respondent no. 1 Shri Karikho Kri did not mention the aforesaid land details of his mother in the declaration submitted by him in paragraph (7)B of his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper. By the non-disclosure thereof, the respondent no. 1 has made false statements and given false declarations in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held in the year 2019."

14(iii)(a). In reply to the pleaded case of the election petitioner; Shri Karikho Kri, the respondent No. 1, in paragraph No. 9 of the written statement filed, has stated, as under:

"9. That, so far as the first ground taken in Paragraph 11(i)(ii)(vii)(viii) pertaining to the Non-disclosure of the assets of the mother (land owned by the mother) in the affidavit filed with the nomination paper is concerned, the allegations is that the mother is dependent upon the deponent, it appears that the election petitioner is imposing the mother of the deponent to prove that she is dependent of the deponent by wrong interpretation of the election rules. Therefore, the entire burden of proof lies upon the election petitioner to prove his case beyond reasonable doubt with material documents so as to establish that, the mother of the deponent is dependent

of the deponent, who has her own sources of income to sustain herself. Therefore, she is not dependent of the deponent resulting into not declaring the mother as one of the dependent in Form 26. Hence, the allegation as so alleged does not stands scrutiny of law.”

14(iii)(b). From the pleaded case of the election petitioner; it is noticed that what has been alleged is the non-disclosure of a plot of land measuring 50,000 sq. mtrs. in Jhalukbari village, Lohit District, of Smti. Kandula Kri, the mother of respondent No. 1; for which, a Land Possession Certificate vide LPC No. 36 and approval No. LRE-5548/1036, dated 25.07.2010, has been issued by the Deputy Commissioner, Tezu.

14(iii)(c). The election petitioner, however, has not pleaded that Smti. Kandula Kri, the mother of respondent No. 1; is a dependent of Shri Karikho Kri, the respondent No. 1. The respondent No. 1, while not denying the land possessed by his mother for which the Land Possession Certificate(LPC) has been issued by the Deputy Commissioner, Tezu, vide LPC No. 36 and approval No. LRE-5548/10/36, dated 26.07.2010, has, however, stated that his mother Smti. Kandula Kri, is not dependent on him and she has her own source of income to sustain herself.

14(iii)(d). A perusal of Clause 7(B) of Form 26 of the Conduct of Election Rules, 1961; it appears that details of immovable assets of self, spouse, HUF, dependents 1, 2 and 3, are to be disclosed.

14(iii)(e). That the relief not founded on the pleadings cannot be granted and no evidence is permissible to be taken on record in the absence of the pleadings; the Hon’ble Supreme Court in **Union of India v. Ibrahim Uddin**

& anr., reported in **(2012) 8 SCC 148**, in paragraphs No. 77 and 78, has held as under:

"77. This Court while dealing with an issue in Kalyan Singh Chouhan v. C. P. Joshi, after placing reliance on a very large number of its earlier judgments including Trojan & Co. v. Nagappa Chettiar, Om Prakash Gupta v. Ranbir B. Goyal, Ishwar Dutt v. Collector(LA) and State of Maharashtra v. Hindustan Construction Co. Ltd., held that relief not founded on the pleadings cannot be granted. A decision of a case cannot be based on the grounds outside the pleadings of the parties. No evidence is permissible to be taken on record in the absence of the pleadings in that respect. No party can be permitted to travel beyond its pleadings and that all necessary and material facts should be pleaded by the party in support of the case set up by it. It was further held that where the evidence was not in the line of the pleadings, the said evidence cannot be looked into or relied upon.

78. In Bachhaj Nahar v. Nilima Mandal this Court held that a case not specifically pleaded can be considered by the court unless the pleadings in substance contain the necessary averments to make out a particular case and issue has been framed on the point. In the absence of pleadings, the court cannot make out a case not pleaded, suo motu."

14(iii)(f). In the case of **M. Chinnasamy v. K. C. Palanisamy & ors.** reported in **(2004) 6 SCC 341** also; the Hon'ble Supreme Court in paragraph No. 42, thereof, has held that ".....It is now well-settled principle of law that evidence adduced beyond the pleadings would not be admissible nor can any evidence be permitted to be adduced which is at variance with the pleadings. The court at a later stage of the trial as also the appellate court having regard to the rule of pleadings would be entitled to reject the evidence wherefor there does not exist any pleading."

14(iii)(g). In view of the above, since it is the immovable assets of the dependents along with that of the candidate and the spouse which is required to be declared in Clause 7(B) of Form 26 of the Conduct of Election Rules, 1961, and there being no pleading in the election petition that Smti. Kandula Kri, the mother of respondent No. 1 is a dependent on respondent No. 1, even though some evidence has been adduced in that respect by both parties; however, in the absence of pleading by the election petitioner to the effect

that Smti. Kandula Kri is dependent on respondent No. 1; it is held that it was not necessary for the respondent No. 1 to declare the immovable assets of Smti. Kandula Kri, his mother, in Clause 7(B) of Form 26 of the Conduct of Election Rules, 1961.

ISSUE NO. 4:

"Whether there has been a non-submission of no dues certificate with regard to Electricity Charges required to be submitted under Clause 8(ii)(b) of Form No. 26 of the Conduct of Election Rules, 1961, as the respondent No. 1 was in occupation of MLA Cottage No. 1 at 'E' Sector, Itanagar, from the year, 2009-2014, while the respondent No. 1 was an MLA of Tezu(ST) Assembly Constituency during the year, 2009-2014?"

15. Submissions made by the learned senior counsel for the petitioner as per written argument filed:

"The petitioner raised an objection vide Ext.12 for rejection of the Nomination Paper of the Respondent No.1 before the Returning Officer on 26.03.2019 and in paragraph No.11(ix,x,xi), 15 and 16 of the election petition stating that the Respondent No.1 did not mention in paragraph 8 (ii) of Part-A of Form -26 of his Affidavit the details of government accommodation of MLA cottage No.1 in Block-1, E-Sector, Itanagar for the period 2009 to 2014 and its liabilities during last ten years till date notification of election. He had mentioned the address of the government accommodation "Not applicable" and he also mentioned "NIL" : No" regarding the due payable in respect of the aforesaid government accommodation, towards the a) Rent b) Electricity C) Water Charges and d) telephone charges in Form 26.

Respondent no.1 in his Written Statement in para 11 and 17 admitted that, before 2014 he was in occupation of Government Accommodation at MLA Cottage No.1, Itanagar, However, after he lost the election in 2014, the said Government accommodation was vacated. At the time of filing of Nomination paper in General Election 2019 to the State Legislative Assembly he did not disclose about the same.

PW 3, Shri Khangshung Jugli, Deputy Secretary, Legislative Assembly, deposed that "the name of Karikho Kri respondent No.1 herein appears in Sl.1 against block No.1. He was allotted Cottage No.1, E-Sector Itanagar by allotment Order dated 08.05.2009 (Ext.8) and Ext.9 & Ext-10 allotment Order dated 13.11.2009 issued by the Principal Secretary".

DW 1A, Shri Karikho Kri in his evidence deposed that "I have availed the Government accommodation up to 2014. I have not submitted 'No due certificates' regarding Government Accommodation that was allotted to me in the capacity of an MLA for the period from 2009-2014 to the Returning Officer along with my Nomination paper filed for Election held for the Legislative Assembly in 2019 from 44 Tezu (ST) Assembly Constituency because the Returning Officer told me that it is not required". In Ext.14 i.e Form-26 against the column meant for occupation of accommodation provided by the Government during last ten years. This is regarding no dues of Government Revenue so I answered "No", Ext.16 is the question and Ext 16(1) is the answer as "No".

DW-1A also stated in his evidence-"Returning Officer told me that it is not required". But such justification would not justify the non-disclosure and the defect of Non-disclosure of the government accommodation and No Due Certificates towards rent, electricity, water and telephone charges in the Affidavit in Form-26 by the respondent No.1 would lead to a defect of substantial nature In the Nomination Paper. Thus the Returning Officer improperly accepted the nomination of the respondent No.1, which is invalid. Hence, the election of the returned candidate is liable to be set aside.

The Hon'ble Supreme Court in Kisan Shankar Kathore v. Arun Dattatray Sawant, (2014) 14 SCC 162 (para 3. 31.1, 37, 39 and 43) it has been held that non-disclosure of Bungalow, vehicles and property would result in improper acceptance of the nomination paper.

Contention of Respondent No. 1 on issue No. 3,

The respondent No.1 contended that "No due Certificates" were submitted along with the nomination paper. But this is factually incorrect. The clarification letter dated 26.03.2019 (Ext-R/7(A)) after the scrutiny cannot cure the defect in the Nomination Paper.

In reply to submission of the respondent No.1, the petitioner begs to further submit that the respondent No.1 admitted that "No dues certificates" with regard to said government accommodation has not been submitted along with nomination paper. The 'No Due Certificates' exhibited by the respondent No. 1 i.e Ext. R/19 to R/21 are only photocopies, original copies are not produced before the court records as such it is not admissible under the law. Moreover, there is no provision under the Representative of the People Act, 1951 and Rules to submit any clarification vide letter dated 26.03.2019 Ext. R/7(A) after the submission of the nomination paper on the date fixed. However, to clarify his submission, the original records of the nomination and Form 26 was cross checked and it was found that no such "No Due Certificates (Ext-R/19 to R/19 (B))" were submitted along with his nomination paper.

The issue No.4 may thus be decided in favour of the petitioner."

15(i). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"(i) At page 15 of the E.P., it is alleged by the election petitioner and "Indian National Congress" candidate that the returned candidate has stated that clause relating to Govt. accommodation is not applicable and there are no dues payable in respect of Govt. accommodation towards rents, electricity charges, water charges and telephone charges as on 22.03.2019. The election petitioner states that the returned candidate was an MLA from 2009 to 2014, and he occupied a Govt. quarter Cottage No. 1 in E-Sector, Itanagar during the last 10 years before filing of the nomination paper for the current election.

(ii) Written Statement of the Returned Candidate at Page 15. It is pleaded by the returned candidate that he was also an MLA from 2009 to 2014 and as an MLA; he occupied Govt. quarter, being Cottage No. 1. After he lost election in 2014, he vacated the said quarter; he obtained "No Dues Certificates" from all Govt. agencies such as PHE, Power, BSNL, etc. after clearing all dues in 2014 and all these "No Dues Certificates" including the "No Dues Certificate" from Power Department for electricity charges have been submitted along with the nomination paper in 2019 election. "No Dues Certificate" for electricity charges from Power Department is also duly exhibited as Exhibit No. R/51 which Exhibit is not denied/objected to and/or controverted by the Election Petitioner.

All "No Dues Certificates" from different Govt. agencies including the aforesaid "No Dues Certificate" for electricity charges submitted with the nomination paper are also annexed with the Written Statement (page 62 to 90 of Written Statement) as Annexure and exhibited in the course of the proceedings. These Annexures/Exhibits are not objected and/or controverted by the Election Petitioner.

(iii) At page 227 DW - 18 (Shri Sukhamay Bhowmik, Director of Accounts and Treasuries, Govt. of Arunachal Pradesh) appears and states on oath that he was the Finance and Accounts Officer from 1994 to 2015. He confirms the issuance of "No Dues Certificates".

Cross-examination of this official witness is declined by the election petitioner, meaning thereby that the Election Petitioner accepts the evidence adduced by the Director of Accounts, Govt. of Arunachal Pradesh.

"No Dues Certificate" No.CESD-1I/PR-II/2013-14/3549 dated Itanagar the 10th March 2014 in respect of electricity charges for the MLA Cottage Block No. 1 (Govt. accommodation) availed by the Returned Candidate as M.L.A. during 2009-2014 which were submitted along with the nomination paper is at page 67 of the written statement and also refer to DW-1A cross examination. No Dues Certificate of Power Department was submitted to RO but later return back by RO. Which after being exhibited by the Returned Candidate are not at all denied or controverted by the

Election Petitioner nor he has proof any pending bill against the return candidate. That apart the return candidate has also submitted an Additional Undertaking in his affidavit @ page 91 to 94 of his written statement before the RO in support of his nomination paper.

When the Election Petitioner had questioned the outstanding of Electricity Charges against the MLA Cottage from October 2009 to May 2014 then the Returned Candidate had once again obtained "No Due Certificate" dated Itanagar the 5th July 2019, No. CESD-I/NOC/2019-20/813 from the competent authority. This No due certificate Annexed at page No. 87 in Written Statement by the returned candidate which was not cross-examined by the election petitioner. Hence, the election petitioner failed to prove/established any government dues against the returned candidate. The election petitioner fail to prove that the returned candidate has electricity bill dues.

That apart if we look into the HANDBOOK FOR RETURNING OFFICER @ page NO. 99, Para 6.7, which speaks about "Presumption of Validity". 6.7.1-There is a presumption that every nomination paper is valid unless the contrary is prima facie obvious or has been made out. In case of a doubt as to the validity of a nomination paper, the benefit of such doubt must go to the candidate concerned and the nomination paper should be held to be valid. Remember that whenever a candidate's nomination paper is rejected without proper reason that can be a reason to set aside the election in an election petition. Returning Officer should adopt a comparatively liberal approach in dealing with minor technical or clerical errors. Sub-section (4) of Section 36 mandates that nomination paper shall not be rejected on a ground or defect which is not substantial.

Therefore, only on the question of the non-submission of No Dues Certificate by the Candidate itself is not of a substantial nature and the Returning Officer shall not reject the nomination paper of the candidate on such mere error on the part of the candidate.

(iv) Paragraph (8) of Part 'A' of Form 26 indeed deals with non-disclosure of Govt. dues for a Govt. accommodation availed by a candidate during the last 10 years prior to filing of nomination. In the instant case, the returned candidate having submitted the "No Dues Certificates" along with the nomination, there is no question of any willful and deliberate suppression on the returned candidate tantamounting to improper acceptance of his nomination paper by the Returning Officer.

(v) Section 36(4) of the Representation of the People Act, 1951 mandates that the Returning Officer shall not reject any nomination paper on the ground of any defect which is not of a substantial character.

In the present case, the Returned Candidate having already submitted his "no due certificates" from the different govt. agencies for the MLA quarter he occupied from 2009 to 2014 along with the nomination paper and having exhibited and proved

proceedings supported by the evidence of the Director of Accounts and Treasuries of the Govt. of Arunachal Pradesh, Who is not even cross-examined by the Election Petitioner, the nomination paper submitted by the Returned Candidate can neither be said to have suffered from any substantial defect nor the Returned Candidate be said to have committed any corrupt practice in that regard.

Hence, the answer to the aforesaid Issue No. 4 regarding non-submission of "No dues Certificate" for electricity charges for government accommodation would be in the negative and in favour of the returned candidate.

For the present issue as well as the decisions cited here above are also again relied upon along with the decisions of the Hon'ble Apex Court on the issue of corrupt practice hereinafter referred to."

Finding of the Court on Issue No. 4:

15(ii). With regard to issue No. 4; the election petitioner in paragraphs No. 11(ix), (x), (xi), 15 & 16 of the election petition, has pleaded, as under:

"11.(ix). That, paragraph (8) in Part-A of the affidavit (in Form 26) relates to the details of liabilities/dues to public institutions and government. Serial no. (ii) of the table in the said paragraph (8) in Part-A of the affidavit (in Form 26) relates to the Government dues to departments dealing with Government accommodation, wherein the candidate is required to declare as to whether he had been in occupation of accommodation provided by the Government at any time during the last ten years before the date of the current election.

(x). That, the respondent no. 1 in his declaration on affidavit (in Form 26) dated 22/03/2019 in paragraph 8(ii) thereof, had stated that aforesaid clause relating to government accommodation was 'not applicable' to him and had declared that there are no dues payable in respect of the government accommodation, towards (a) rent, (b) electricity charges, (c) water charges and (d) telephone charges as on 22/03/2019.

(xi). That, in reality, the respondent no. 1 was an MLA during the period from 2009 to 2014 from the Tezu(ST) Assembly Constituency and he was in occupation of Cottage No. 1 in E-Sector, Itanagar, Arunachal Pradesh. The said occupation of Government accommodation by the respondent no. 1 was during the last ten years before the date of notification of the current election. The respondent no. 1 was also required to submit 'No Dues Certificates' from the agencies concerned in respect of rent, electricity charges, water and telephone charges in respect of the aforesaid government accommodation. However, the said fact was not declared in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper. By the non-disclosure thereof, the respondent no. 1 has false statements and given false

declarations in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held pursuant to Notification No. 464/ARUN-LA/2019 dated 18/03/2019.”

“15. That, Shri Teli Mello Camdir, a representative and supporter of the petitioner, had made an application dated 12/04/2019 under the RTI Act, 2005 seeking information regarding the details of Government accommodation availed by the respondent No. 1 Shri Karikho Kri for the period from, 2009 to 2014. In response thereto, the Deputy Secretary, Legislative Assembly, Arunachal Pradesh had furnished a RTI reply letter no. LA/Estt/RTI-13/2018 dated 01/05/2019 enclosing the following documents:

(i) Allotment Order dated 08/05/2009 bearing no. LA/Allot-1/2004 issued by the Secretary, Legislative Assembly Secretariat, Itanagar, inter alia, allotting building and official bungalow in Block No. 1 to the respondent No. 1 Shri Karikho Kri. A list of occupants of MLA Cottage as on 27/02/2009 was also enclosed with the said letter dated 08/05/2009, wherein the respondent No. 1 Shri Karikho Kri is shown as the occupant of a MLA cottage at Serial No. VI of the said list.

(ii) Allotment Order dated 13/11/2009 bearing no. DOE/ACCOM-8/96-97(Pt) issued by the Principal Secretary(UD etc.), inter alia, allotting Cottage No. 1 in E – Sector to the respondent No. 1 Shri Karikho Kri.”

“16. That, from a perusal of the aforesaid information obtained under RTI Act, 2005, it transpires that the respondent No. 1 Shri Karikho Kri was in occupation of Government accommodation was during the last ten years before the date of notification of the current election. He had not disclosed the same and had thereby made false statements and given false declarations in serial no. (ii) of the table in the paragraph (8) in Part-A of the affidavit(in Form 26) dated 22/03/2019, wherein he had mentioned the address of the Government accommodation ‘Not Applicable’ and he also mentioned ‘NIL’ regarding the dues payable in respect of the aforesaid government accommodation, towards the (a) rent, (b) electricity, (c) water charges, and (d) telephone charges as on 22/03/2019. Further, the respondent No. 1 Shri Karikho Kri did not submit the ‘No Dues Certificates’ from the concerned authorities/agencies in respect of the same. By the non-disclosure thereof, the respondent no. 1 has made false statements and given false declarations in his affidavit (in Form 26) dated 22/03/2019 submitted with his nomination paper for the election to the Legislative Assembly of Arunachal Pradesh held in the year 2019. The same is a defect of substantial nature. The same was presented a false picture of the respondent no. 1 as a person who did not avail of any Government accommodation and partake of the facilities so entitled to him on account thereof, thereby affected the prospects of election of the petitioner.”

15(ii)(a). In reply to the above contention of the election petitioner; Shri Karikho Kri, the respondent No. 1, in paragraphs No. 11 and 17 of the written statement filed, has stated, as under:

"11. That, so far as the third ground taken in Paragraph 11(ix)(x)(xi) pertaining to the Non-disclosure of the occupation of accommodation provided by the Government at any time during the last ten years before the date of the current election. In this regard, it categorically clarified that, it is admitted that, before 2014 the deponent was in occupation of Government Accommodation at MLA Cottage No. 1, Itanagar, however, after the deponent lost the election in 2014, the said Government accommodation was vacated respectively. As such, while filing nomination paper for the General Election 2014 to the State Legislative Assembly of Arunachal Pradesh held in April 2014, the Deponent had obtained all the required no dues certificate from the Legislative Assembly, PHE, Power, BSNL etc after clearing all the dues and it was submitted along with the nomination paper. In view of the fact that, there were no outstanding dues relating to Government Accommodation against the Deponent, accordingly, at the time of filing of nomination in General Election 2019 to the State Legislative Assembly the deponent did not disclose about the same. Moreover, the same was informed to the Returning Officer; by way of Affidavit for undertaking dated 22.03.2019, similarly, another affidavit cum declaration dated 02.09.2019, is also sworn before the Magistrate.

17. That, the legal submissions made in Paragraph 15 and 16 of the election petition are partially admitted and accordingly, those made in Paragraph 11 above of this written statement are reiterated and reaffirmed. Further, it is once again restated that, before 2014 the deponent was in occupation of Government Accommodation at MLA Cottage No.1, Itanagar, however, after the deponent lost the election in 2014, the said Government accommodation was vacated respectively. As such, while filing nomination paper for the General Election 2014 to the State Legislative Assembly of Arunachal Pradesh held in April, 2014, the Deponent had obtained all the required no dues certificate from the Legislative Assembly, PHE, Power, BSNL etc after clearing all the dues and it was submitted along with the nomination paper. In view of the fact that, there were no outstanding dues relating to Government Accommodation against the Deponent, accordingly, at the time of filing of nomination in General Election 2019 to the State Legislative Assembly the deponent did not disclose about the same. Moreover, the same was informed to the Returning Officer; by way of Affidavit for undertaking dated 22.03.2019, similarly, another affidavit cum declaration dated 02.09.2019, is also sworn before the Magistrate."

15(ii)(b). From the pleaded case of the election petitioner; it is noticed that the petitioner has alleged that while the respondent No. 1 was an MLA from

44-Tezu(ST) Assembly Constituency for the year 2009-2014; the respondent No. 1 was in occupation of MLA Cottage No. 1 in 'E' Sector at Itanagar, by virtue of being an MLA and thus, was in occupation of a Government accommodation for which the respondent No. 1 was required to furnish information in Form 26 that there is no dues payable in respect of above Government accommodation towards rent, electricity charges, water charges, telephone charges, etc., as provided under Clause 8(ii)(A)(B)(ii) of the Form 26 of the Conduct of Election Rules, 1961.

15(ii)(c). The respondent No. 1, in his written statement, has admitted that he was in occupation of MLA Cottage No. 1 located at 'E' Sector, Itanagar, during the year 2009-2014. However, after he lost the election in the year 2014; the said Government accommodation was vacated by him. It has been further stated that while filing the nomination paper for the Assembly Election in the year 2014 which was held in April 2014; the respondent No. 1 had obtained all the required no dues certificates from the Legislative Assembly, PHE, Power, BSNL, etc., after clearing all the dues and submitted his nomination paper. Since the no dues certificates from the Legislative Assembly, PHE, Power, BSNL, etc., was submitted by him during the State Assembly Election held in the year 2014; there was no outstanding dues relating to the Government accommodation and accordingly, at the time of filing of his nomination paper for the Assembly Election 2019, the respondent No. 1 did not disclose about the same.

15(ii)(d). From the written statement filed by the respondent No. 1; it is, thus, clear that the respondent No. 1 was in occupation of Government

accommodation being MLA Cottage No. 1 at 'E' Sector, Itanagar, while he was an MLA of 44-Tezu(ST) Assembly Constituency for the year 2009-2014 and that though no dues certificates in respect of the said Government accommodation from the Legislative Assembly, PHE, Power, BSNL, etc., was submitted while filing the nomination paper for the State Assembly Election 2014; the respondent No. 1, therefore, did not disclose in Form 26 while filing his nomination paper for the State Assembly Election 2019, that there are no dues in respect of the aforesaid Government accommodation.

15(ii)(e). Clause 8(ii)(A)(B)(ii) of Form 26 of the Conduct of Election Rules, 1961, is reproduced hereinbelow:

“(8) I give herein below the details of liabilities/dues to public financial institutions and government:-
(Note : Please give separate details of name of bank, institution, entity or individual and amount before each item).

Sl. No	Description	Self	Spouse	[HUF]	Dependent -I	Dependent-II	Dependent -III
(ii)	Government dues: Dues to the Departments dealing with Government accommodation	(A) Has the Deponent been in occupation of accommodation provided by the Government at any time during the last ten years before the date of notification of the current election? (B) If answer to (A) above is YES, the following declaration may be furnished, namely:- (i) The address of the Government accommodation: ----- ----- (ii) There is no dues payable in respect of Government accommodation, towards – (a) rent; (b) electricity charges; (c) water charges; and (d) telephone charges as on(date) [the date should be the last date of the third month prior to the month in which the election is notified or any date thereafter]. Note : “No Dues Certificate” from the agencies concerned in respect of rent, electricity charges, water charges and telephone charges for the above Government accommodation should be submitted.					

15(ii)(f). On perusal of Clause 8(ii)(A)(B)(ii) of Form 26 of the Conduct of Election Rules, 1961, it is noticed that if the candidate was in occupation of a Government accommodation at any time during the last 10 years before the date of notification of the current election; the disclosure of no dues payable in respect of the Government accommodation towards, rent, electricity charges, water charges, telephone charges, are required to be disclosed in Form 26 of the Conduct of Election Rules, 1961, and in support thereof, no dues certificates from the agencies concerned in respect of the rent, electricity charges, water charges, telephone charges, for such Government accommodation, is required to be submitted.

15(ii)(g). Since the respondent No. 1/returned candidate was in occupation of MLA Cottage No. 1, located at 'E' Sector, Itanagar, from 2009 to 2014, for being an MLA of 44-Tezu(ST) Assembly Constituency for the year 2009-2014; admittedly, he was in occupation of Government accommodation, referred to above, at a time during the last 10 years when the election for the year 2019 was notified on 18.03.2019.

15(ii)(h). That being the position; the respondent No. 1/returned candidate was required to disclose as per Clause 8(ii)(A)(B)(ii) of the Form 26 of the Conduct of Election Rules, 1961, that no dues are payable in respect of the MLA Cottage No. 1 located at 'E' Sector, Itanagar, towards rent, electricity charges, water charges, telephone charges, duly supported by no dues certificates from the concerned agencies.

15(ii)(i). Since the respondent No. 1 in the written statement filed, has admitted about non-disclosure of no dues payable in respect of the aforesaid Government accommodation towards rent, electricity charges, water charges, telephone charges, duly supported by no dues certificates; it is held that the respondent No. 1 ought to have disclosed in Form 26 of the Conduct of Election Rules, 1961, that there are no dues payable in respect of the MLA Cottage No. 1 under his occupation for the period 2009-2014 towards rent, electricity charges, water charges, telephone charges, duly supported by no dues certificates from the concerned agencies.

ISSUE NO. 5:

“Whether the statements made by the respondent No. 1 about the liability of himself and his wife in respect of Municipal Tax, Property Tax, due and grand total of all govt. dues against Serial No. 6 & 8 of the table in Para-8(A) of the affidavit in Form No. 26 appended to the nomination paper of the respondent No. 1 has rendered the nomination of respondent No. 1, defective?”

16. Submissions made by the learned senior counsel for the petitioner as per written argument filed:

“Against Serial [No. VI](#) & VIII of the table in Para-8(A) (Ext-18) of the Affidavit in Form No.26, the respondent No.1 mentioned that the 31 liability of himself and his wife in respect of Municipal Tax, Property Tax, due with appropriate government Is Rs 33962.00 and Rs 40215.00 respectively. However, in Serial No. 9 & 10 (Ext-19) of the table In paragraph 11 in Part-B of the affidavit Form-26 while mentioning about the total of such government dues the respondent Indicated as “NIL” in respect of himself and his spouse.

Respondent No. 1 in his written statement stated in para 13 thereof that “it is categorically clarified that when the unfilled column was pointed out at time of receiving of nomination paper due to over sight and no notice was given to that, therefore, this is not defect of substantial in nature, the deponent substantively complied with the requirement of submitting such affidavit”.

The respondent No.1 in his cross examination admitted that "It is a fact that I have shown as "NIL" in respect of the government dues in SI. No. 9 and of Form 26 as I have no dues or liabilities with the government except the municipal Tax, which I have already disclosed. Ext-19 is the said remark", It is also stated that "I did not mention about the due in dispute, since I do not have any disputed revenue pending".

In *Kisan Shankar Kathore v. Arun Dattatray Sawant*, (2014) 14 SCC 162, (Para23 & 37) the Hon'ble Apex Court held that "Non-disclosure of the information qua all the aspects is without blemish. There is a specific format in which the information is to be given and should be adhered to." Therefore, the respondent No.1 cannot escape the requirement of furnishing information about Government accommodation availed by him during the last ten years, in the Affidavit. Having thus failed to mention the same in the Affidavit the Nomination Paper has become defective as held by the Hon'ble Apex Court.

The issue No. 5 may therefore be decided in favour of the petitioner."

16(i). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"The basic contention as raised by the Election Petitioner the "Indian National Congress Candidate" as raised in paragraph (xii), page 16 of Election Petition is that the Returned Candidate even though has disclosed his and his wife's outstanding Municipal/Property Tax as Rs. 40,205/- and Rs. 33,952/- in Serial No. (vi) and (vii) of table in Paragraph (8) of Part 'A' of the Affidavit (in Form 26) at page 154 of the E.P., but the returned candidate has forgotten to disclose the same against Serial No. 9 and 10 of table in paragraph (11) in Part 'B' of his affidavit (in Form 26), @ page 158 of the E.P.) therefore it amounts to false statement on the part of the Returned Candidate which should have been treated as substantial defect and as such the election of the returned candidate should be declared void on the ground of improper acceptance of nomination paper and also on account of Corrupt Practice.

The Election Petitioner while raising the aforesaid allegation has lost sight of the fact that the Affidavit (in Form 26) under the Conduct of Election Rules are divided into 2 (two) Parts, Part 'A' and Part 'B'. While in Part 'A', a candidate is required to give details of liabilities/dues to public financial institutions and the government, in Part 'B' of the Affidavit as seen from the Para 11 head note, a candidate is required to give only an abstract of such details mentioned in Part 'A'. In the instant case, it is admitted by the Election Petitioner that the Returned Candidate in the Part 'A' of his Affidavit (in Form 26) has given the details of his outstanding govt. dues, only the Election Petitioner's grievance is that the Returned Candidate in Part 'B' of the Affidavit has not given the abstract of the Part 'A' so far the outstanding govt. due is concerned.

It is not the case of the Election Petitioner, an "Indian National Congress Candidate" that the Returned Candidate has either suppressed some fact of outstanding govt. dues while giving details Part 'A'.

That the Returned Candidate having disclosed the details of outstanding govt. due in Part 'A', of the Affidavit (Form 26) not giving the abstract of such details in Part 'B' of the does not amount to defect of substantial nature in the Nomination Paper and the Returning Officer under Section 36(4) of the Representation of the People Act, 1951 rightly decided to ignore such trivial defect in the nomination paper.

Further, if we refer to the "HANDBOOK FOR RETURNING OFFICER", February 2019, Document 23, Edition 1 of the Election Commission of India "Page No. 99, Para 6.7 Presumption of Validity". "Page No. 100, Para 6.9 Insufficient Ground for Rejection of Nomination Papers". "Page 102 Para No. iv "The Prescribed affidavit has not been filed at all by the candidate, or [N.B. If the prescribe affidavit has been filed but are alleged or found to be defective or containing false information, the nomination should NOT be rejected on this ground". Nomination paper should not be rejected on technical or clerical errors:

"HANDBOOK FOR RETURNING OFFICER", Page No. 99, Para 6.7 Presumption of Validity".

6.7.1-There is a presumption that every nomination paper is valid unless the contrary is prima facie obvious or has been made out. In case of a doubt as to the validity of a nomination paper, the benefit of such doubt must go to the candidate concerned and the nomination paper should be held to be valid. Remember that whenever a candidate's nomination paper is rejected without proper reason that can be a reason to set aside the election in an election petition. Returning Officer should adopt a comparatively liberal approach in dealing with minor technical or clerical errors. Sub-section (4) of Section 36 mandates that nomination paper shall not be rejected on a ground or defect which is not substantial.

6.9 - Insufficient round for Rejection of Nomination Papers(page No. 100)

6.9.1 "Do not reject any nomination paper on the ground of any defect, which is not of a substantial character [Section 36(4) of the said Act]. Any mistake or error of technical or clerical nature should, therefore, be ignored by Returning Officer".

6.10 - Ground for rejection of Nomination papers(page No. 101) 6.10.1 (iv) page No. 102 — "The Prescribed affidavit has not been filed at all by the candidate, or [N.B. If the prescribed affidavit has been filed but are alleged or found to be defective or containing false information, the nomination should NOT be rejected on this ground.]

Hence the answer to the Issue No. 5 would be in the negative."

Finding of the Court on Issue No. 5:

16(ii). With regard to Issue No. 5; the election petitioner in paragraph 11(xii) of the election petition, has pleaded, as under:

“(xii). That, against serial no. (vi) and (vii) of the table in paragraph (8) of Part – A of the affidavit (in Form 26) dated 22/03/2019 of the respondent no. 1 Shri Karikho Kri and his wife Smt. Bagilu Kri relating to Municipal/Property Tax dues and Grand Total of all Government dues respectively, he had shown dues of Rs. 33,962/- approximately as due from himself and Rs. 40,215/- approximately as due from his spouse Smt. Bagilu Kri. However, against serial no. 9 and 10 of the table in paragraph (11) of Part – B of his affidavit (in Form 26) dated 22/03/2019, the respondent no. 1 had declared the total of Government dues and total of disputed Government dues as ‘NIL’ in respect of himself, his spouse Smt. Bagilu Kri and his dependents. As such there are differences in the statements made and declarations given in different paragraphs of his very same affidavit dated 22/03/2019 at different places thereof and the same are contradictory to one another. Hence, the said affidavit (in Form 26) contains false statements made and declarations given by the respondent no. 1.”

16(ii)(a). From the above pleading, the election petitioner has alleged that though the petitioner in Part A, Clause 8(vi) and (viii) of Form 26 of the Conduct of Election Rules, 1961, the municipal/property tax due and the grand total of all Government dues in respect of the respondent No. 1 and his spouse Smti. Bagilu Kri, was shown as Rs. 33,962.00 and 40215.00, respectively, but in Part B-11 *‘Abstract of the details given in (1) to (10) of Part-A’* in Serial No. 9 and 10 under the heading “liabilities-I Government Dues (total) and Liabilities that are under dispute (i) Government Dues (total), in respect of respondent No. 1 and his spouse Smti. Bagilu Kri was shown as “NIL”. As such, the declaration made regarding Government Dues in respect of the respondent No. 1 and his spouse Smti. Bagilu Kri in Part A and B of Form 26 of the Conduct of Election Rules, 1961, is contradictory and therefore, the respondent No. 1 has given false declaration.

16(ii)(b). The respondent No. 1 in the written statement filed, has not controverted the allegation made in Paragraph No. 11(xii) of the election petition. For ready reference, filled-up Form 26 by the respondent No. 1 insofar as Part A, Clause 8(vi) and (viii) is extracted hereinbelow:

- (8) I give herein below the details of liabilities/dues to public financial institutions and government:-
(Note : Please give separate details of name of bank, institution, entity or individual and amount before each item).

Sl. No.	Description	Self Mr. Karikho Kri	Spouse Mrs. Bagilu Kri	[HUF]	Dependent-1 Mr. Oshinso Kri	Dependent-2 Mr. Goshinso Kri	Dependent-3 Mr. Prodhumn Kri	Dependent-4 Ms. Kritilu Kri
(vi)	Municipal/Property Tax due	Rs. 33962.00 Approximate amt.	Rs. 40215.00 Approximate amt.	NIL	NIL	NIL	NIL	NIL
(viii)	Grand total of all Government dues	Rs. 33962.00	Rs. 40215.00	NIL	NIL	NIL	NIL	NIL

16(ii)(c). The respondent No. 1 who had examined himself as DW 1A, in his cross-examination, has admitted the liability towards municipal/property tax dues in respect of himself and his spouse, as mentioned in Form 26 and had also exhibited declaration made above in Clause 8(vi) as Ext. 18 by the respondent No. 1.

16(ii)(d). The declaration made by the respondent No. 1 in Part B(11) 'Abstract of the details given in (1) to (10) of Part-A' at serial No. 9 and 10, is as under:

Part-B

(11) Abstract of the details given in (1) to (10) of Part-A:

	Description	Self Mr. Karikho Kri	Spouse Mrs. Bagilu Kri	HUF	Dependent-1 Mr. Oshinso Kri	Dependent-2 Mr. Goshinso Kri	Dependent-3 Mr. Prodhumn Kri	Dependent-4 Ms. Kritilu Kri
9	Liabilities	NIL	NIL	NIL	NIL	NIL	NIL	NIL
	(i) Government dues(Total)	NIL	NIL	NIL	NIL	NIL	NIL	NIL
	(ii) Loans from Bank, Financial Institutions and others(Total)	NIL	NIL	NIL	NIL	NIL	NIL	NIL
10	Liabilities that are under dispute							
	(i) Government	NIL	NIL	NIL	NIL	NIL	NIL	NIL

	dues(Total)							
	(ii) Loans from Bank, Financial Institutions and others(Total)	NIL	NIL	NIL	NIL	NIL	NIL	NIL

The respondent No. 1 who had examined himself as DW 1A, in his cross-examination, has also admitted that in respect of the Government dues in Part B-11, serial No. 9 and 10, as mentioned in his Form 26, he had shown as 'NIL'.

16(ii)(e). Part B-11 '*Abstract of the details given in (1) to (10) of Part-A*' in Serial No. 9(i), showing the Government dues as 'NIL' in respect of himself and his spouse, has also been exhibited as Ext. 19 by the respondent No. 1.

16(ii)(f). The respondent No. 1 having shown the municipal/property tax dues in respect of himself and his spouse in Part-A(8) at serial No. 6, as Rs. 33,962.00 and 40215.00, respectively, the disclosure made by the respondent No. 1 in Part B-11 '*Abstract of the details given in (1) to (10) of Part-A*' at serial No. 9 as 'NIL' in respect of himself and his spouse insofar as the Government dues are concerned, is, therefore, found to be contradictory and a false statement given by the respondent No. 1 in Part B-11 '*Abstract of the details given in 1 to 10 of Part A*' at serial No. 9.

17. In the light of the finding recorded on Issue Nos. 1, 4 & 5, to the effect that the respondent No. 1 did not disclose about the Kinetic Zing Scooty bearing Registration No. AR-11/4474, as well as Maruti Omni Van Ambulance bearing Registration No. AR-11A/3100, owned by Smti. Bagilu Kri, wife of respondent No. 1, and TVS Star City Motorcycle bearing Registration No. AR-

11/6851, owned by Shri Goshinso Kri, son of respondent No. 1, at the time of presentation of nomination paper by the respondent No. 1, in Clause 7(A)(vi) of Form 26 of the Conduct of Election Rules, 1961; that the respondent No. 1 did not disclose as per Clause 8(ii)(A)(B)(ii) of Form 26 of the Conduct of Election Rules, 1961, that there are no dues payable in respect of MLA Cottage No. 1 located at 'E' Sector, Itanagar, which was under his occupation for the period 2009-2014 being the MLA of 44-Tezu(ST) Assembly, for the said period, towards rent, electricity charges, water charges, telephone charges, duly supported by no dues certificates from the concerned agencies; and, that the respondent No. 1 though had shown the municipal/property tax dues in respect of himself and his spouse in Part-A(8) at serial No. (vi) of Form 26 of the Conduct of Election Rules, 1961, as Rs. 33,962.00 and Rs. 40,215.00, respectively, the respondent No. 1 in Part B-11 *'Abstract of the details given in (1) to (10) of Part-A'* at Serial No. 9, as 'NIL' in respect of himself and his spouse insofar as the Government dues are concerned, and therefore, given a false statement in Part B-11 *'Abstract of the details given in (1) to (10) of Part-A'* in Serial No. 9; it becomes necessary to take-up Issue No. 8, at this stage, which issue is closely connected with the findings recorded on Issue Nos. 1, 4 & 5, before the Issue Nos. 6 & 7, are taken-up for analysis and discussion.

18. The Issue No. 8, for ready reference, therefore, is, once again, quoted hereinbelow:

"Whether the nature of non-disclosure alleged by the Election petitioner is of a substantial nature effecting the election of the returned candidate/ respondent No. 1?"

18(i). Submissions made by the learned senior counsel for the petitioner as per written argument filed:

"The respondent No.1 admitted in his written statement and in his deposition as well as in deposition of the other witnesses that while filing the nomination paper under sub section 1 of section 33 of Act of 1951 before the Returning Officer on 22.3.2019 along with the affidavit under Rule 4 A of the Conduct of Election Rules, 1961, he has not disclosed the Motor Vehicles (Ext-6 to 6(16)) owned and possessed by him his wife and son, non submission of No Due Certificate towards the electricity, water, Phone and rent of the government accommodation availed 2009-2014, false statement towards municipal taxes and other dues with the appropriate Government, Contracts entered to the government and immovable property of the his mother. Non-discloser of the aforesaid material facts by the respondent No.1 in his affidavit (Form-26) were defects in substantial nature and had materially affected his election. it has been held by the Hon'ble Apex Court in Kisan Shankar Kathore v. Arun Dattatray Sawant, (2014) 14 SCC 162; S. Rukmini Madegowda Vs State Election Commission & others, 2022 SCC Online Sc 1218; Non-discloser of material facts affidavit (Form-26) are defects in substantial nature and materially affect the election."

18(ii). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"1) The Election Petitioner and "Indian National Congress Candidate" firstly has not pleaded anywhere in the election petition as to how, and in what manner the allegation raised by him result in 'substantial defect' in the nomination paper. In the absence of such pleadings, any exercise in that regard, will result in a fishing and roving enquiry as observed down by the Hon'ble Apex Court in the case of Dhartikapar Mohan Lal Agarwal –vs- Rajiv Gandhi, reported in 1987 Supple. SCC 93 (relevant para 107) para 14.

2) Secondly, u/s 36 (4) of the Representation of People Act, the mandate of the law is that the Returning Officer shall not reject any nomination paper on the ground of any defect which is not of a substantial character. That being the position of law, it was a duty for the plaintiff to plead as to how, in what manner, that alleged defect is of "substantial character". Having not done in the instant election petition, the issue no. 8 naturally has to be decided in the negative to avoid fishing and roving enquiry by the Hon'ble Court in the course of the proceeding."

Finding of the Court on Issue No. 8:

18(iii). The purpose of filing of an affidavit as per the prescribed format given in Form 26 of the Conduct of Election Rules, 1961, is to make truthful disclosure of movable and immovable assets and liabilities as well as criminal actions. Those are matters which are fundamental for accomplishment of free and fair elections. It is the fundamental right of the voters to be informed of all matters in relation to such details for electing the candidates of their choice, after making an informed choice by the voters. Filing of complete information and making of truthful disclosure in respect of such matters is the duty of the candidate who offers himself to represent the voters from the constituency.

18(iii)(a). As the candidate is required to disclose the information mentioned in Form 26 of the Conduct of Election Rules, 1961, in the affidavit, which disclosure is fundamental to the free and fair election; the solemnity of the affidavit cannot be allowed to be ridiculed by offering incomplete information or suppressing the material information resulting in disinformation and misinformation to the voters.

18(iii)(b). The Hon'ble Supreme Court in the **Kisan Shankar Kathore v. Arun Dattatray Sawant**, reported in **(2014) 14 SCC 162**, insofar as the disclosure of movable and immovable assets of the candidate and his/her spouse in Form 26 of the Conduct of Election Rules, 1961, in no uncertain terms, has held it to be mandatory and failure to disclose the movable and immovable assets of the candidate and his spouse in Form 26 of the Conduct

of Election Rules, 1961, as substantial lapse when it had held in paragraph No. 39, as under: ".....We find a clear case of non-disclosure of Bungalow No. 886 in the name of appellant's wife which is a substantial lapse. So is the case about the non-disclosure of vehicle mentioned in the name of appellant's wife....."

18(iii)(c). Thus, in view of the law laid down in the case of **Kisan Shankar Kathore** (supra), there is no escape from the conclusion that non-disclosure of the vehicle in the name of the candidate's wife in Form 26 of the Conduct of Election Rules, 1961, is a defect of substantial nature, which renders the nomination paper of such candidate, liable to be rejected.

18(iii)(d). In the instant case, having found that the Kinetic Zing Scooty bearing Registration No. AR-11/4474, Maruti Omni Van Ambulance bearing Registration No. AR-11A/3100, registered in the name of Smti. Bagilu Kri, wife of respondent No. 1; and TVS Star City Motorcycle bearing Registration No. AR-11/6851, registered in the name of Shri Goshinso Kri, son of respondent No. 1, at the time of presentation of nomination paper of respondent No. 1/returned candidate, was not disclosed by the respondent No. 1/returned candidate in Form 26 of the Conduct of Election Rules, 1961, as was required to be disclosed as per Clause 7(A) serial No.(vi), thereof, the nomination paper of respondent No. 1/returned candidate ought to have been rejected by the Returning Officer, Tezu. The Returning Officer, Tezu, not having rejected the nomination paper of respondent No. 1 for non-disclosure of the vehicles, referred to above; the nomination paper of respondent No. 1 can be said to have been improperly accepted by the Returning Officer, Tezu, thereby, affecting the election of respondent No. 1/returned candidate.

ISSUE NO. 6:

“Whether the non-disclosure of assets both movable and immovable belonging to the respondent No. 1, his wife, his mother and his two sons in the affidavit in Form No. 26 appended to the nomination paper amounted to commission of corrupt practice of undue influence within the meaning of Section 123(2) of the Representation of the People Act, 1951?”

19. Submissions made by the learned senior counsel for the petitioner as per written argument filed:

“The candidate or his proposer, as the case may be, shall, at the time of delivering of nomination paper to the Returning Officer u/s 33 (1) of the Act 1951, shall also delivered to him an affidavit prescribed under Rules 4 A of the Conduct of Election Rules 1961, duly sworn and verified the information specified u/s 33(1)/33A of the Act, 1951.

Apart from non-disclosure of motor vehicles Ext.6 to Ext 6(16) as stated above, the respondent No.1 also did not disclose the assets or the source of income from both movable and immovable property belonging to him and his sons in the affidavit in Form No.26. In paragraph (9B) in part-A of his affidavit (in Form -26) it is mentioned as “NIL” against the details of contracts entered with appropriate government and any public companies as Proprietor of M/S K.K Metals and of his son Oshinso Kri as proprietor of M/S Matai Communication and Printing.

Respondent No.1 in written statement in para 12 stated that he is proprietor of M/S K.K. Metals, and he does not have any subsisting contract of the M/s K.K Metals with any department of the state of Arunachal Pradesh since 2014. Accordingly, the No Contract Certificates were issued by various departments.

Likewise his son namely Oshinso Kri is the proprietor of M/s Matai Communication and Printing, Tezu, who has appointed Shri Rajen Shrestha as his true and lawful attorney to carry on the business affairs of M/s Matai Communication and Printing, Tezu and has no any subsisting contract with any appropriate government agencies 5 (Five) years retrospectively.

Respondent No. 1 (DW-1A) in his cross examination (Page 175 PB-II) admitted that “M/S K.K Metals is a Firm owned by him. M/S Matai Communication and printing belongs to my eldest son namely Oshinso Kri. M/s K.K Metals may have supplied small orders of Rs.5000/- to 10,000/- to the Govt. but not any huge contract works in rupees of Lakhs or Crores”.

Further in his evidence-in-chief respondent No.1 stated that his son Oshinso Kri is the proprietor of M/S Matai Communication & Printing, Tezu and appointed Shri Rajen Shrestha as his lawful attorney to carry on business affairs of the said Firm. Ext-R/34 is the general power of Attorney dated 03.04.2006 and Ext-R/35 is the general power of Attorney dated 06.06.2013.

Shri Rajen Shrestha (DW/Rw-2) in his evidence-in-chief did not say anything about the execution of the Ext-R/34 the general power of Attorney dated 03.04.2006 and Ext -R/35 the general power of Attorney dated 06.06.2013 executed in his favour by Shri Oshinso Kri son of respondent No.1. In the cross examination he has stated that he is operating a printing press belonging to Shri Oshinso Kri who is the son of Shri Karikho Kri on the basis of Power Attorney executed by the said owner. In Ext.34 i.e the general power of Attorney dated 03.04.2006 executed by the respondent No.1. Nowhere it is stated that whatever income earned from the said firm (M/s Matai Communication and Printing) belongs to Shri Rajen Shrestha and Ext -R/35 i.e the general power of Attorney dated 06.06.2013, under clause-9 the GPA holder Shri Rajen Shrestha is paying Rs.6000/ (six thousand) month as licence fee/shop rent to the firm owner Shri Oshinso Kri and the same has not been disclosed by respondent No.1 in his affidavit Form-26.

Respondent No.1 has not examined his dependent son Shri Oshinso Kri as witness in support of contents of Ext. 34 and Ext.35. Moreover, in cross examination he has admitted that M/s KK Metal and M/s Matai Communication and Printing have executed some contract works with the appropriate Government Agencies.

The respondent No.1 misconceived the concept of having 'subsisting contract' with the Government within the meaning of section 9A of the Act of 1951 and having executed works under a firm for the Government. The case of the petitioner is that the respondent No.1 has not disclosed in the Affidavit the facts relating to execution of works under the banner of the firms aforesaid by himself and by his son and the same has stood proved as aforesaid. The petitioner has not taken the plea of subsisting contract u/s 9A of the Act which entails disqualification.

The petitioner raised objection Ext-12 before the Returning Officer about the non-disclosure of aforesaid assets such as motor vehicles owned by him, his wife and his son i.e dependent No.2 Shri Goshinso Kri and its source of income or assets generated by the respondent No.1 from M/s KK Metals and his dependent No.1 son Shri Oshinso Kri, M/s Matai Communication & Printing, in his affidavit Form-26. The Returning Officer ought to have rejected the nomination paper of the respondent No.1 u/s 36 for non-compliance with the provisions of section 33 and 33A of the Act of 1951. Now evidence on records demonstrated by the petitioner has proved that the respondent No.1 has the knowledge about the aforesaid assets and deliberately made false statement in his affidavit in Form-26. He also failed to furnish information as required under sub-section 1 of section 33A for giving false information which he knows or have reason to believe to be false or concealed any information in his Nomination Paper delivered to the Returning Officer under section 33A is a penal

offence under section 125A under the Act. Respondent No.1 submitted his nomination paper u/s 33(1) along with an Affidavit in Form 26 dated 22/03/2019 (Ext.14) under Rule 4(A) by making of false statements and giving false declaration which amounts to corrupt practice within the meaning of section 123(2) and (4) of the 1951 RP Act.

Union of India v. Assn. for Democratic Reforms, (2002) 5 SCC 294 (para -46), The Hon'ble Apex Court held that Right to get information in democracy follows from Article 19 (1) of the Constitution of India and voter speaks out or expresses by casting vote. The Little Man may think over before making his choice of electing law-breakers as law-makers
People's Union for Civil Liberties (PUCL) v. Union of India, (2003) 4 SCC 399: (para7, 8, 78 and 123) Following the apex court direction section 33A was amended and brought Section 33B.

However, the Hon'ble Apex Court held that section 33B of the Amended Act is held to be illegal, null and void:

"123. Finally, the summary of my conclusions:

- (1) Securing information on the basic details concerning the candidates contesting for elections to Parliament or the State Legislature promotes freedom of expression and therefore the right to information forms an integral part of Article 19(1)(a). This right to information is, however, qualitatively different from the right to get information about public affairs or the right to receive information through the press and electronic media, though, to a certain extent, there may be overlapping.
- (2) The right to vote at the elections to the House of the People or Legislative Assembly is a constitutional right but not merely a statutory right; freedom of voting as distinct from right to vote is a facet of the fundamental right enshrined in Article 19(1)(a). The casting of vote in favour of one or the other candidate marks the accomplishment of freedom of expression of the voter."

The Hon'ble Apex Court in Lok Prahari v. Union of India, (2018) 4 SCC 699 : it has been held that in Para 79, 81 and 82 that non-disclosure of assets and sources of income and also non-disclosure of information about the contracts with appropriate Government would amount to "undue influence" — a corrupt practice under Section 123(2) of the 1951 RP Act.

In Satish Ukey v. Devendra Gangadharrao Fadnavis, (2019) 9 SCC 1: (Para-15,16,17) the Hon'ble apex court held that section 125 (A) of the R.P. Act, 1951 comes into operation when there is non-disclosure of the information under Clause (I) (II) of Section 33A of the R.P. Act, 1951.

S. Rukmini Madegowda Vs State Election Commission & others 2022 SCC Online Sc 1218 the Hon'ble Apex Court held that Purity of Election at all level:

"38. In our considered view, a false declaration with regard to the assets of a candidate, his/her spouse or dependents, constitutes corrupt practice irrespective of the impact of such a false declaration on the election of the candidate. It may be presumed that a false declaration impacts the election".

It is thus evident that the suppression and furnishing faults information in the Nomination Paper automatically results in commission of corrupt practice because of influencing the voters by such conduct denying the voters the right to know about the candidate to which he is entitled under the provisions of Article 19 of the Constitution of India.

This issue may therefore be decided in favour of the petitioner."

19(i). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"The Election Petitioner in his attempt to make out a case of commission of corrupt practice on the part of the Respondent No. 1/Returned Candidate has raised allegation of (i) non-disclosure of different vehicles of the Returned Candidate, his wife, and his son (ii) non-disclosure of non-agricultural land of the mother of the Respondent No. 1/Returned Candidate. The Returned Candidate while making submissions, hereinbefore, in respect of Issue No. 1 and Issue No. 2 has elaborately demonstrated as to how these allegations are untenable on facts and laws for which the issue of commission of corrupt practice by the Returned Candidate for such untenable allegations does not arise.

The word "Undue influence" is defined in section 171 - C of the Indian Penal Code. The Word "Voluntarily" appearing in Section 171 - C of Indian Penal Code is defined in Section 39 of the Indian Penal Code. Going by the definition of the "Word Voluntarily", it is seen that in the instant case, not a single voter has come forward to depose before this Hon'ble Court that he (Voter) was influenced in exercise of his voting rights by any mistake in the nomination paper of the Returned Candidate. Hence, it is not a case of any corrupt practice of undue influence as alleged by the Election Petitioner.

In this regard, the Respondent submits that the Election Petitioner while raising the allegation of commission of corrupt practice of undue influence within the meaning of Section 123(2) of the R. P. Act has completely failed in his duty to plead statement of material facts as to who, how, in what manner, on whom, when and in which places, the alleged corrupt practice of undue influence has been committed. Such material facts required u/s 83 of the R. P. Act, has to be additionally supported

with material particulars in the Election Petition and the same has not been done in the instant Election Petition.

Relied on (1986) Supply. SCC page 315 paras 24, 25, 26, 27, 28 and 29 (@ page 333) Azhar Hussain –vs- Rajiv Gandhi. In this case, the Apex Court upholding the High Court judgement has laid down that in an Election Petition raising the allegation of corrupt practice has to spell out clearly as to who, how, in what manner, on whom, when the corrupt practice alleged has been committed. These pleadings are completely missing in the instant Election Petition.

In the instant Election, there is complete absence of clear and cogent evidence to sustain the allegation of corrupt practice of undue influence. The Hon'ble Apex Court in the case of D. Venkata Reddy –Vs- R. Sultan & Ors. (1976) 2 SCC page 455, paras 3, 4, 6 laid down, inter alia, that at allegation of corrupt practice being in the nature of quest-criminal charge, the same must be proved beyond any shadow of doubt. The Hon'ble Apex Court in paragraph 3 of the judgement has laid down that the verdict of the people at the polls must be given due respect and candour and should not be disregarded or set at naught on vogue, indefinite, frivolous and fanciful allegation or on evidence which is of a shaky or prevaricating character. It is well settled that the onus lies heavily on the Election Petitioner to make out a strong case for setting aside an Election.

In the instant election, from the foregoing submissions made, it is seen that the Election Petitioner has failed to discharge his initial burden to prove the commission of corrupt practice of under influence. In the case of Shiv Charan Singh – Vs- Chandra Bhan Singh, 1988 (2) SCC page 12, (para5, 9, 11) has held, inter alia, that the burden of proving the material effect on the result of Election is always on the Election Petitioner challenging the validity of the election of the returned candidate. Unless this burden is discharged by the election petitioner, the result of the returned candidate cannot be declared void. The Apex Court, in paragraph 9 and 10, inter alia has also laid down that in the absence of the positive proof of material effect on the result of the election must be allowed to stand and the Court should not interfere with the election on speculation and conjectures.

In the case of Dhartikapar Madan Lal –vs- Rajiv Gandhi, 1987 Supple.SCC page 93, in para 14, 3, 8 and para 26, the Hon'ble Apex Court, inter alia, has laid down that in an election petition, the court can not involve itself in a fishing and roving enquiry, further the pleading regarding must be strictly examined and vague pleadings should be treated as fatal to the election petition. The Apex Court also has held that ingredients of corrupt practice (in the instant case, corrupt practice of under in fill u/s 123 (2) has been alleged) has to be specifically pleaded. In the instant case, ingredient of under influence have not been pleaded or proved at all.

In the case of Hardwari Lal. –Vs- Kanwal Singh, 1972 (1) SCC page 214 para 20, the Hon'ble Apex Court highlighted the importance of complete full and complete material facts in an election petition raising allegation of corrupt practice.

In the instant petition, as discussed herein before, that pleading in the election petition are not supported by the contents of the Annexures. In the case of M. Karunanidhi –vs- H. V. Hande & ors., 1983 (2) SCC page 473 para 32, the Hon'ble Apex Court held that Annexures are integral part of election. Therefore, in the instant case, one can submit that election petition suffers from inherent self-contradiction.

Likewise, in the case of Pradip Buragohain versus Pranati Phukan, Reported in (2010) 11 SCC page 108, para 11, 12, 13, 14 and 15 (Relevant page 113, 114), the Apex Court after taking note of earlier decisions, inter alia, has held that (i) A charge of corrupt practice is easy to level but difficult to prove (ii) The allegations in the election petition should not be vague or lacking in material particulars, frivolous or vexations.

(iii) The evidence adduced in support of the pleadings should be of such nature leading to an irresistible conclusion or unimpeachable result that the allegation made have been actually committed (iv) Evidence produced before court in support of the pleadings must be cogent, satisfactory, credible and positive (v) The onus of proof of the allegations made in the election petition is undoubtedly on the person making the allegation.

In the light of the aforesaid judgement of the Apex Court, it is seen that in the present case the election petitioner an "Indian National Congress Candidate" has failed to make out any case of corrupt practice against the Returned Candidate and have the issue no.6 is required to be answered in the negative."

Finding of the Court on Issue No. 6:

19(ii). Since vide Issue No. 1, it has been determined that Kinetic Zing Scooty bearing Registration No. AR-11/4474, and Maruti Van Omni Ambulance bearing Registration No. AR-11A/3100; which belonged to Smti. Bagilu Kri, wife of respondent No. 1, and TVS Star City Motorcycle bearing Registration No. AR-11/6851, which belonged to Shri Goshinso Kri, son of respondent No. 1, respectively, was not disclosed in Form 26 of the Conduct of Election Rules, 1961, filed by the respondent No. 1 along with his nomination paper; it may now be determined whether non-disclosure of the aforesaid vehicles of the wife and son of respondent No. 1 in Form 26 of the Conduct of Election Rules,

1961, amounted to a corrupt practice of undue influence within the meaning of Section 123(2) of the Representation of the People Act, 1951?

19(ii)(a). Section 123(2) of the Representation of the People Act, 1951, insofar as it is relevant, reads as under:

"123. Corrupt Practices. – The following shall be deemed to be corrupt practices for the purposes of this Act:-

"(2) Undue influence, that is to say, any direct or indirect interference or attempt to interfere on the part of the candidate or his agent, or of any other person [with the consent of the candidate or his election agent], with the free exercise of any electoral right."

19(ii)(b). Interpreting Section 123(2) of the Representation of the People Act, 1951, the Hon'ble Supreme Court in the case of **Lok Prahari through its General Secretary S. N. Shukla v. Union of India & ors.**, reported in **(2018) 4 SCC 699**, in paragraphs No. 79, 80 and 81, held as under:

"79. We shall now deal with Prayer 2 which seeks a declaration that non-disclosure of assets and sources of income would amount to "undue influence"- a corrupt practice under Section 123(2) of the 1951 RP Act. In this behalf, heavy reliance is placed by the petitioner on a judgment of this Court in Krishnamoorthy v. Sivakumar. It was a case arising under the Tamil Nadu Panchayats Act, 1994. A notification was issued by the State Election Commission stipulating that every candidate at an election to any panchayat is required to disclose information, inter alia, whether the candidate was accused in any pending criminal case of any offence punishable with imprisonment for two years or more and in which charges have been framed or cognizance has been taken by a court of law. In an election petition, it was alleged that there were certain criminal cases pending falling in the abovementioned categories by the said information was not disclosed by the returned candidate at the time of filing his nomination. One of the questions before this Court was whether such non-disclosure amounted to "undue influence"- a corrupt practice under the Panchayats Act. It may be mentioned that the Panchayats Act simply adopted the definition of a corrupt practice as contained in Section 123 of the 1951 RP Act.

80. On an elaborate consideration of various aspects of the matter, this Court in Krishnamoorthy case held as follows: (SCC p.522, Para 91)

"91.... While filing the nomination form, if the requisite information, as has been highlighted by us, relating to criminal antecedents, is not given, indubitably, there is an attempt to suppress, effort to misguide and keep the people in dark. This attempt undeniably and undisputedly is undue influence and, therefore, amounts to corrupt practice....."

81. For the very same logic as adopted by this Court in Krishnamoorthy, we are also of the opinion that the non-disclosure of assets and sources of income of the candidates and their associates would constitute a corrupt practice falling under the heading "undue influence" as defined under Section 123(2) of the 1951 RP Act. We, therefore, allow Prayer 2."

19(ii)(c). In the case of **S. Rukmini Madegowda v. State Election Commission & ors.**, reported in **2022 SCC Online SC 1218**, the Hon'ble Supreme Court in paragraph No. 38, held as under:

"38. In our considered view, a false declaration with regard to the assets of a candidate, his/her spouse or dependents, constitutes corrupt practice irrespective of the impact of such a false declaration on the election of the candidate. It may be presumed that a false declaration impacts the election."

19(ii)(d). Thus, non-disclosure of the assets of the candidates, their associates, his or her spouse or dependents, have been held by the Hon'ble Supreme Court in the case of **Lok Prahari**(supra) and **S. Rukmini Madegowda**(supra) to constitute a corrupt practice falling under the Heading "undue influence" as defined under Section 123(2) of the Representation of the People Act, 1951, irrespective of the impact of such a false declaration on the election of a candidate.

On the other hand, none of the precedents cited by the learned counsel for respondent No. 1 deals with the interpretation of corrupt practices defined u/s. 123(2) of the Representation of the People Act, 1951, vis-à-vis Form 26 of the Conduct of Election Rules, 1961, and therefore, those decisions of the

Hon'ble Supreme Court are found to be not applicable in the facts of the present case.

19(ii)(e). In view of the law laid down by the Hon'ble Supreme Court in the case of **Lok Prahari**(supra) and **S. Rukmini Madegowda**(supra), since the Kinetic Zing Scooty bearing Registration No. AR-11/4474, and Maruti Van Omni Ambulance bearing Registration No. AR-11A/3100; which belonged to Smti. Bagilu Kri, wife of respondent No. 1, and TVS Star City Motorcycle bearing Registration No. AR-11/6851, which belonged to Shri Goshinso Kri, son of respondent No. 1, have been conclusively determined in the Issue No. 1, to have not been disclosed by the respondent No. 1 in Form 26 of the Conduct of Election Rules, 1961, despite the said vehicles being owned by the wife and son of the respondent No. 1, respectively, at the time of presentation of his nomination paper for election to 44-Tezu(ST) Assembly Constituency held in the year 2019; there can be no escape from the conclusion that such a non-disclosure of the vehicles owned by the wife and son of respondent No. 1, amounted to a corrupt practice by the respondent No. 1 within the meaning of Section 123(2) of the Representation of the People Act, 1951.

ISSUE NO. 7:

"Whether the election of respondent No. 1 to the 44-Tezu(ST) Assembly Constituency is liable to be declared void under Section 100(1)(d)(i) of the Representation of the People Act, 1951?"

20. Submissions made by the learned senior counsel for the petitioner as per written argument filed:

"The petitioner raised objection before the Returning Officer against the validity of the Nomination Paper of respondent No.1 for non-disclosure of the motor vehicles owned by him his wife and his son, property of his mother, non-disclosure Government accommodation availed by him, non submission of 'No due certificate' in respect of the said Government accommodation, false statements regarding municipal taxes and other dues with the appropriate Government and also non-discloser of contracts entered with the Government agencies.

Apart from the fact that the respondent admitted in the pleading and also in his evidence, the petitioner led evidence and proved that respondent No.1 and his dependents are the registered owners of the aforesaid motor vehicles and same have not been disclosed in his affidavit Form-26. Moreover, the Respondent No.1 did not disclose the property of his mother in his Form-26, the respondent No.1 availed Government accommodation i.e. MLA Cottage No.1 for the year, 2009-2014, no due certificates towards electricity, water, rent and phone in respect of the said Government accommodation has not been submitted along with nomination papers filed under 33 (1) of the RP Act. Respondent No.1 made false and contradictory statement towards municipal taxes and other dues with the appropriate Government in his Form-26 and also non-discloser of Contracts entered with the Government agencies of the firm owned by him and his son. Yet the Returning Officer improperly accepted the nomination paper of the respondent No.1. As such the election of Respondent No.1 is liable to be declared void u/s 100 (1)(d) of the Act of 1951.

Mairembam Prithviraj v. Pukhrem Sharatchandra Singh, (2017) 2 SCC 487: it has been held by Hon'ble Apex Court In Para 26) that "There is no requirement to prove that the result of the election of the returned candidate is materially affected once his nomination is declared to have been improperly accepted' and the election is liable to be declared void under Section 100(1)(d) of the Act.

Although no issue has been framed, the respondent No.1 took a plea in his written statement that by putting signature in Form-V of the Conduct of Election Rules, 1961 where the Returning Officer recorded his decision of accepting the nomination paper of respondent No.1 has waived his right to object to the acceptance of the same, the petitioner submits that even assuming but not admitting that all the objection now raised were not raised before the Returning Officer, the petitioner is not estopped from raising the said plea in the trial of the Election Petition as has been held by the Apex Court in the case of N.T Veluswami Thewar -Vs- G. Raja Nainar reported in AIR 1959 SC 422 (para-16).

These issues may therefore be decided in favour of the petitioner by declaring the election of respondent No.1 to the 44 Tezu (ST) Assembly Constituency as void and by further declaring that the petitioner is duly elected from the said constituency since the petitioner has duly established that the nomination paper of respondent No.2 also suffered from substantial defect and moreover respondent No.2 did not approach this Hon'ble Court challenging the election of respondent No.1 and nor did he pray for declaring him to be elected from the said constituency.

Besides, as the allegations are suppressions, misrepresentation in the nomination paper of respondent No.1 and 2 have been established and since the same tantamount to commission of corrupt practice u/s 123(2) of the Act of 1951 this Hon'ble Court may pass appropriate Order by invoking the provisions of section 99 of the said Act."

20(i). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"1) Sec 100 (1)(d)(i), relates to "improper acceptance" of nomination paper and reads like this:

"Sec 100(1)(d)(i): Subject to the provisions of sub section (2), if the High Court is of opinion:

(a)xxxxx

(b)xxxxx

(c)xxxxx

(d)That the result of the election, insofar as it concerns a returned candidate, has been materially affected:-

(i) By the improper acceptance of any nomination.

(ii) xxxxx

(iii) xxxxx

(iv) xxxxx

The High Court shall declare the election of the returned candidate to be void.

(2) In the instant case, while the election petitioner has pleaded that the acceptance of the nomination paper was an act of improper acceptance of nomination paper of the returned candidate, the election petitioner, has totally failed to plead even once in the whole election petition that "result of the election, in so far as it concerns the returned candidate, has been materially affected" by Returning Officer's alleged improper acceptance of nomination paper. In the absence of this material fact as required under Section 100(1)(d)(i), no relief can be granted to the election petitioners u/s 100(I)(d)(i) of the R.P. Act. The election petitioner who also additionally supposed to plead and prove the manner as to how the result of the election has been materially affected by alleged improper acceptance of nomination paper. It is to be stated have that as against 7538 votes in favour of the Returned Candidate, the election petitioner obtained only 1038 votes.

(3) The Returned Candidate/the Respondent No. 1 has already submitted herein above, while dealing with issue no. 1 to 5 that the election petition not only suffers from lack of material facts as required under section 83 of the Representation of the People Act, but also has failed to demonstrate as to how the allegation raised are unfounded and not based on any documentary and oral evidence in that regard.

Hence, it is submitted that the answer to the Issue No. 7 would be in the negative. Relied on (1988) 2 SCC page 12, paras 5, 9, 11. Shiv Charan Singh v. Chandra Bhan Singh."

Finding of the Court on Issue No. 7:

20(ii). Relevant legal provisions under the Representation of the People Act, 1951, for declaring the election void insofar it relates to the present case, may, at the outset, be noticed.

20(ii)(a). Section 100(1)(d)(i)(iv) of the Representation of the People Act, 1951, is, as under:

"100. Grounds for declaring election to be void. - Subject to the provisions of sub-section (2) if the High Court is of the opinion –

* * *

(d) that the result of the election, in so far as it concerns a returned candidate, has been materially affected –

(i) by the improper acceptance of any nomination, or

* * *

(iv) by any non-compliance with the provisions of the Constitution or of this Act or of any rules or orders made under this Act,
the High Court shall declare the election of the returned candidate to be void."

20(ii)(b). Since Section 100(1)(d) of the Representation of the People Act, 1951, refers to the result of the election being "materially affected" by improper acceptance of a nomination; the other relevant provisions of the Representation of the People Act, 1951, that may required to be noticed are sections 30, 33(1), 35, 36(1), 36(2)(b), 4, 6 and 8, as well as Rule 4A of the Conduct of Election Rules, 1961, which reads as under:

"30. Appointment of dates for nominations, etc. - As soon as the notification calling upon a constituency to elect a member or members is issued, the Election Commission shall, by notification in the Official Gazette, appoint –

- (a) the last date for making nominations, which shall be the seventh day after the date of publication of the first mentioned notification or, if that day is a public holiday, the next succeeding day which is not a public holiday;
- (b) the date for the scrutiny of nominations, which shall be the day immediately following the last date for making nominations or, if that day is a public holiday, the next succeeding day which is not a public holiday;
- (c) the last date for the withdrawal of candidatures, which shall be the second day after the date for the scrutiny of nominations or, if that day is a public holiday, the next succeeding day which is not a public holiday;
- (d) the date or dates on which a poll shall, if necessary, be taken, which or the first of which shall be a date not earlier than the fourteenth day after the last date for the withdrawal of candidatures; and
- (e) the date before which the election shall be completed."

"33. Presentation of nomination paper and requirements for a valid nomination.-

- (1) On or before the date appointed under clause (a) of section 30 each candidate shall, either in person or by his proposer, between the hours of eleven O'clock in the forenoon and three O'clock in the afternoon deliver to the returning officer at the place specified in this behalf in the notice issued under section 31 a nomination paper completed in the prescribed form and signed by the candidate and by an elector of the constituency as proposer:"

"35. Notice of nominations and the time and place for their scrutiny.—

The returning officer shall, on receiving the nomination paper [under sub-section (1) or, as the case may be, sub-section (1A) of section 33], inform the person or persons delivering the same of the date, time and place fixed for the scrutiny of nominations and shall enter on the nomination paper its serial number, and shall sign thereon a certificate stating the date on which and the hour at which the nomination paper has been delivered to him; and shall, as soon as may be thereafter, cause to be affixed in some conspicuous place in his office a notice of the nomination containing descriptions similar to those contained in the nomination paper, both of the candidate and of the proposer."

"36. Scrutiny of nomination.—

- (1) On the date fixed for the scrutiny of nominations under section 30, the candidates, their election agents, one proposer of each candidate, and one other person duly authorised in writing by each candidate but no other person, may attend at such time and place as the returning officer may appoint; and the returning officer shall give them all reasonable facilities for examining the nomination papers of all candidates which have been delivered within the time and in the manner laid down in section 33.

(2) The returning officer shall then examine the nomination papers and shall decide all objections which may be made to any nomination and may, either on such objection or on his own motion, after such summary inquiry, if any, as he thinks necessary, reject any nomination on any of the following grounds:—

- (a)
- (b) that there has been a failure to comply with any of the provisions of section 33 or section 34; or
- (c)

(4) The Returning Officer shall not reject any nomination paper on the ground of any defect which is not of a substantial character.

(6) The Returning Officer shall enclose on each nomination paper his decision accepting or rejecting the same and, if the nomination paper is rejected, shall record in writing a brief statement of his reasons for such rejection.

(8) Immediately after all the nomination papers have been scrutinized and decisions accepting or rejecting the same have been recorded, the returning officer shall prepare a list of validly nominated candidates, that is to say, candidates whose nominations have been found valid, and affix it to his notice board."

"Rule 4A of the Conduct of Election Rules, 1961:

Rule 4A. Form of affidavit to be filed at the time of delivering nomination paper.- The candidate or his proposer, as the case may be, shall, at the time of delivering to the Returning Officer the nomination paper under sub-section (1) of Section 33 of the Act, also deliver to him an affidavit sworn by the candidate before a Magistrate of the first class or a Notary in Form 26."

20(ii)(c). The provisions of the Representation of the People Act, 1951, quoted hereinabove, provides that if the result of an election insofar as it concerns a returned candidate, has been materially affected by the improper acceptance of a nomination; the election of the returned candidate can be declared void by the High Court, for improper acceptance of the nomination.

20(ii)(d). As per Section 33, a valid nomination paper completed in a prescribed form and signed by the candidate and by an elector of a constituency as proposer, is required to be delivered to the returning officer at

a place specified on or before the date appointed under clause (a) of Section 30, either, in person, or, by the proposer of the candidate.

20(ii)(e). A nomination paper completed in the prescribed form as per Section 33, needs to be accompanied by, *inter alia*, an affidavit sworn by the candidate before a Magistrate First Class or before a Notary in Form 26 as provided by Rule 4A of the Conduct of Election Rules, 1961.

20(ii)(f). The prescribed Form 26, as per Rule 4A of the Conduct of Election Rules, 1961, is extracted hereunder, for ready reference:

"FORM 26(See rule 4A)
AFFIDAVIT TO BE FILED BY THE CANDIDATE ALONG WITH NOMINATION PAPER BEFORE
THE RETURNING OFFICER FOR ELECTION TO: (NAME OF THE HOUSE)
FROM CONSTITUENCY(NAME OF THE CONSTITUENCY)

PART A

I*** son/daughter/wife of aged years, resident of (mention full postal address), a candidate at the above election, do hereby solemnly affirm and state on oath as under:

(1) I am a candidate set up by(**name of the political party)**am contesting as an Independent candidate.

(** strike out whichever is not applicable)

(2) My name is enrolled in(Name of the constituency and the State), at Serial No.in Part No.....

[(3) My contact telephone number(s) is/areand my email ID (if any) is/are (i).....(ii).....(iii).....]

[(4) Details of Permanent Account Number (PAN) and status of filing of income tax return:

Sl. No.	Names	PAN	The financial year for which the last income-tax return has been filed.	Total income shown in income tax return (in Rupees) for the last five Financial years (as on the 31 st March).
1.	Self			(i)
				(ii)
				(iii)
				(iv)
				(v)
2.	Spouse			(i)
				(ii)
				(iii)
				(iv)
				(v)
3.	HUF(If the Candidate is			(i)
				(ii)

	Karta or Coparcener)			(iii)
				(iv)
				(v)
4.	Dependent-1			(i)
				(ii)
				(iii)
				(iv)
				(v)
5.	Dependent-2			(i)
				(ii)
				(iii)
				(iv)
				(v)
6.	Dependent-3			(i)
				(ii)
				(iii)
				(iv)
				(v)

Note: It is mandatory for PAN holder to mention PAN and in case of no PAN, it should be clearly stated "No PAN allotted".]

[(5) Pending criminal cases.-

(i) I declare that there is no pending criminal case against me.

(Tick this alternative, if there is no criminal case pending against the Candidate and write NOT APPLICABLE against alternative (ii) below)

OR

(ii) The following criminal cases are pending against me:

(If there are pending criminal cases against the candidate, then tick this alternative and score off alternative (i) above, and give details of all pending cases in the Table below)

TABLE

(a) FIR No. with name and address of Police Station concerned			
(b) Case No. with Name of the Court			
(c) Sections of concerned Acts/Codes involved (give no. of section, e.g. Section of IPC, etc.).			
(d) Brief description of offence			
(e) Whether charges have been framed (mention YES or NO)			
(f) If answer against item (e) above is YES, then give the date on which charges were framed			
(g) Whether any Appeal/Application for revision has been filed against the proceedings (Mention YES or NO)			

(6) Cases of conviction.-

(i) I declare that I have not been convicted for any criminal offence.

(Tick this alternative, if the candidate has not been convicted and write NOT APPLICABLE against alternative (ii) below)

OR

(ii) I have been convicted for the offences mentioned below:

(If the candidate has been convicted, then tick this alternative and score off alternative (i) above, and give details in the Table given below)

TABLE

(a) Case No.			
(b) Name of the Court			
(c) Sections of Acts/Codes involved (give no. of section, e.g. Section of IPC, etc.).			
(d) Brief description of offence for which convicted			
(e) Dates of orders of conviction			
(f) Punishment imposed			

(g) Whether any Appeal has been filed against the conviction order (Mention YES or NO)			
(h) If answer to item (g) is YES, give details and present status of appeal			

(6A) I have given full and up-to-date information to my political party about all pending criminal cases against me and about all cases of conviction as given in paragraphs (5) and (6).
[candidates to whom this item is not applicable should clearly write NOT APPLICABLE IN VIEW OF ENTRIES IN PARAGRAPHS 5(i) and 6(i) above.]

Note:

- 1.Details should be entered clearly and legibly in **BOLD** letters
- 2.Details to be given separately for each case under different columns against each item.
- 3.Details should be given in reverse chronological order, i.e., the latest case to be mentioned first and backwards in the order of dates for the other cases,
4. Additional sheet may be added if required.
- 5.Candidate is responsible for supplying all information in compliance of the Hon'ble Supreme Court's judgment in WP(C) No. 536 of 2011.]

(7) That I give herein below the details of the assets (movable and immovable etc.) of myself, my spouse and all dependents:

A. Details of movable assets:

Note: 1. Assets in joint name indicating the extent of joint ownership will also have to be given.

Note: 2. In case of deposit/Investment, the details including Serial Number, Amount, date of deposit, the scheme, Name of the Bank/Institution and Branch are to be given.

Note: 3. Value of Bonds/Share Debentures as per current market value in Stock exchange in respect of listed companies and as per books in case of non-listed companies should be given.

Note 4: "Dependent" means parents, son(s), daughter(s) of the candidate or spouse and any other person related to the candidate whether by blood or marriage, who have no separate means of income and who are dependent on the candidate for their livelihood.]

Note: 5. Details including amount is to be given separately in respect of each investment.

[Note:6. Details should include the interest in or ownership of offshore assets.

Explanation,—For the purpose of this Form, the expression "offshore assets" includes, details of all deposits or investments in Foreign banks and any other body or institution abroad, and details of all assets and liabilities in foreign countries]

Sl. No.	Description	Self	Spouse	[HUF]	Dependent 1	Dependent 2	Dependent 3
1	2	3	4	5	6	7	8
(i)	Cash in hand						
(ii)	Details of deposit in Bank Accounts (FDRs, Term Deposits and all other types of deposits including saving accounts), Deposits with Financial Institutions, Non-Banking Financial Companies and Cooperative societies and the amount in each such deposit						
(iii)	Details of investment in Bonds, debentures / shares and units in companies /Mutual funds and others and the amount						
(iv)	Details of investment in NSS, Postal Saving, Insurance policies and investment in any Financial instruments in Post office or Insurance Company and the amount						
(v)	Personal loans/advance given to any person or entity including						

	firm, company, Trust etc., and other receivables from debtors and the amount						
(vi)	Motor Vehicles / Aircrafts/Yachts/ Ships (Details of Make, registration number etc. year of purchase and amount)						
(vii)	Jewellery, bullion and valuable thing(s)(give details of weight and value)						
(viii)	Any other assets such as value of claims/interest						
(ix)	Gross total value						

B. Details of immovable assets:

Note: 1. Properties in joint ownership indicating the extent of joint ownership will also have to be indicated

Note: 2. Each land or building or apartment should be mentioned separately in this format

[Note: 3. Details should include the interest in or ownership of offshore assets].

Sl. No.	Description	Self	Spouse	[HUF]	Dependent - 1	Dependent - 2	Dependent -3
1	2	3	4	5	6	7	8
(i)	Agricultural Land Location(s) Survey number(s)						
	Area (total measurement in acres)						
	Whether inherited property (Yes or No)						
	Date of purchase in case of self-acquired property						
	Cost of Land(in case of purchase) at the time of purchase						
	Any investment on the land by way of development, construction, etc.						
	Approximate current market value						
(ii)	Non-Agricultural Land Location(s) Survey number(s)						
	Area (total measurement in sq.ft.)						
	Whether inherited property (Yes or No)						
	Date of purchase in case of self-acquired property						
	Cost of land(in case of purchase) at the time of purchase						
	Any investment on the land by way of development, construction, etc.						
	Approximate current market value						

(iii)	Commercial buildings(including apartments) – Location(s) – Survey(s)						
	Area (total measurement in sq.ft.)						
	Built-up Area (total measurement in sq.ft.)						
	Whether inherited property (Yes or No)						
	Date of purchase in case of self-acquired property						
	Cost of property(in case of purchase) at the time of purchase						
	Any investment on the property by way of development, construction, etc.						
	Approximate current market value						
(iv)	Residential buildings(including apartments): – Location(s) – Survey(s)						
	Area (total measurement in sq.ft.)						
	Built-up Area (total measurement in sq.ft.)						
	Whether inherited property (Yes or No)						
	Date of purchase in case of self-acquired property						
	Cost of property(in case of purchase) at the time of purchase						
	Any investment on the land by way of development, construction, etc.						
	Approximate current market value						
(v)	Others(such as interest in property)						
(vi)	Total current market value of (i) to (v)						

(8) I give herein below the details of liabilities/dues to public financial institutions and government:-
(Note : Please give separate details of name of bank, institution, entity or individual and amount before each item).

Sl. No.	Description	Self	Spouse	[HUF]	Dependent -1	Dependent - 2	Dependent-3
(i)	Loans or dues to Bank/ Financial Institution(s). Name of the Bank or Financial Institution, Amount outstanding, Nature of loan						
	Loans or dues to any other						

	individuals/entity other than mentioned above. Name(s), Amount outstanding, nature of loan						
	Any other liability						
	Grand total of liabilities						
(ii)	Government dues: Dues to Departments dealing with Government accommodation	(A) Has the Deponent been in occupation of accommodation provided by the Government at any time during the last ten years before the date of notification of the current election? (B) If answer to (A) above is YES, the following declaration may be furnished, namely:- (i) The address of the Government accommodation: (ii) There is no dues payable in respect of above Government accommodation, towards- (a) rent; (b) electricity charges; (c) water charges; and (d) telephone charges as on(date) [the date should be the last date of the third month prior to the month in which the election is notified or any date thereafter]. Note: "No Dues Certificate" from the agencies concerned in respect of rent, electricity charges, water charges and telephone charges for the above Government accommodation should be submitted.					
(iii)	Dues to Departments dealing with Government transport(including aircrafts and helicopters)						
(iv)	Income tax dues						
		Self	Spouse	[HUF]	Dependent-1	Dependent-2	Dependent-3
(v)	GST Dues						
(vi)	Municipal/Property tax dues						
(vii)	Any other dues						
(viii)	Grand total of all Government dues						
(ix)	Whether any other liabilities are in dispute, if so, mention the amount involved and the authority before which it is pending.						

(9) Details of profession or occupation:

- (a) Self
- (b) spouse

[(9A) Details of sources of income:

- (a) Self
- (b) spouse
- (c) Source of income, if any, of dependents,

(9B) Contracts with appropriate Government and any public company or companies-

- (a) details of contracts entered by the candidate.....
- (b) details of contracts entered into by spouse
- (c) details of contracts entered into by dependents.....
- (d) details of contracts entered into by Hindu undivided family or trust in which the candidate or spouse or dependents have interest.....
- (e) details of contracts, entered into by Partnership Firms in which candidate or spouse or dependents are partners.....
- (f) details of contracts entered into by private companies in which candidate or spouse or dependents have share

(10) My educational qualification is as under:

.....

(Give details of highest School/University education mentioning the full form of certificate /diploma/degree course, name of the School/College University and year in which the course was completed.)

PART B

(11) ABSTRACT OF THE DETAILS GIVEN IN (1) TO (10) OF PART A:

1.	Name of the candidate	Sh./Smt./Kum.					
2.	Full postal address						
3.	Number and name of the constituency and State						
4.	Name of the political party which set up the candidate (otherwise write 'Independent')						
5.	Total number of pending criminal cases						
6.	Total number of cases in which convicted						
7.	PAN of	Year for which last Income Tax return filed	Total income shown				
	(a) Candidate						
	(b) Spouse						
	(c) HUF						
	(d) Dependent						
8.	[Details of Assets and liabilities (including offshore assets) in rupees]						
	Description	Self	Spouse	[HUF]	Dependent -I	Dependent -II	Dependent -III
1	2	3	4	5	6	7	8
A	Movable Assets(Total Value)						
B	Immovable Assets						
	I. Purchase Price of self acquired immovable property						
	II. Development/construction cost of immovable property after purchase(if applicable)						
	III. Approximate current market price of -						
	(a) Self-acquired assets(Total						

	Value) (b) inherited assets (Total Value)						
9	Liabilities						
	(i)Government dues (Total)						
	(ii)Loans from Bank, Financial Institutions and others(Total)						
10	Liabilities that are under dispute						
	(i)Government dues(Total)						
	(ii)Loans from Bank, Financial Institutions and others(Total)						
11	Highest educational qualification: (Give details of highest School/University education mentioning the full form of certificate/ diploma/degree course, name of the School/College/University and year in which the course was completed.)						

VERIFICATION

I, the deponent, above named, do hereby verify and declare that the contents of this affidavit are true and correct to the best of my knowledge and belief and no part of it is false and nothing material has been concealed therefrom. I further declare that:

- (a) There is no case of conviction or pending case against me other than those mentioned in Items 5 and 6 of Part A and B above;
- (b) I, my spouse, or my dependents do not have any asset or liability, other than those mentioned in items 7 and 8 of Part A and items 8, 9 and 10 of Part B above.

Verified at.....this the.....day of

DEPONENT"

20(ii)(g). After receipt of the nomination paper(s) under Section 33(1) of the Representation of the People Act, 1951, the Returning Officer, under Section 35 of the Representation of the People Act, 1951, informs the person(s) delivering the nomination paper of the date, time and place fixed for the scrutiny of the nomination paper(s) and enters on the nomination paper its serial number and sign thereon a certificate stating the date on which and the hours at which a nomination paper has been delivered to him and thereafter, causes it to be affixed in some conspicuous place in his office, a notice of nomination containing descriptions similar to those contained in the nomination paper; both of the candidate and of the proposer.

20(ii)(h). On the date fixed for the scrutiny of the nominations under Section 30; a scrutiny of nominations takes place as per Section 36 of the Representation of the People Act, 1951, which provides that the candidates, their election agents, one proposer of each candidate and one other person duly authorized in writing by each candidate, may attend at such time and place as the returning officer may appoint and the returning officer is required to give all reasonable facilities for examination of the nomination papers of all candidates which have been delivered within the time and manner as laid down in Section 33.

20(ii)(i). Section 36(2), *inter alia*, provides that the returning officer on examination of the nomination papers, shall decide all objections which may be made to any nomination and may either on such objection, or, on his own motion, after such summary inquiry, if any, the returning officer may think proper, reject any nomination on any of the grounds mentioned in Section 36(2)(a),(b) and (c). Section 36(2)(b) which is relevant for the present case, provides that the nomination may be rejected on the ground that there has been a failure to comply with any of the provisions of Section 33 or Section 34.

20(ii)(j). Section 36(4) provides that the returning officer shall not reject any nomination paper on the ground of any defect which is not of a substantial character.

20(ii)(k). Section 36(2)(b) and Section 36(4), which are relevant in the instant case, provides that the returning officer may reject any of the nomination for failure to comply with the provisions of Section 33.

20(ii)(l). Section 33 is a provision for presentation of a valid nomination paper which provides that on a date appointed under Section 30(a), each candidate is required to deliver the nomination paper to the returning officer at the place specified in this behalf, a nomination paper completed in the prescribed form and signed by the candidate and a proposer of the constituency. The returning officer, however, shall not reject a nomination paper on the ground of any defect which is not of a substantial character as provided under Section 36(4).

20(ii)(m). Thus, in order to succeed in the Election Petition; the election petitioner shall have to prove that the nomination filed by the respondent/ returned candidate did not comply with the provisions of Section 33 of the Representation of the People Act, 1951, and the failure to comply with the provisions of Section 33, is a defect which is of a substantial character, liable to be rejected by the Returning Officer under Section 36(2)(b) of the Representation of the People Act, 1951.

20(ii)(n). Having noticed the relevant legal provision for declaring the election void, as hereinabove; the facts of the present case may now be discussed.

20(ii)(o). Vide determination of Issue Nos. 1, 4, 5 & 8, it has already been held that non-disclosure of the vehicles i.e. Kinetic Zing Scooty bearing Reg. No. AR-11/4474; Maruti Van Omni Ambulance bearing Reg. No. AR-11A/3100; and TVS Star City Motorcycle bearing Reg. No. AR-11/6851, which were owned by the wife and son of respondent No. 1, respectively; required to be

disclosed under Clause 7(A) Serial No.(vi) of Form 26 of the Conduct of Election Rules, 1961; non-submission of no dues payable in respect of MLA Cottage No. 1 located in 'E' Sector, Itanagar, towards rent, electricity charges, water charges, telephone charges, from the concerned agencies as is required to be disclosed as per Clause 8(ii)(A)(B)(ii) of the Form 26 of the Conduct of Election Rules, 1961, and showing the government dues as "NIL" in respect of respondent No. 1/returned candidate and his spouse in Part B-11 '*Abstract of the details given in (1) to (10) of Part-A*' in Serial No. 9(i) despite the municipal/property tax dues in respect of respondent No. 1 and his spouse in Part A(8) at serial No. (vi) shown as Rs. 33,960.00 and Rs. 40,215.00, respectively, was a defect of a substantial character; it must be held that the nomination paper of the respondent No. 1 was not presented in due compliance of Section 33 of the Representation of the People Act, 1951, hence, liable to be rejected u/s. 36(2)(b) of the Representation of the People Act, 1951. The nomination paper of the respondent No. 1, therefore, was improperly accepted by the Returning Officer, Tezu.

20(ii)(p). Having held that the nomination of the respondent No. 1/returned candidate was improperly accepted by the Returning Officer, Tezu; what calls for further determination is as to whether such improper acceptance of the nomination paper of respondent No. 1/returned candidate by the Returning Officer, Tezu, has materially affected the result of the election of the returned candidate of 44-Tezu(ST) Assembly Constituency or not?

20(ii)(q). From the evidence of PW-4, Shri Kajal Karmakar, the Returning Officer, Tezu, it is evident that 3(three) candidates whose nominations were accepted, finally contested the election for the 44-Tezu(ST) Assembly

Constituency and the candidates were Dr. Mohesh Chai(respondent No.2), Shri Nuney Tayang(election petitioner), and Shri Karikho Kri(respondent No.1); a Bharatiya Janata Party(BJP) candidate, an Indian National Congress(INC) candidate and an independent candidate, respectively.

20(ii)(r). There is no dispute that pursuant to the election held; the respondent No. 1 was elected as an MLA from 44-Tezu(ST) Assembly Constituency in 2019.

20(ii)(s). In the case of **Mairembam Prithviraj @ Prithviraj Singh v. Pukhrem Sharatchandra Singh**, reported in **(2017) 2 SCC 487**, in paragraph No. 23, thereof, it has been held by the Hon'ble Supreme Court, as under:

"23. It is clear from the above judgment in Durai Muthuswami that there is a difference between the improper acceptance of a nomination of a returned candidate and the improper acceptance of nomination of any other candidate. There is also a difference between cases where there are only two candidates in the fray and a situation where there are more than two candidates contesting the election. If the nomination of a candidate other than the returned candidate is found to have been improperly accepted, it is essential that the election petitioner has to plead and prove that the votes polled in favour of such candidate would have been polled in his favour. On the other hand, if the improper acceptance of nomination is of the returned candidate, there is no necessity of proof that the election has been materially affected as the returned candidate would not have been able to contest the election if his nomination was not accepted. It is not necessary for the respondent to prove that result of the election insofar as it concerns the returned candidate has been materially affected by the improper acceptance of his nomination as there were only two candidates contesting the election and if the appellant's nomination is declared to have been improperly accepted, his election would have to be set aside without any further enquiry and the only candidate left in the fray is entitled to be declared elected."

20(ii)(t). It is, thus, clear from the ratio of **Mairembam Prithviraj @ Prithviraj Singh**(supra) that if the nomination of the returned candidate is improperly accepted, there is no necessity to prove that the election has been

materially affected as the returned candidate would not have been able to contest the election if his nomination was not accepted.

20(ii)(u). In view of the above position of law that when the nomination of the returned candidate is improperly accepted by the Returning Officer, there is no necessity to prove that the election has been materially affected; and, since it has already been held that the nomination of respondent No. 1/returned candidate was improperly accepted by the Returning Officer, Tezu, on the grounds stated hereinabove; this issue is also answered in favour of the petitioner by holding that the election of the respondent No. 1/returned candidate from 44-Tezu(ST) Assembly Constituency in the election held in the year 2019, is liable to be declared void under Section 100(1)(d)(i) of the Representation of the People Act, 1951.

ISSUE NO. 9:

“What consequential relief the petitioner is entitled to, if any?”

21. Submissions made by the learned senior counsel for the petitioner as per written argument filed:

“The petitioner raised objection before the Returning Officer against the validity of the Nomination Paper of respondent No.1 for nondisclosure of the motor vehicles owned by him his wife and his son, property of his mother, nondisclosure Government accommodation availed by him, non submission of ‘No due certificate’ in respect of the said Government accommodation, false statements regarding municipal taxes and other dues with the appropriate Government and also nondisclosure of contracts entered with the Government agencies.

Apart from the fact that the respondent admitted in the pleading and also in his evidence, the petitioner led evidence and proved that respondent No.1 and his dependents are the registered owners of the aforesaid motor vehicles and same have not been disclosed in his affidavit Form-26. Moreover, the Respondent No.1 did not

disclose the property of his mother in his Form-26, the respondent No.1 availed Government accommodation i.e MLA Cottage No.1 for the year 2009-2014, no due certificates towards electricity, water, rent and phone in respect of the said Government accommodation has not been submitted along with nomination papers filed under 33 (1) of the RP Act. Respondent No.1 made false and contradictory statement towards municipal taxes and other dues with the appropriate Government in his Form-26 and also non-disclosure of Contracts entered with the Government agencies of the firm owned by him and his son. Yet the Returning Officer improperly accepted the nomination paper of the respondent No.1. As such the election of Respondent No.1 is liable to be declared void u/s 100 (1)(d) of the Act of 1951.

Mairembam Prithviraj v. Pukhrem Sharatchandra Singh, (2017) 2 SCC 487: it has been held by Hon'ble Apex Court In Para 26) that "There is no requirement to prove that the result of the election of the returned candidate is materially affected once his nomination is declared to have been improperly accepted' and the election is liable to be declared void under Section 100(1)(d) of the Act.

Although no issue has been framed, the respondent No.1 took a plea in his written statement that by putting signature in Form-V of the Conduct of Election Rules, 1961 where the Returning Officer recorded his decision of accepting the nomination paper of respondent No.1 has waived his right to object to the acceptance of the same, the petitioner submits that even assuming but not admitting that all the objection now raised were not raised before the Returning Officer, the petitioner is not estopped from raising the said plea in the trial of the Election Petition as has been held by the Apex Court in the case of N.T Veluswami Thewar -Vs- G. Raja Nainar reported in AIR 1959 SC 422 (para-16).

These issues may therefore be decided in favour of the petitioner by declaring the election of respondent No.1 to the 44 Tezu (ST) Assembly Constituency as void and by further declaring that the petitioner is duly elected from the said constituency since the petitioner has duly established that the nomination paper of respondent No.2 also suffered from substantial defect and moreover respondent No.2 did not approach this Hon'ble Court challenging the election of respondent No.1 and nor did he pray for declaring him to be elected from the said constituency.

Besides, as the allegations are suppressions, misrepresentation in the nomination paper of respondent No.1 and 2 have been established and since the same tantamount to commission of corrupt practice u/s 123(2) of the Act of 1951 this Hon'ble Court may pass appropriate Order by invoking the provisions of section 99 of the said Act."

21(i). Submissions made by the learned senior counsel for the respondent No. 1 as per synopsis of arguments filed:

"In view of the submissions made against the Issues No. 1 to 8, it is humbly submitted that the Election Petitioner is not entitled to any consequential relief, rather is liable for exemplary cost for a frivolous litigation like the present election petition."

Finding of the Court on Issue No. 9:

21(ii). With regard to Issue No. 9, it is noticed that the election petitioner has made allegations against respondent No. 2 to the effect that the respondent No. 2 had disclosed the immovable assets i.e. (1) G+2 Building under construction at Chai colony, Tezu, and (2) Hall, Dag No. 281(p), Bill No. LR-382 and allotment No. REV-6/75 dated 12/06/1987; in Form 26 of the Conduct of the Election Rules, 1961, to be that of respondent No. 2, which is not correct, whereas the properties mentioned above; belongs to the mother of respondent No. 2 Smti. Jahilu Chai.

21(ii)(a). The further allegation against the respondent No. 2 is that he had not disclosed the following lands allotted to his mother Smti. Jahilu Chai, in Form 26 of the Conduct of the Election Rules, 1961, which are, as under:

Dag No.	Area (in Sq.m.)	Allotment No.	Type of land
53(B)	373.68	REV-6/75 dated 12/06/1987	Commercial
281(P) & 281(O)	8974	REV-6/75 dated 12/06/1987	Residential
281(G)	27,800	REV-6/75 dated 12/06/1987	Residential

21(ii)(b). And, that the mother of respondent No. 2 Smti. Jahilu Chai has been shown to be dependent on him in the General Provident Fund(GPF) Nominee column while the respondent No. 2 was serving in the Department of Health & Family Welfare, Government of Arunachal Pradesh, and the resignation letter, dated 02.09.2013, submitted by him, which was subsequently accepted by the authority in which he had stated that he was

resigning from the service under the Department of Health & Family Welfare, Government of Arunachal Pradesh, to take care of his mother; thus, indicating that his mother Smti. Jahilu Chai is dependent on him.

21(ii)(c). The allegations made by the petitioner against the respondent No. 2, has been pleaded in the election petition in paragraphs No. 24(ii), (iv), (v), as well as paragraphs No. 25, 26, & 27 of the election petition.

21(ii)(d). As stated above, the respondent No. 2 did not contest the case despite service of notice. The petitioner, therefore, contends that since he has duly established that the nomination paper of Respondent No. 2 also suffered from substantial defects and that the Respondent No. 2 neither approached this Court challenging the election of Respondent No. 1, nor, did he pray for declaring him to be elected from 44-Tezu(ST) Assembly Constituency; the petitioner be declared duly elected from the said constituency.

21(ii)(e). On failure of respondent No. 2 to contest the case, even if it is taken to be an admission of the allegations made by the petitioner against the respondent No. 2; the Court may still require the election petitioner to prove the fact. This is, in consonance, with the provisions of Section 58 of the Evidence Act, which reads, as under:

"58. Facts admitted need not be proved. – No fact need be proved in any proceeding which the parties thereto or their agents agree to admit at the hearing, or which, before the hearing, they agree to admit by any writing under their hands, or which by any rule or pleading in force at the time they are deemed to have admitted by their pleadings:

Provided that the Court may, in its discretion, require the facts admitted to be proved otherwise than by such admission."

21(ii)(f). The proviso to Section 58 specifically gives a discretion to the court to require the facts admitted to be proved otherwise than by such admission. The proviso to Section 58 of the Evidence Act, corresponds to the proviso to Rule 5(1) of Order 8 of the Code of Civil Procedure, 1908, which, reads as under:

"5. Specific denial.- (1) Every allegation of fact in the plaint, if not denied specifically or by necessary implication, or stated to be not admitted in the pleading of the defendant, shall be taken to be admitted except as against a person under disability:

Provided that the Court may in its discretion require any fact so admitted to be proved otherwise than by such admission."

21(ii)(g). It is, thus, clear from the above provisions that the Court, at no stage, can act blindly or mechanically. While enabling the Court to pronounce judgment in a situation where no written statement is filed by the defendant, the Court has also been given the discretion to pass such order as it may think fit as an alternative. This is also the position under Order 8 Rule 10 of the Code of Civil Procedure, 1908, which reads as under:

"10. Procedure when party fails to present written statement called for by the Court. – Where any party from whom a written statement is required under rule 1 or rule 9 fails to present the same within the time permitted or fixed by the Court, as the case may be, the Court shall pronounce judgment against him, or make such order in relation to the suit as it thinks fit and on the pronouncement of such judgment, a decree shall be drawn up."

21(ii)(h). Thus, under Order 8 Rule 10 of the Code of Civil Procedure, 1908, also, when a party fails to present the written statement; the Court can either pronounce judgment against the defendant or pass such order as it may think fit.

21(ii)(i). In view of the above position of law and on considering the nature of allegations made against the respondent No. 2, regarding wrong disclosure of the property of mother of respondent No. 2 viz. (1). G+2 Building under construction at Chai colony, Tezu, and (2). Hall, Dag No. 281(p), Bill No. LR-382 and allotment No. REV-6/75 dated 12.06.1987, to be the property of respondent No. 2, as well as non-disclosure of various land allotted to the mother of respondent No. 2 viz. Smti. Jahilu Chai and alleged to be a dependent on respondent No. 2, as contained in paragraphs No. 24, 25, 26 & 27 of the election petition; I am of the considered view that the election petitioner should have adduced evidence to prove his pleadings made against the respondent No. 2 in the election petition.

21(ii)(j). Since the election petitioner has not led any evidence to prove the pleadings and allegations made against the respondent No. 2 in the election petition, by adducing evidence; I am of the further considered view that the election petitioner has not discharged his burden of proof and accordingly, no judgment can be pronounced against the respondent No. 2 solely on the basis of the pleadings and allegations as contained in the election petition.

21(ii)(k). In that view of the matter, the election petitioner is not entitled to any further consequential relief for a declaration of duly elected from 44-Tezu(ST) Assembly Constituency u/s. 101(b) of the Representation of the People Act, 1951. Accordingly, the Issue No. 9 is answered against the election petitioner.

SUMMARY OF THE FINDING:

22. In view of the discussions and findings recorded above; the Issue Nos. 1, 2, 3, 4, 5, 6, 7, 8 and 9, are answered in the following manner:

Issue No. 1	Hero Honda CD Dawn Motorcycle bearing Registration No. AR-11/2446	Negative
	Kinetic Zing Scooty bearing Registration No. AR-11/4474	Affirmative
	Van, Maruti Omni Ambulance bearing Registration No. AR-11A/3100	Affirmative
	TVS Star City Motorcycle bearing Registration No. AR-11/6851	Affirmative
Issue No. 2		Negative
Issue No. 3		Negative
Issue No. 4		Affirmative
Issue No. 5		Affirmative
Issue No. 6		Affirmative
Issue No. 7		Affirmative
Issue No. 8		Affirmative
Issue No. 9		Negative

22(i). Thus, from a thorough consideration of the entire matter, the Court is of the considered opinion that in the present case, the respondent No. 1 had not presented his nomination paper in accordance with Section 33 of the Representation of the People Act, 1951, and, as such, the nomination paper of the respondent No. 1 is liable to be rejected under Section 36(2)(b) of the Representation of the People Act, 1951.

22(ii). The Returning Officer, Tezu, having not rejected the nomination paper of respondent No. 1; the acceptance of the nomination paper of respondent No. 1 was, therefore, improper, thereby materially affecting the

election of respondent No. 1 as Member of Legislative Assembly to 44-Tezu(ST) Assembly Constituency.

22(iii). Though, it is a well-settled proposition that the election of a candidate, who has won an election, should not be lightly interfered with, but, at the same time, it has also to be borne in mind that one of the essentials of election law is to safeguard the purity of the election process and to see that people do not get elected by flagrant breaches of the law.

22(iv). Consequently, having answered the issues framed for determination in the instant case in the manner indicated above, the election of the respondent No. 1/returned candidate from 44-Tezu(ST) Assembly Constituency in the election held pursuant to the Notification No. 464/ARUN-LA/2019, dated 18.03.2019, issued by the Secretary, Election Commission of India, Nirvachan Sadan, Ashoka Road, New Delhi, which Notification was reproduced by the Chief Electoral Officer, Arunachal Pradesh, Itanagar, on 18.03.2019, and published in the Arunachal Pradesh Gazette Extraordinary No. 120, Vol. XXVI, Naharlagun, Monday, March 18, 2019; is hereby declared void under Section 100(1)(b), 100(1)(d)(i), and (iv), of the Representation of the People Act, 1951.

23. The election petition is allowed to the extent indicated above and stands disposed of. Parties shall bear their own costs.

24. An authenticated copy of this judgment be sent to the Election Commission and the Speaker of Arunachal Pradesh State Legislative Assembly

in accordance with the provisions of Section 103 of the Representation of the People Act, 1951.

JUDGE

Comparing Assistant